GOVERNMENT OF THE REPUBLIC OF MALAWI

SOCIAL SUPPORT FOR RESILIENT LIVELIHOODS PROJECT

RESETTLEMENT POLICY FRAMEWORK-UPDATED FOR ADDITIONAL FINANCING

National Local Government Finance Committee
Red Cross House, Area 14
Private Bag 352 Lilongwe 3
Tel: +265 1 755 666
Fax: +265 1 755 949
E-mail: nlgfc@nlgfc.gov.mw

MARCH 2022

ACKNOWLEDGEMENT

This Resettlement Policy Framework for the Social Support for Resilient Livelihoods Project has been updated to incorporate the scope of the proposed Additional Financing. The National Local Government Finance Committee (NLGFC) is grateful to all of them. The NLGFC would like to recognise in a special way the support rendered to the drafting team by various institutions at national and district level.

The NLGFC is also very grateful to the main Project Preparation Team for providing useful information on the scope of the components and sub-components of the project. Special thanks to members of District Environmental Sub-Committees, District Social Support Committees and representatives of various community based groups in Chitipa, Karonga, Dowa, Nkhotakota, Balaka and Phalombe districts for the successful consultation meetings which provided useful information on land issues and different socio-economic impacts that projects of this nature may cause to the communities in Malawi. The district and community members also suggested additional areas the RPF should address.

Finally, the NLGFC is grateful to the drafting team for working tirelessly to have this RPF within the specified time frame. The RPF will go a long way to guide preparation of the RAPs/ARAPs for the different project components, which will be implemented in different districts in the country.

Table of Contents

ACKNOWLEDGEMENT i
LIST OF FIGURES v
LIST OF TABLES v
LIST OF ACRONYMS v
DEFINITION OF SELECTED TERMS USED viii
EXECUTIVE SUMMARY x
CHAPTER ONE 1
INTRODUCTION AND BACKGROUND TO THE PROJECT AND RESETTLEMENT POLICY FRAMEWORK 1
1.1 Introduction 1
1.2 Overview of the SSRL Project and the Additional Financing 1
1.3 Project proponent and implementing agencies 4
1.3.1 Project proponent 4
1.3.2 Implementing agencies 5
1.4 Justification and Objectives of the Resettlement Policy Framework 5
1.5 Key Principles of RPF 6
1.6 Funding and funds for compensation and resettlement 6
1.7 Potential Users of the Resettlement Policy Framework 7
1.8 Methodology for the preparation of the RPF 7
CHAPTER TWO 11
2.0 PROJECT DESCRIPTION AND LINKAGES TO RESETTLEMENT 11
2.1 The Project Development Objective 11
2.2 Project Components 11
2.2Target Districts and Beneficiaries 14
2.3 Generic Project Cycle and Linkages to Resettlement Issues 14
2.4 An Overview of Land Uses in Malawi 15
2.5 Land Tenure Regimes in Malawi 16
2.6 Brief Description of Land Acquisition Approaches for Community Driven Sub-Projects 17
2.7 Description of Potential Socio-Economic Impacts of Resettlements 17
CHAPTER THREE 19
POLICY, LEGAL AND ADMINSTRATIVE FRAMEWORK ON RESETTLEMENT IN MALAWI 19
3.1 Review of Policies and Laws on Resettlement in Malawi 19
3.1.1The Constitution of Republic of Malawi 19
3.1.2The Malawi National Land Policy 2002 20
3.1.3. The Land Act 2016 20
3.1.4. The Lands Acquisition and Compensation Act 2016 22
3.1.5. The Registered Land Act 2016 22
3.1.6. The Customary Land Act 2016 22
3.1.7 Land Survey Act 2016 23
3.1.8 The Physical Planning Act 2016 23
3.1.9. The Local Government (Amendment) Act 2017 24
3.1.10. Public Roads (Amendment) Act 2017 24
3.1.11. Environment Management Act 1996 24
3.1.12 The Forestry (Amendment) Act 2017 25
3.2 Key legislation on Resettlement 25
3.2 Overview of the World Bank Environmental and Social Standard on Land Acquisition, Restriction on Land Use and Involuntary Resettlement (ESS 5) 26
3.3 Comparison and Gaps between standards of World Bank and Malawi on Resettlement 26

3.4 Appropriate Measures for Addressing Identified Gaps between the Policies in Implementation 27
CHAPTER 4 33
SOCIAL ASSESSMENT AND SOCIO-ECONOMIC STATUS OF THE PEOPLE IN MALAWI . 33
4.1 Literacy levels 33
4.2 People and Population dynamics in Malawi 33
4.3 Governance and development Planning. 34
4.3.1 The District Council 34
4.3.2 The District Executive Committee 34
4.3.3 The Area Development Committee 34
4.3.4 Village Development Committees 34
4.3.5 Traditional Authorities 34
4.4 Malawi's Economy 34
4.5 Transport Infrastructure. 35
4.6 Health Situation and HIV & AIDS Prevalence 36
4.7 Social and economic status of the people of Malawi 36
4.8 Social Characterization of potential affected persons 36
4.11 Land situation 37
4.12 Access to land 38
4.13 Land ownership, disputes and conflicts 38
4.14 Land compensation 38
4.15 Estimated population, displacement and categories of affected people 38
4.16 Approach for identifying Project Affected Persons 38
4.17 Determining categories of PAPs 38
4.18 Creation of Baseline Information on Project Affected Persons 41
CHAPTER FIVE 42
PRINCIPLES, PROCEDURES, AND PROCESSES GOVERNING RESETTLEMENT ACTIVITIES WITHIN SSRLP ADDITIONAL FINANCING 42
5.1 Guiding Principles on Resettlement 42
5.2 The Resettlement Screening for Sub Projects under SSRLP Additional Financing 43
5.2.1 The Screening Process 43
5.2.1.1 Screening of the Sites by Village Development Committee 44
5.2.1.2 Desk Appraisal of the Proposed Site and Project 45
5.2.1.3 Field Appraisal of the Proposed Site and the Project 45
5.3 Preparation of Resettlement Action Plan for Selected Sub Projects 45
5.3.1 Estimation of displaced persons and Cutoff Date 46
5.3.1.1 Site visit to the project areas 46
5.3.1.2 Identifying boundaries of the proposed project areas 46
5.3.1.3 Determining the size of land to be lost 46
5.3.1.4 Conducting physical check and count of the houses within project area 46
5.3.1.5 Establishing number of persons per household 46
5.3.1.6 Socio-economic Survey 46
5.4 Asset Valuation Methodology 47
5.4.1 Basis of Valuation Methods 47
5.4.2 Valuation Practice in Malawi 48
5.4.3 Valuation Methods Applied 48
5.5 Eligibility Criteria for Compensations for Project Affected People 50
5.6Entitlements for Compensations 51
5.7 Approach and Procedures for Delivery of Compensations 51
CHAPTER SIX 56
STAKEHOLDER CONSULTATION, COMMUNICATION AND PROCEDURES FOR GRIEVANCE REDRESS 56

6.1 Stakeholder Consultations 56
6.2 Disclosure of the Resettlement Policy Framework and RAPs 57
6.3 Grievance Redress Mechanisms on Resettlement Activities 57
6.3.1 Gender Based Violence and Sexual Exploitation and Abuse (GBV and SEA) 59
CHAPTER SEVEN 61
ORGANISATIONAL ARRANGEMENTS, BUDGET ESTIMATES, IMPLEMENTATION SCHEDULE AND CAPACITY BUILDING 61
7.1 Institutional Arrangements 61
7.2 Definition of Responsibilities of Stakeholders 61
7.3 Capacity Building for Management of Resettlement Activities 63
7.4 Budget Estimates 64
7.5 Capacity Building Plan for Frontline Staff in Resettlement Activities 65
7.6 Compensation and Project Schedule 65
CHAPTER EIGHT 69
MONITORING AND EVALUATION OF RESETTLEMENT ACTIVITIES 69
CHAPTER NINE 73
CONCLUSION AND RECOMMENDATIONS 73
REFERENCES 74
ANNEXES 75
Annex 1: Resettlement Screening Form for Proposed Sites and Sub-Projects 75
Annex 2: Examples of Enhanced Public Works and Livelihood Support Subprojects that will require Land 77
Annex 3: An Outline of the Contents of Resettlement Action Plan 78
Annex 4: Diagrammatic Flow of Resettlement Action Plan and Implementation 79
Annex 5: Voluntary land donation form 80
Annex 6: A summary of the issues raised during stakeholder consultation meetings 81
Annex7: Resettlement Grievance Redress Form 84
Annex 8: Summary of Comments and Issues from Field Stakeholder Consultations 85
ANNEX 9: LIST OF CONSULTED PEOPLE 88

LIST OF FIGURES

Figure1: Pictures of some of the stakeholder consultation meetings at community and district level in Balaka…….……...6
Figure 2: Project Cycle Related to Resettlement 14
Figure 3: Diagrammatic Flow of the Screening Process 46
Figure 4: Diagrammatic Arrangements of Key Institutions in Resettlement Activities.....**Error! Bookmark not defined.**
Figure 5: Institutional arrangement for the SSRLP Grievance Redress Mechanism……..62
Figure 6: Diagrammatic Arrangements of Key Institutions in Resettlement Activities…….……64

LIST OF TABLES

Table 1: Details of stakeholders consulted.....7
Table 2: SSRLP Estimated Households Benefiting by Type of Support and Year …….……...13
Table 3 : Summary of Main Potential Social and Economic Impacts from Resettlement Activities ..... **Error! Bookmark not defined.**
Table 4: Details of key legislation on Resettlement……..26
Table 5: An analysis of gaps between local land related policies and laws and World Bank guidelines and how the gaps can be addressed……..29
Table 6: Entitlements for Project Affected Persons 56
Table 7: Indicative Budget for Resettlement Activities at Community, Local Authority and National levels……68
Table 8: An example of a RAP implementation schedule……69
Table 9: Proposed Monitoring Plan of Resettlement Activities at Community Level 73

LIST OF ACRONYMS

ADC	Area Development Committee
AEC	Area Executive Committee

AIDS:	Acquired Immune Deficiency Syndrome
APL II	Adaptable Programme Loan II
ARAP	Abbreviated Resettlement Action Plan
COMSIP:	Community Savings and Investment Promotion
DADO	District Agriculture Development Officer
DC	District Commissioner
DCDO:	District Community Development Officer
DEA:	Director of Environmental Affairs
DEC	District Executive Committee
DESC:	District Environmental Sub-Committee
DLO	District Lands Officer
DODMA:	Department of Disaster Management Affairs
DP	Displaced Person
DPD	Director of Planning and Development
EAD:	Environmental Affairs Department
ECD:	Early Child Development
EDO	Environmental District Officer
EPWP:	Enhanced Public Works Programme
ESMF:	Environmental and Social Management Framework
ESMP:	Environmental and Social Management Plan
ESSF:	Environmental and Social Screening Form
GBV:	Gender Based Violence
GIS:	Geographic Information System
GoM:	Government of Malawi
GVH:	Group Village Headman
HIV:	Human Immunodeficiency Virus
ICT:	Information and Communication Technology
IPM:	Integrated Pest Management
LA	Local Authority
LDF:	Local Development Fund
M&E:	Monitoring and Evaluation
M&EO	Monitoring and Evaluation Officer
MASAF:	Malawi Social Action Fund
MDGS:	Malawi Development and Growth Strategy
MFEPD:	Ministry of Finance, Economic Planning and Development
MLGRD:	Ministry of Local Government and Rural Development
MoL:	Ministry of Lands
SSRLP:	Social Support for Resilient Livelihoods Project
NDPR:	National Disaster Preparedness and Relief
NEAP:	National Environment and Action Plan
NGOS:	Non-Governmental Organisations
NLGFC:	National Local Government Finance Committee
NRB:	National Registration Bureau
NSO:	National Statistics Office
PAP	Project Affected Person
PDO:	Project Development Objective
PWP:	Public Works Programme
RAP:	Resettlement Action Plan
RPF:	Resettlement Policy Framework
SCTP:	Social Cash Transfer Programme
SSRLP:	Social Support for Resilient Livelihoods Project
STIs:	Sexually Transmitted Infections

T/A:	Traditional Authority
TCE:	Technical Committee for the Environment
UBR:	Unified Beneficiary Register
USD:	United States Dollar
VDC	Village Development Committee
WASH:	Water Sanitation and Hygiene
WB:	World Bank

DEFINITION OF SELECTED TERMS USED

Census: A field survey carried out to identify and determine the number of project affected persons or displaced persons in accordance with procedures including criteria for eligibility for compensation, resettlement and other measures, emanating from consultations with affected communities and local chiefs.

Compensation: Payment in kind, cash or other assets given in exchange for the taking of land including fixed assets thereon, in whole or in part.

Cut–off–date: Date of commencement/completion of the census of project affected people within project area boundaries.

Displaced persons: Persons who, for reasons of the involuntary taking or voluntary contribution of their land and other assets under the project result in direct economic and or social adverse impacts, regardless of whether or not the particular displaced persons physically relocate.

Involuntary Resettlement: Involuntary taking of land resulting in direct or indirect economic and social impact caused by loss of benefits from use of such land; relocation or loss of shelter; loss of assets or access to assets; or loss of income sources or means of livelihood, whether or not the displaced persons have moved to another location.

Involuntary Land Acquisition: The taking of land by government or other government agencies for compensation for purposes of a public project against the will of the landowner. The landowner may be left with the right to negotiate the amount of compensation proposed. This includes land or assets for which the owner enjoys uncontested customary rights.

Land: The material of the earth, whatever may be the ingredients of which it is composed, whether soil, rock or other substance, and includes the surface, building, other things permanently affixed to land and free or occupied space for an indefinite distance upwards as well as downwards, subject to limitations upon the airspace, and rights in the use of airspace granted by international law

Land acquisition: The legal process of obtaining land (vacant or inhabited) of individual citizens or organizations by the government or its agencies for any purpose of public interest i.e. for specific project.

Resettlement Policy Framework: An instrument or statement of the policy, principles, institutional arrangements and procedures to be used by Government to guide the process of addressing adverse impact of land acquisition leading to displacement or partial or full loss of some assets and other property of Project Affected People (PAPs).

Rehabilitation Assistance: The provision of development assistance in addition to compensation such as land preparation, credit facilities, training, or job opportunities, needed to enable displaced persons to improve their living standards, income earning capacity and production levels, or at least maintain them at pre-project levels.

Replacement Cost: Refers to a method of valuation yielding compensation sufficient to replace assets, plus necessary transaction costs associated with asset replacement.

Replacement cost for land: means the pre-project or pre-displacement, whichever is higher market value of land of equal productive potential or use located in the vicinity of the affected land, plus the

costs of preparing the land to levels similar to those of the affected land; and any registration and transfer taxes.

Replacement cost for houses and other structures: The prevailing cost of replacing affected structures, in an area and quality similar to or better than that of the affected structures. Such costs shall also include transporting building materials to the construction site; labour and contractors' fees; and registration costs.

Resettlement Assistance: The measures to ensure that displaced persons who may require to be physically relocated are provided with assistance during relocation, such as moving allowances, residential housing or rentals; whichever is feasible and as required, for ease of resettlement.

Voluntary Land Contribution: A process by which an individual or communal owner agrees to provide land or property for project-related activities. Voluntary contribution is an act of informed consent, made with prior knowledge of other options available and their consequences, including the right not to contribute or transfer the land. It must be obtained without undue coercion or duress. Voluntary Land Contribution may be of two types. These are voluntary land contribution for compensation and voluntary land contribution without compensation.

EXECUTIVE SUMMARY

1.0 Introduction

The Government of Malawi is implementing the Social Support for Resilient Livelihoods Project (SSRLP) with a US$142 million grant from the World Bank. The SSRLP is for five (5) years and runs from 2020 to 2025. Development Objective of SSRLP is to improve resilience among the poor and vulnerable populations and strengthen the national platform for safety nets. The project supports the Malawi National Social Support Program II and it is entirely devised around the MNSSPII strategy and Implementation Plan, reflecting strong government ownership.

The SSRLP was however originally appraised with a pre-existing financing gap. The financing gap was identified as part of *Component 1: Improving Social and Economic Inclusion*. The component focuses on the consolidation of an appropriate package of support for beneficiary households with a mix of program interventions, including social cash transfers, livelihoods support, and enhanced public works, as well as an option for scalable financing in time of crisis.

The Government of Malawi has therefore applied for Additional Financing (AF) from the International Development Association to cover the financing gap as well as scale up coverage of core components of the Social Support for Resilient Livelihoods Project (SSRLP).

2.0 Scope and coverage of the SSRLP Additional Financing

The specific objectives, areas of focus, and breakdown of resource allocations for the SSRLP Additional Financing are as follows:

(1) Covering the existing financing gap in SCTP: The AF is expected to fully cover the gap in *Subcomponent 1.1: Enhanced Core Programs,* and specifically in its activity *1.1.1: Social Cash Transfer Program.* This activity originally received US$59 million equivalent from the IDA grant, had a US$41 million original gap plus another US$10.5 million spent for COVID 19 Urban Cash Intervention (CUCI) that was not included in the original project design. This gap was recently reassessed by GoM to be US$34.5 million, which is the amount needed to cover the SCTP in 11 districts covered by the World Bank until the project closing. Therefore, US$35 million from the AF has been earmarked for the SCTP to fill the program's financing gap in full.

(2) Scaling up EPWP to mitigate the risk of ex-AIP beneficiaries falling into deeper poverty: This is to address the risk of transitioning Affordable Input Program (AIP) beneficiaries falling into even deeper poverty. Thus the Enhanced Public Works Program/ Climate Smart Public Works Program (EPWP/CSPWP) is expected to be expanded over the 35,000 beneficiaries covered by the original financing to ensure comprehensive and efficient social safety net packages for different profiles of poor beneficiaries, and to establish pathways to graduation. The EPWP, which currently has US$20 million allocated under the original IDA, will be topped up with another US$108 million. During the predecessor MASAF IV project the regular public works intervention was drastically reduced and then discontinued until an enhanced program was designed, piloted and evaluated. Under the AF, the EPWP will reach out to 400,000 beneficiaries who will work for 6 months per year for two years in all the 28 district councils. These would be households transitioning from the AIP. For comparison, it should be noted that the traditional MASAF IV public works program used to reach regularly around 450,000 beneficiaries per operational cycle, and at times of emergencies this number surpassed 900,000. In terms of design of the EPWP, the Government of Malawi will continue with the Catchment Management approach where focus of the public works is on catchment rehabilitation and

restoration activities such as afforestation, forest regeneration, soil and water conservation technologies, river bank protection and disaster risk reduction measures.

(3) Scaling up Livelihoods Support to ensure success of the SCTP and EPWP and provide a path to graduation: The Livelihoods Support would be allocated US$13 million from the AF to allow the inclusion of more of the SCTP and EPWP beneficiaries in graduation and skills programs. This program has proven very effective in providing a sustainable pathway out of poverty for the beneficiaries of the other core programs. It is a necessary element of the effectiveness of the core programs package.

(4) Increasing the IDA allocation for the Scalable Social Safety Nets subcomponent: The Scalable Social Safety Nets will receive an additional US$10 million from the AF. This will expand the coverage from the scalable mechanism from three to six districts for the next two agricultural seasons. The additional funding will be used to increase the contingent financing instrument, complementing the US$10 million premium financing provided by GRIF, which will be procured across all six districts under scalable safety nets. Adding additional resources to the contingent finance instrument will allow flexibility to respond to shocks that don't meet the insurance payout trigger.

(5) Ensuring proper systems building and project management: Finally, US$5 million will be allocated to *Component 2: Strengthening Harmonized Delivery Systems*, to expand the use of e-payments for all core safety nets activities table; and US$4 million will be added for capacity building, project management, and operational costs for the expanded core programs

The description of the scope and coverage of the Additional Financing indicates that it will not lead to introduction of new activities into the SSRLP but will just support the expansion of the existing activities within the project components. The AF will therefore utilize the same Resettlement Policy Framework (RPF) which was developed for the initial financing of the SSRLP with minor updates as presented in the next sections and chapters.

2.1 Project Beneficiaries

The SSRLP and the Additional Financing is expected to cover approximately 147,000 ultra-poor and labour constrained households per year through the Social Cash Transfers (SCTP), which is currently covering about 113,148 households in 11 districts under World Bank financing. Although smaller than the previous MASAF IV PWP, the new Climate Smart/Enhanced Public Works Program (CSWP/EPWP) is expected to reach up to 435, 0000[1] beneficiary households per year, of which focus would be given to ensure participation of women and youths. Poor households in new districts would continue to be targeted through a combination of community-based targeting approaches and a proxy means test.

3.0 Objectives of the project

The development objective of SSRLP and the Additional Financing is to improve resilience among the poor and vulnerable population and strengthen the national platform for safety nets.

4.0 Justification for Resettlement Policy Framework

The need for Resettlement Policy Framework emanates from observations which indicate potential risks of some of the sub projects under the Social Support for Resilient Livelihoods Project (SSRLP) Additional Financing on land, assets and livelihoods. This RPF has been prepared to specify how displacement and land acquisition planning and implementation would proceed, once individual

[1] This figure includes 35,000 beneficiaries under the initial SSRLP funding and 400,000 beneficiaries expected from the Additional Financing

projects are selected and designed. This RPF is expected to be useful in designing specific projects to minimise the loss of land and other immovable assets, and to avoid physical displacement of residential and other structures as much as possible, given other technical, economic, financial, and environmental considerations.

The Resettlement Policy Framework has been prepared in compliance with national legislation and international regulations including the Environmental and Social Standard 5 (ESS5). This Resettlement Policy Framework (RPF) has been prepared for community based sub-projects under Social Support for Resilient Livelihoods Project Additional Financing.

5.0 Objectives of the Resettlement Policy Framework

The aim of Resettlement Policy Framework (RPF) is to provide a process to be used in identifying individuals to be impacted by project activities as well as the type and magnitude of impact and outline the process for preparing a Resettlement Action Plan. The RPF includes methods for identifying processes for monitoring and evaluating resettlement impacts in planning in implementation of sub-projects to be funded from Social Support for Resilient Livelihoods Project Additional Financing.
Specific objectives are as follows:

- To outline steps in resettlement screening of sub-projects and how to incorporate in appraisal system of the projects.
- To describe potential socio-economic impact of resettlement.
- To outline policies and laws which govern resettlement activities and which need to be complied in implementation of community sub-projects under Social Support for Resilient Livelihoods Project.
- To describe eligibility criteria for compensations to various potential categories of affected people.
- To describe methods of valuing affected assets for purpose of compensations.
- To outline institutional arrangement in implementation of resettlement.
- To outline budget estimates and funding arrangements for resettlement related activities.

6.0 Guiding Principles on Resettlement Issues under the SSRL Project

The overall policy guidance on execution of Social Support for Resilient Livelihoods Project– SSRLP and sub projects is to avoid resettlement related cases at the earliest opportunity. It is the view of government that by and large resettlement disrupts the existing social and economic fabric of the poor communities. In this regard, the implementation of sub-projects to be funded from Social Support for Resilient Livelihoods Project will be coordinated on a set of principles in order to avoid or minimise resettlement related risks. The principles revolve around the basic tenets of the World Bank Environmental and Social Standard 5 (ESS5) as well as the existing policies and pieces of legislation of the Government of Republic of Malawi. Key principles are as follows:

- **Principle 1:** Sub-projects eligible for funding from SSRLP Project shall be those proposed in suitable sites. Suitable sites for funding of a sub-project are those sites where the implementation of a project would not bring about involuntary resettlement, involuntary physical dislocation, eviction of squatters, loss of land (whether ownership is recognised by customary land tenure or land titles, impact on cultivations and property, loss of access to property, loss of access to natural resources and other economic resources. During appraisal, availability of a written proof of properly acquired land will be one of the pre-requisite conditions for approval of a proposed sub-project. Thus, responsibility for identification and provision of a suitable site for a proposed sub-project will be with the community through the local chiefs and the area and village development committees.

  Principle 2: In cases where compensation for improvements is still found to be inevitable for sub-project implementation, The Government of Malawi through NLGFC, Ministry of Lands,

Ministry of Finance, Economic Planning and Development, Ministry of Local Government and Rural Development in consultation with local leaders will make sure that appropriate compensation and resettlement assistance to the project affected person either in Cash or kind is done in accordance with the process outlined by this Resettlement Policy Framework.

7.0 Methodology for the RPF preparation

The methodology used in this study can broadly be divided into three parts namely data collection; data analysis; and preparation of the RPF report.

Data required for the RPF study was collected through primary and secondary sources, which included:

a) Literature review;
b) Public consultation.

8.0 Legal framework for resettlement and compensation

The legal framework provides for acquisition of land for public purposes for the different development projects. At national level, the Land Acquisition Act is the guiding framework for how the resettlement and compensation will be done. In addition to the different national policies and legislation which have been examined when preparing this RPF, provisions of other international policies and laws have also been examined and these include the World Bank Environmental and Social Standard No. 5.

9.0 Institutional and organisational framework for compensating the PAPs

Ssuccessful implementation of resettlement will depend on collaboration of different stakeholders, at local level (village/area level), district level and national level. In this regard, cases of resettlements within sub-projects to be funded from Social Support for Resilient Livelihoods Project will be undertaken as a shared responsibility among the communities, the local authorities and central government ministries. The NLGFC, as the project coordinating institution will have the overall responsibility for coordinating and monitoring implementation of the RPF and RAPs that may be prepared for the sub-projects.

Key central government ministries will be: The Ministry of Finance, Economic Planning and Development, The Ministry of Lands, Ministry of Agriculture and Food Security, Ministry of Local Government and Rural Development and the Ministry of Natural Resources, Energy and Mining. The central government ministries will provide policy leadership in areas of mainstreaming and annual monitoring of resettlement planning in the Social Support for Resilient Livelihoods Project.

The local authorities will coordinate implementation of Resettlement Action Plans (RAP) and considerations of resettlement issues within the sub-project implementation processes. Specific tasks will include screening and appraisal of the projects on resettlement issues before funding of the projects. In addition, local authorities will monitor and provide necessary technical assistance to management of resettlement activities to be done by the communities.

10.0 Socio-economic situation of the project target communities in Malawi

The socio-economic study showed that the majority of the people in the SSRL project target communities rely on crop cultivation as their means of livelihood with an average monthly income per household of about $20. This income level indicates that most households live below the UN poverty datum line. A number of crops are grown by the smallholder farmers and these include maize, cotton, sweet potatoes, tobacco, groundnuts, cassava, beans, vegetables, sorghum and other crops. Some of the produce from the farms is used for domestic consumption and the bulk is sold at different markets within the community as a source of income. However, the low prices in the market due to failure to access better markets result in the people getting very low value for their crops and products.

11.0 Public Consultation

A number of public consultation meetings were undertaken in the six sampled districts of Chitipa, Karonga, Dowa, Nkhotakota, Balaka and Phalombe. The consultation meetings were organized in order to ensure that all the information pertaining to the project design and its components is disseminated to the relevant stakeholders in the district councils and that the stakeholders are provided with opportunity to express their views, opinions and concerns on the risks that are anticipated from the project. Major issues discussed during consultations included:

a) Different project activities and their positive and potential impacts;

b) Expected benefits from the project which shall include increased household income, short-term employment through public works programme, food security through consumption support, improved agricultural productivity through improved water availability and soil productivity as a result of catchment management activities;

c) Potential for loss of land, which called for discussion on proposed principles and approach of the project on acquisition of land and the implications on compensation requirements and resettlement assistance;

d) Involvement of women and youth in the project which will include employment opportunities, position of women and youth around landholding tenure and farming; and

e) Health concerns, which will involve the spread of STIs, particularly HIV/AIDS.

12.0 Monitoring and Evaluation

Monitoring and evaluation will form an integral part of project implementation, providing the necessary information about the involuntary resettlement aspects of the project and measuring the extent to which the goals of the RAPs will have been achieved and the effectiveness of mitigation measures.

Indicators and targets will be established for the project as a whole, in consultation with representatives of the affected communities and other key stakeholders. Indicators will be grouped into different categories as spelt out in the RAPs/RAPs including: input indicators, output indicators, outcome indicators, impact indicators and performance indicators. This RAPs/ARAPs also details out the performance monitoring, impact monitoring and qualitative monitoring.

12.0 Grievance Redress Mechanisms on Resettlement Activities

The RPF will utilise the Grievance Redress Mechanism which has been developed for the SSRL Project as part of the stakeholder engagement plan. The GRM for the SSRLP provides for negotiation and agreement by consensus between the community and affected persons as the first avenue to resolve grievances expressed by the individuals about the project including resettlement issues. This is because the implementation of sub projects will be community driven. Thus the process of grievance redress mechanisms will initially be handled by grievance redress committees which operate within the community settings themselves.

However, in events where some aggrieved parties are not satisfied by decisions made at village head and traditional authority levels, the cases will be referred for review and re-consideration to higher level grievance redress committees at Area (Traditional Authority) and district levels. In cases where the grievances are not resolved at the district level, the case will be referred to national level committee whose membership shall include Ministry of Lands. In extreme cases where the case remains unresolved at the national level it will be referred to the court.

Local councils will facilitate capacitation of the community level development implementation committees so that they are able to avoid or resolve all resettlement related grievances during the identification and appraisal of sub-project sites wherever possible. In this context, proper channels of reporting grievances will be put in place and the project target communities will be sensitised accordingly so that they make use of them. These channels will be in line with norms and culture of the communities, laws of the country, and acceptable to World Bank standards.

13.0 Conclusion and Recommendations

The Social Support for Resilient Livelihood Project will generate significant socio-economic benefits to the country as a whole and in the different project impact areas in particular. However, the RPF study also established that the project has the potential to generate some negative social impacts especially during implementation of enhanced public works and livelihood support activities under the Improved Social and Economic Inclusion Component. Some of the potential negative impacts may include loss of property on people's land, loss of access to cultivable land and grazing land and temporary disruption of access paths.

To manage these potential negative impacts, it will be necessary for the project to ensure that the principles and guidelines advocated by this RPF are adhered to during project screening, appraisal and implementation.

CHAPTER ONE

INTRODUCTION AND BACKGROUND TO THE PROJECT AND RESETTLEMENT POLICY FRAMEWORK

1.1 Introduction

Malawi is a relatively small country with one of the highest population densities in Southern Africa. The country has an estimated population of 17.5 million people against a land size of about 9.5 million hectares. The average population density is 186 persons per square kilometre. About 84% of the population live in rural areas and depend on smallholder farming while only 16% of the population live in towns. At least 76% of the urban population live in poor peri–urban and informal settlements. Agriculture is the mainstay of Malawi's economy, accounting about one third of gross domestic product and about over two thirds of export revenue.

Smallholder farming occupies about 4.5 million hectares while estates occupy about 1.2 million hectares of rural land. Some studies indicate that as much as 55% of the smallholder farmers have less than half of a hectare of cultivable land. As a result of this constraint, most rural households face difficulties in producing enough output for food and cash throughout the year. Poverty levels are estimated at 60% and 65% of populations in rural and urban areas, respectively.

The Social Support for Resilient Livelihoods Project is one key instrument of the Government of the Republic of Malawi for addressing poverty reduction among the communities. As per its project development objective, the project is expected to improve resilience among the poor and vulnerable population and strengthen the national platform for safety nets. This supports the aspiration of the Malawi Growth and Development Strategy III, which is to build a productive, competitive and resilient nation.

1.2 Overview of the SSRL Project and the Additional Financing

The Social Support for Resilient Livelihoods Project (SSRLP) is a project initiated by the Government of Malawi with funding from the World Bank. The project aims to contribute towards stronger, more shock sensitive safety net system, leading to more shock sensitive livelihoods and poverty reduction. It is expected to be implemented for a period of five years from July 2020 to June, 2025 and it has an estimated target population of 622,000[2] households.

The SSRLP has three main components:

(1) Improving Social and Economic Inclusion: The Improving Social and Economic Inclusion component will have two subcomponents:
(a) Enhanced Core Programs and (b) Financing Scalable Safety Nets. The Enhanced Core Programs subcomponent will focus on the consolidation of an appropriate package of support for beneficiary households with a mix of program interventions, including social cash transfers (SCT), livelihoods support, and enhanced public works (EPW) as well as an option for scalable financing in times of crisis.

(2) Strengthening Harmonized Delivery Systems: Under strengthening harmonized delivery systems component, the project will establish systems that will promote harmonization within the social safety net sector and potentially link to other sectors to improve effectiveness of delivery. Such systems will include an institutionalized national social registry (Unified Beneficiary

[2] This is an estimated working figure which includes 35,000 and 400,000 beneficiaries from the EPWP under the original and additional financing respectively; 147000 beneficiaries from SCTP and about 40,000 from Scalable Safety Nets component.

Registry), electronic payment and citizen's engagement and social accountability including grievance redress

(3) Capacity Building and Institutional Strengthening Support: The capacity building and institutional strengthening support component will support the enactment of the MNSSP II, the setting up of the necessary institutional structure for its implementation, as well as the general management and evaluation of the SSRLP.

The Government of Malawi has applied for Additional Financing (AF) from the International Development Association to cover the financing gap as well as scale up coverage of core components of the Social Support for Resilient Livelihoods Project (SSRLP). Project Development Objective of SSRLP Additional Financing remains the same, which is "to improve resilience among the poor and vulnerable populations and strengthen the national platform for safety nets". The indicative budget for the additional financing is US$175 million and these resources are expected to be utilized from 2022 to 2025.

The specific objectives, areas of focus, and breakdown of resource allocations for the SSRLP Additional Financing are as follows:

(1) Covering the existing financing gap in SCTP: The AF is expected to fully cover the gap in *Subcomponent 1.1: Enhanced Core Programs,* and specifically in its activity *1.1.1: Social Cash Transfer Program.* This activity originally received US$59 million equivalent from the IDA grant, had a US$41 million original gap plus another US$10.5 million spent for COVID 19 Urban Cash Intervention (CUCI) that was not included in the original project design. This gap was recently reassessed by GoM to be US$34.5 million, which is the amount needed to cover the SCTP in 11 districts covered by the World Bank until the project closing. Therefore, US$35 million from the AF has been earmarked for the SCTP to fill the program's financing gap in full.

(2) Scaling up EPWP to mitigate the risk of ex-AIP beneficiaries falling into deeper poverty: This is to address the risk of transitioning Affordable Input Program (AIP) beneficiaries falling into even deeper poverty. Thus the Enhanced Public Works Program/ Climate Smart Public Works Program (EPWP/CSPWP) is expected to be expanded over the 35,000 beneficiaries covered by the original financing to ensure comprehensive and efficient social safety net packages for different profiles of poor beneficiaries, and to establish pathways to graduation. The EPWP, which currently has US$20 million allocated under the original IDA, will be topped up with another US$108 million. During the predecessor MASAF IV project the regular public works intervention was drastically reduced and then discontinued until an enhanced program was designed, piloted and evaluated. Under the AF, the EPWP will reach out to 400,000 beneficiaries who will work for 6 months per year for two years in all the 28 district councils. These would be households transitioning from the AIP. For comparison, it should be noted that the traditional MASAF IV public works program used to reach regularly around 450,000 beneficiaries per operational cycle, and at times of emergencies this number surpassed 900,000. In terms of design of the EPWP, the Government of Malawi will continue with the Catchment Management approach where focus of the public works is on catchment rehabilitation and restoration activities such as afforestation, forest regeneration, soil and water conservation technologies, river bank protection and disaster risk reduction measures.

(3) Scaling up Livelihoods Support to ensure success of the SCTP and EPWP and provide a path to graduation: The Livelihoods Support would be allocated US$13 million from the AF to allow the inclusion of more of the SCTP and EPWP beneficiaries in graduation and skills programs. This program has proven very effective in providing a sustainable pathway out of poverty for the

beneficiaries of the other core programs. It is a necessary element of the effectiveness of the core programs package.

(4) Increasing the IDA allocation for the Scalable Social Safety Nets subcomponent: The Scalable Social Safety Nets will receive an additional US$10 million from the AF. This will expand the coverage from the scalable mechanism from three to six districts for the next two agricultural seasons. The additional funding will be used to increase the contingent financing instrument, complementing the US$10 million premium financing provided by GRIF, which will be procured across all six districts under scalable safety nets. Adding additional resources to the contingent finance instrument will allow flexibility to respond to shocks that don't meet the insurance payout trigger.

(5) Ensuring proper systems building and project management: Finally, US$5 million will be allocated to *Component 2: Strengthening Harmonized Delivery Systems*, to expand the use of e-payments for all core safety nets activities table; and US$4 million will be added for capacity building, project management, and operational costs for the expanded core programs

Table 1: Summary allocation of the AF by components/activity

Component Subcomponent Activity	**Original amount (IDA/RETF)**	**AF amount (IDA) (400,000 EPWP beneficiaries working 6 months per year)**	**Purpose**
Subcomponent 1.1: Enhanced Core Programs, activity 1.1.1: **Social Cash Transfer Program (SCTP)**	**US$59 million** equivalent IDA grant and US$41 million financing gap	**US$35.0 million** equivalent IDA grant/credit	**Filling in a financing gap** Details: 147,000 beneficiaries in 11 districts receiving social cash transfer payments for the whole duration of the project
Subcomponent 1.1: Enhanced Core Programs, activity 1.1.2: **Enhanced Climate Smart Public Works Program (EPWP)**	**US$20 million** equivalent IDA grant	**US$108.0 million** equivalent IDA grant/credit	**Scaling up** Details: 400,000 transitioning beneficiaries from the AIP, in 28 districts working for 6 months per year, for a period of 2 years
Subcomponent 1.1: Enhanced Core Programs, activity 1.1.3: **Livelihoods Support (Social and Economic Inclusion)**	**US$20 million** equivalent IDA grant	**US$13.0 million** equivalent IDA grant/credit	**Scaling up** Pilot Graduation program for 1000 SCTP beneficiaries; complementary livelihood support for groups of beneficiaries of SCTP and EPWP.
Subcomponent 1.2: **Financing Scalable Safety Nets**	**US$27 million** equivalent of which US$10 million equivalent IDA grant and	**US$10.0 million** equivalent IDA grant/credit	**Scaling up** Increasing the available financing to cover

	US$17 million GRiF Trust Fund		additional beneficiaries in three new districts
Component 2: **Strengthening Harmonized Delivery Systems, Subcomponent**	**US$11** million equivalent IDA grant	**US$5.0 million** equivalent IDA grant/credit	**Scaling up** Migrating the payment system to e-payment for the delivery of both SCT and EPWP programs , and delivering safety nets benefits to beneficiaries for a period of 3.5 years, including targeting of scaled-up EPWP program;
Component 3: **Capacity Building and Institutional Strengthening Support**	**US$5 million** equivalent IDA grant	**US$4.0 million** equivalent IDA grant/credit	**Scaling up** Providing sufficient financing to manage expanded core programs
Component 4: **Contingent Emergency Response (CERC)**	**US$0**		
TOTAL	**US$142.0 million** (US$125.0 million IDA and US$17.0 million GRiF)	**US$175.0 million**	

The nature of interventions being proposed under the SSRLP and the Additional Financing is **NOT** expected to trigger significant resettlement issues. However, the implementation of the climate smart/enhanced public works and livelihood support activities under component 1 will require use and / or acquisition of some land. This may lead to some negative social impacts such as loss of property on people's land, loss of access to cultivable land, loss of access to grazing land and temporary disruption of access paths. Furthermore, given the fact that the interventions will mostly be community driven, risks of involuntary resettlement may arise because the preferred choice of sites by communities for such subprojects often happens to be within the vicinity of the beneficiaries themselves.

It is the intention of the SSRLP and the Additional Financing to maximize its positive impact overall by avoiding, eliminating or minimising the negative footprints. In this regard, the developers of the project are keen to comply with relevant national and international regulatory requirements and standards on land acquisition and use including the World Bank Environmental and Social Standard on Land Acquisition, Restrictions on land use and Involuntary Resettlement (ESS5).

1.3 Project proponent and implementing agencies

1.3.1 Project proponent

The project proponent is Government of Malawi through the National Local Government Finance Committee. Details of the proponent are provided as follows:

Project Developer: National Local Government Finance Committee

Project details: Social Support for Resilient Livelihoods Project Additional Financing

Postal Address: National Local Government Finance Committee, Red Cross House, Area 14, Private Bag 352 Lilongwe 3, Tel: +265 1 755 666, Fax: +265 1 755 949,

E-mail: nlgfc@nlgfc.gov.mw

Contact Person: The Executive Director

1.3.2 Implementing agencies

The implementation of the Social Support for Resilient Livelihoods Project and the Additional Financing will require involvement of many stakeholders. Therefore, project will build on existing implementation structures and arrangement built under MASAF IV with strong reforms. ***Steering committee*** will be in place, chaired by the Secretary to Treasury. This committee will meet twice a year, and will provide overall leadership to the project implementation, with support of a **Technical Working Committee (TWC)** chaired by the Principal Secretary of MFEPD. Members will be drawn from representatives of the key Sector Ministries (including Gender, Local Government, Youth, Trade, EPD, Community, COMSIP, Agriculture, Lands etc. The TWC will also meet twice a year and will report to Steering Committee.

The National Local Government Finance Committee (NLGFC) will be the main implementing agency and overall manager of project resources. NLGFC will be working in close cooperation with several key implementing partners, including MFEPD, Ministry of Gender, Children, Disability and Social Welfare (MGCDSW), Ministry of Natural Resources, Energy and Mining, Ministry of Local Government and Rural Development, Ministry of Lands. At District Level operational delivery of component 1 will be the responsibility of district councils, which are decentralised legal entities and the existing DSSC will be the main coordination mechanism. While at Community Level Implementation process will be led by the Community Social Support Committee (CSSC) within the Village Development Committee (VDC).

1.4 Justification and Objectives of the Resettlement Policy Framework

The need for Resettlement Policy Framework emanates from observations which indicate potential risks of some of the sub projects under the Social Support for Resilient Livelihoods Project (SSRLP) on land, assets and livelihoods. As stated, the interventions being proposed under the SSRLP are **NOT** expected to trigger significant resettlement issues. However, the implementation of the climate smart/enhanced public works and livelihood support activities under component 1 will require use or acquisition of some land. This may lead to some negative social impacts such as loss of property on people's land, loss of access to cultivable land, loss of access to grazing land and temporary disruption of access paths. Furthermore, given the fact that the interventions will mostly be community driven, risks of involuntary resettlement may arise because in the preferred choice of sites by communities for such sub-projects often happens to be within the vicinity of the beneficiaries themselves. At this stage of project development, the specific locations of sub projects within the communities are not known as land sites would be selected at a later stage by the project beneficiary communities themselves with the support village development committees (VDC) and extension workers.

The aim of Resettlement Policy Framework (RPF) is to provide a tool for the screening of sub-projects and to ensure that where land acquisition for the sub-project activities is inevitable, the acquisition of such land should be conceived and executed in a manner that is consistent with the requirements of national law and the World Bank ESS5 on land acquisition, restriction on land use and involuntary resettlement. The RPF also provides a process to be used in identifying individuals to be affected by project activities as well as the type and magnitude of impact and outline the process for preparing a Resettlement Action Plan. The RPF includes methods for identifying processes for monitoring and evaluating resettlement impacts in planning and implementation of sub-projects to be funded from Social Support for Resilient Livelihoods Project. Specific objectives of the Resettlement Policy Framework are as follows:

- To outline steps in resettlement screening of sub projects and description of the process for preparing and approving resettlement plans.
- To describe potential socio-economic impacts from resettlement.
- To describe policy and legal framework on land acquisition and resettlement and identify gaps between national legislation and regulatory requirements and the WB ESS5 and suggest mechanisms to bridge such gaps.
- To describe eligibility criteria for compensations to various categories of affected people.
- To describe methods of valuing affected assets for purpose of compensation.
- To outline institutional frameworks and suggest an organisational structure responsible for the implementation of resettlement activities.
- To outline budget estimates and funding arrangements for resettlement.
- Outline principles and objectives governing resettlement preparation and implementation.

Implementation of the RPF is expected to avoid or minimize the loss of land, immovable assets, and physical displacement of residential and other structures as much as possible during the planning and implementation of sub-projects under the Social Support for Resilient Livelihoods Project given other technical, economic, financial, and environmental considerations.

1.5 Key Principles of RPF

The overall policy guidance on execution of Social Support for Resilient Livelihoods Project– SSRLP and sub-projects is to avoid resettlement related cases at the earliest opportunity. It is the considered view of the government that by and large resettlement disrupts the existing social and economic fabric of the poor communities. In this regard, the implementation of sub-projects to be funded from Social Support for Resilient Livelihoods Project will be coordinated on a set of principles in order to avoid or minimise resettlement related risks. The principles revolve around the basic tenets of the World Bank Environmental and Social Standard 5 (ESS5) as well as the existing policies and pieces of legislation of the Government of Republic of Malawi. Key principles are as follows:

- **Principle 1:** Sub projects eligible for funding from SSRLP shall be those proposed in suitable sites. Suitable sites for funding of a sub-project are those sites where the implementation of a project would not bring about involuntary resettlement, involuntary physical dislocation, eviction of squatters, loss of land (whether ownership is recognised by customary land tenure or land titles, impact on cultivations and property, loss of access to property, loss of access to natural resources and other economic resources. During appraisal, availability of a written proof of properly acquired land will be one of the pre-requisite conditions for approval of a proposed sub-project. Thus responsibility for identification and provision of a suitable site for a proposed sub-project will be with the community through the local chiefs and the area and village development committees.

- **Principle 2:** In cases where compensation for improvements is still found to be inevitable for sub-project implementation, The Government of Malawi through NLGFC, Ministry of Lands, Ministry of Finance, Economic Planning and Development, Ministry of Local Government and Rural Development in consultation with local leaders will make sure that appropriate compensation and resettlement assistance to the project affected person either in cash or kind is done in accordance with the process outlined by this Resettlement Policy Framework.

1.6 Funding and funds for compensation and resettlement

Though the fundamental principle in the implementation of this RPF is to avoid triggering of compensation and involuntary resettlement at the screening stage of the sub-projects by exploring relocation of the sub-projects to alternative sites with minimal risks, issues of resettlement cannot be completely ignored. There remains a possibility that such issues may arise in the course of the project life

span. In such cases, Government through NLGFC, Ministry of Lands, Ministry of Finance and Economic Affairs, Ministry of Local Government, in consultation with local leaders, will make sure that appropriate compensation and resettlement assistance to the project affected persons either in cash or kind is done. In case there is a serious need for compensation and resettlement in a sub-project, Local authorities will carry out and administer a RAP or ARAP as per the guidelines contained in this RPF.

1.7 Potential Users of the Resettlement Policy Framework

The Resettlement Policy Framework has been prepared as a strategic guide on resettlement planning for sub-projects to be funded from Social Support for Resilient Livelihoods Project. It outlines policies, procedures, screening criteria for impacts, and legal and administrative framework on resettlement and compensations to project affected persons in course of the project. Main potential users of this manual are staff involved in the planning and management of Social Support for Resilient Livelihoods Project. These include staff of National Local Government Finance Committee, National level staff of collaborating institutions in the project, District Councils (DC), District Executive Committees (DEC), staff of local authorities and Village Development Committee (VDC), Area Development Committees (ADC) and Area Executive Committees (AEC). The framework will further be useful to NGOs; civil society organisations and development partners such as the World Bank.

The Resettlement Policy Framework has been organised into eight (8) chapters as follows:

Chapter 1: Introduction and background to the project;
Chapter 2: Project Description;
Chapter 3: Policy, Legal and Administrative Framework on Resettlement;
Chapter 4: Social Assessment and Socio-economic Status of the people in Malawi;
Chapter 5: Principles, Procedures, and Processes Governing Resettlement Activities within SSRLP;
Chapter 6: Stakeholder Consultation, Communication and Procedures for Grievance Redress
Chapter 7: Organizational Arrangements, Budget Estimates, Implementation Schedule And Capacity Building;
Chapter 8: Monitoring and Evaluation of Resettlement Activities;
Chapter 9: Conclusion and Recommendations.

1.8 Methodology for the preparation of the RPF

The RPF study for the proposed project was carried out in accordance with the Terms of Reference that were provided by the National Local Government Finance Committee as provided in Annex 1. The study was undertaken in April 2019. The study methodology has been divided into three parts namely:

a. Data Collection;
b. Data Analysis; and
c. Preparation of the RPF report.

Data required for the RPF study were collected through primary and secondary sources, which included:

a. Literature review;
b. Site visits; and
c. Public consultation.

Data already available by means of books, reports and unpublished documents and newspapers were used as secondary data sources in this study. Field surveys were mainly used to collect data of physical, biological and socio-economic environment in the districts where the project will be implemented.

1.8.1 Literature review

Literature review involved acquisition and review of documents, reports, maps and drawings relevant to the project. Some of the documents which were reviewed included national and international policies and laws that promote best compensation and resettlement practices and environmental and social management practices when implementing development projects. Besides, a number of socio-economic

profiles for the different districts were also reviewed. Examples of the information obtained from the different documents included project design, planned project activities and description, population statistics and socio-economic data.

1.8.2 Site visits

A number of visits to the different districts and likely project areas were carried out. The site visits served as an opportunity for the RPF drafting team to familiarise themselves with the proposed project areas and used this opportunity to brief staff from different District Councils and the communities in the districts about the coming of the project.

1.8.3 Stakeholder Consultation

The preparation of this document has followed an extensive consultation process with various stakeholders. Stakeholder consultation meetings were conducted at district and community levels in sampled districts of Chitipa, Dowa, Karonga, Nkhotakota, Balaka and Phalombe with the members of District Executive Committee (DEC) and the communities respectively. Figure 1 provides a picture of some of the stakeholder consultative meetings at community and district level in Balaka.

a). *A community stakeholder consultative meeting underway inside a Teacher Development Centre in Balaka*

b). *District level stakeholders listen attentively to a presentation in Balaka*

Figure1: Some of the stakeholder consultative meetings at community and district level in Balaka

Stakeholder consultations help to identify and promptly address the concerns of different stakeholders and the PAPs regarding their rights and interests. Stakeholder consultative meetings were specifically conducted in order to:

a) Inform the stakeholders about the project;
b) Identify concerns from different stakeholders concerning the project;
c) Address different concerns of stakeholders about the project; and
d) Document the concerns from stakeholders about the project with a view to minimise potential conflicts that could arise during project implementation.

1.8.3.1 Identification of stakeholders

The drafting team together with the client identified the stakeholders who needed to be consulted for the project. These included the members of the District Executive Committee (DEC) and communities in Chitipa, Dowa, Karonga, Nkhotakota, Balaka and Phalombe districts. The DEC was particularly earmarked for consultation because its membership comprises different technical staff at district level that

work with the different communities in development programmes. Based on the roles DEC members play at district level to assist the local communities develop, it was felt that they could have the type of information the drafting team needed in development of the RPF. Details of the stakeholders at district and local levels are provided in table 1.

Table 1 Details of stakeholders consulted

Stakeholder	Relevance
Local Government stakeholders	
District Executive Committee members for Chitipa, Dowa, Karonga, Nkhotakota, Balaka and Phalombe which includes Agricultural Officers; Environment Officers; District Planning and Logistics; Education and Traditional Authority Leaders; District Health Officers; District Forestry Officers; District Fisheries Officer; District Lands Officers; District Information Officers; District Irrigation Officers, NGOs and CBOs	▪ Support for the project; ▪ Vital source of information about the population trends and other dynamics within the project area; ▪ Can be utilised as the contact persons in the project area; ▪ Their structures at the lower local government can be utilised in the mobilisation of communities for the good of the project; ▪ Can be used in the follow up and supervision of community and non-technical programmes; ▪ Given their experience in the project area, they can come up with proposals on how to social mitigate the impacts of the project; ▪ Responsible for security in the area; ▪ Will help the drafting team to identify "restricted area" graves, wetlands, and shrines.
Community members stakeholders	▪
Village heads, elders and other influential people in the project area and community members	▪ Can provide vital information at the village level such as number of households in village, etc. ▪ Can be used as mobilisers of the community members ▪ Provide support to the project to mobilise the community, to lead the community in implementation of various mitigation measures and to channel information to and from the community ▪ Help in identifying assistants to consultants e.g. enumerators.

1.8.3.2 Message to stakeholders

The message to the stakeholders included that the government of Malawi intends to implement the Social Support for Resilient Livelihoods Project Additional Financing to improve resilience among the poor and vulnerable population and strengthen the national platform for safety nets. The project will support the Malawi National Social Support Programme II (MNSSP II). It is entirely devised around the MNSSP II strategy and Implementation Plan whose strategic objectives are to provide welfare support to those who are unable to construct viable livelihoods; protect the assets and improve the resilience of poor and vulnerable households; improve the productive capacity and asset base of poor and vulnerable households for them to move above the poverty line; and to establish coherent and progressive social support synergies by ensuring strong positive linkages to influence economic and social policies and disaster risk.

The SSRLP Additional Financing will have three main components: (1) Improving Social and Economic Inclusion, (2) Strengthening Harmonised Delivery Systems, (3) Capacity Building and Institutional Strengthening Support.

Areas discussed during the meetings included the following:

a) Nature of the project;
b) Project impact areas;
c) Activities of the project;
d) Environmental and social impacts of the different project activities;
e) Measures to manage the different impacts;
f) Most important features in the project impact area;
g) Sensitive areas (protected areas, graveyards, historical sites, etc.) in the project impact area;
h) Socio-economic and environmental issues to arise from implementation of the proposed Project activities;
i) Gender and HIV issues;
j) Livelihood programmes in the area;
k) Land tenure and land use;
l) Employment opportunities;
m) Occupational health and safety;
n) Benefits (increased trade, employment, social amenities and transport); and
o) Positive or negative experiences with other projects of similar nature.

1.8.3.4. A summary of the issues raised during stakeholder consultation meetings

A number of issues were raised during the stakeholders' consultation meetings at district and community levels. Overall, the stakeholders felt that the SSRLP Additional Financing, if well implemented, will offer several benefits. The positive issues raised during stakeholder consultation meetings included that the project will lead to:

- increase in employment opportunities;
- increased business opportunities;
- increased income among households;
- disaster impact mitigation;
- improved nutrition at household level;
- reduced charcoal burning;
- reduced rate of crime;
- reduced human trafficking;
- skills transfer to the project beneficiaries and local artisans;
- improved water availability and soil productivity;

Concerns about the project included leakage of private beneficiary information, exclusion errors, potential for loss of land, assets and restriction on land use, potential conflict among members of the target communities, loss of vegetation, increased generation of waste, increased risk or spread of HIV & AIDS and other STIs, disruption of access roads, water and soil pollution, child labour and risk of Gender Based Violence and disruption of marriages. Details of the issues raised during the stakeholder consultation meetings are in annex 6.

CHAPTER TWO

2.0 PROJECT DESCRIPTION AND LINKAGES TO RESETTLEMENT

The Social Support for Resilient Livelihoods Project (SSRLP) Additional Financing is a project initiated by the Government of Malawi with funding from the World Bank. The project aims to contribute towards stronger, more shock sensitive safety net system, leading to more shock sensitive livelihoods and poverty reduction. It will be implemented for a period of five years from July, 2020 to June, 2025.

2.1 The Project Development Objective

The project development objective of the SSRLP and the Additional Financing is to improve the resilience among the poor and vulnerable population and strengthen the national platform for safety nets. Specifically, the project seeks to:

- Increase social and economic inclusion of the poor and vulnerable population through provision of predictable consumption support but also linkages to other services and economic investment opportunities
- Improve delivery mechanisms of national social support programmes through harmonisation and innovation.
- Strengthen capacity of social support institutions for effective, efficient and well-coordinated delivery of social support programmes in Malawi.

2.2 Project Components

As already explained, the Additional Financing will not lead to introduction of new activities into the SSRLP but will just support the expansion of the existing activities within the parent SSRLP project components.

The SSRLP has three main components namely the Improved Social and Economic Inclusion, Strengthened Harmonised Delivery Systems, and Capacity Building and Institutional Strengthening Support. These components have sub-components which have several sub-activities to be carried out in order to achieve the overall objective of the project.

The description of the key activities under each of the SSRLP project components which additional financing seeks to support are therefore summarized as follows:

1. Improved Social and Economic Inclusion
   The component focuses on the consolidation of an appropriate package of support for beneficiary households with a mix of programmes interventions, including social cash transfers, livelihoods support, and enhanced public works, as well as an option for scalable financing in time of crisis.
   1.a Sub-component 1.1: Enhanced Core Programmes
   i. Social Cash Transfer Program (SCTP): The programme will provide cash transfers to ultra-poor labour constrained household to enable them meet their basic consumption needs. It will also promote strong programme linkages to other complimentary services such as nutritional and ECD services, education, health services, livelihoods interventions and graduation approach to enable the targeted households become more resilient to social, economic and environmental shocks.
   ii. Climate Smart/Enhanced Public Works Programme (EPWP): This core programme will provide cash transfers to ultra-poor households with labour who will be engaged in implementation of sub-projects selected using catchment management approach. The EPWP will consist of a variety of labour-intensive sub-projects to create important community assets. Emphasis is on catchment management

activities such as tree nurseries establishment, afforestation, the construction of different soil and water conservation (SWC) measures and flood control structures, environmental conservation and sanitation. The climate smart public works program will take on board the lessons learnt from the EPWP pilot

iii. Livelihood Support: Support to sustainable livelihoods and eventual graduation from extreme poverty is a major policy priority of this project. Therefore, this core programme will provide livelihood support to SCTP and EPWP beneficiary households to enable them to increase their productive assets and incomes thereby building resilience in a sustainable manner. It will complement consumption support provided through SCTP and EPWP by providing referrals to other productive and social services (WASH; Nutrition; Early Child Development), Linkages to financial institutions including COMSIV and other Savings & Loans Groups; Entrepreneurial and basic skills including technical & vocational skills for the youth; business management, financial literacy and safeguards. Furthermore, a smaller graduation component will target a smaller subset of the beneficiaries (SCTP & EPWP) with interventions focusing on value chain and market linkages; livelihood grants; coaching and mentoring; and cooperative development and management.

1.b Sub-Component 1.2: Scalable Safety Nets: This component will focus on putting up a mechanism for enabling the cash transfer programmes (SCTP & EPWP) to scale up vertically and horizontally in response to weather related disasters in the country. Focus will, therefore, be on provision of relief if there is a large, unpredictable weather-related shocks rather than annual increases in vulnerability related to the lean season. This will enhance the resilience of the households to weather-related shocks, and protect human capital gains and prevent households from falling back/further into poverty.

2. Strengthening Harmonised Delivery Systems

2. a Sub-Component 2.1:Social Registry/Unified Beneficiary Register (UBR). This will support data collection to 100% in districts where data is at 50%. Focus will also be on institutionalisation of the UBR at both national and district level to inform policy planning and programming to become a national tool for targeting. Communication campaigns will be undertaken at national and district level targeting different groups of people and institutions to enhance their understanding of the UBR and its use. Linking of UBR to other national data platforms and/or systems such as NSO, NRB, and MEC to provide a pool of common variables that can enhance positioning of the UBR as a national registry will also be pursued by the project. The activities are expected to contribute towards strengthening the delivery of a harmonised social support systems.

2. b Sub-Component 2:2: *E-payments.* The project will promote E-payment, comprising a combination of banks, mobile network operators (MNOs) and payment service providers (PSPs) to be the mode of payment for transfers to SCTP and EPWP beneficiaries. This is expected to offer value for money and contribute to financial inclusion objectives. Some of the activities to be undertaken include GIS Mapping to understand available financial access points and spatial distribution of beneficiaries. Capacity building trainings specifically on procurement negotiations and e-payment management for districts and central level teams will be made.

2. c Sub-Component 2.3: *Citizens' Engagement*. This subcomponent will facilitate citizens' participation in monitoring and providing feedback on project activities and other service delivery in the project area. This will include strengthening existing systems and tools for

grievances management at the community level that enables citizens to provide feedback on the delivery and raise complaints, and also support implementation of environmental and social safeguards.

3. Capacity Building and Institutional Strengthening Support

This component will build local and national government capacity to implement this project which includes development of operational tools for implementation.

3. a Sub-Component 1: Learning and Evaluation. The component will strengthen learning and evaluation under the new programme, with an emphasis on combining different approaches. For example – impact and process evaluations, use of smart technologies for real time course corrections. The findings from these exercises will be used to strengthen the project's ongoing implementation and adjust its design, as may be required.

3. b Sub-component 2: Institutional Support. The project will support operation costs of the project at national level, contribute towards the administration costs of the implementing agency, NLGFC, and finance contracts such as project officers in the impact districts. Support will also be directed towards establishment and operationalisation of appropriate governance structures within the MNSSP II set up for smooth implementation of the project. Financial support will also be provided for the design of a communication strategy and detailed plan of activities for creating awareness on project aspects at all levels of project implementation**.** Further support will be required for review of MNSSP Policy and enactment of MNSSP.

3. c Sub-component 3: Enhancing accountability and transparency. To reduce pilferages and misuse of project resources, internal control measures and systems will be strengthened through provision of adequate financial support to the financial compliance and internal audit units of the project implementing agent, the NLGFC. The procurement systems of the institution and Local Authorities will also be strengthened through various interventions.

The project will continue to use the anti-fraud and anti-corruption measures initiated during previous Bank operations including working with the Anti-corruption Bureau. New initiatives will be devised and implemented in a more systematic and effective manner. These will include: (i) sensitisation and awareness of targeted communities to prevent misuse of project resources; (ii) enhancing the engagement of citizens and stakeholders; and (ii) enforcement through investigation and prosecution.

The activities which are likely to trigger the need for acquisition of land are mostly anticipated to come from implementation of the sub-projects under the CSPWP/EPWP and Livelihood Support components of the SSRLP. The identification and sitting of potential sub-projects under the CSPW/EPWP will be guided by the Public Works Guidelines[3] and the Project Implementation Manual[4] for the climate smart/enhanced public works which prescribe the type of eligible projects under the catchment management approach. These include sub-projects such as:

- Afforestation - both tree planting and natural regeneration; nursery establishments
- Land, Soil and Water Resources conservation activities such as river bank protection, gully reclamation; manure making, vetiver planting, construction of marker ridges, swales, contour bunds, soak pits etc.

[3] National Local Government Finance Committee, (2016). *The Public Works Guidelines*. NLGFC. Lilongwe.

[4] National Local Government Finance Committee, (2022). *Climate Smart/Enhanced Public Works Programme – Draft Revised Project Implementation Manual*. NLGFC. Lilongwe.

- Selected access roads - with associated drainage improvements such as culverts, drifts, check dams and mitre drains (mostly done using hand tools and not heavy machinery;
- Sanitation and Environmental conservation projects;

2.2Target Districts and Beneficiaries

Under the Additional Financing, Social Cash Transfer Programme will continue in 11 World Bank funded districts which are Rumphi, Karonga, Nkhotakota, Kasungu, Dowa, Lilongwe, Ntchisi, Blantyre, Chiradzulu, Dedza and Nkhata Bay. While the CSPWP/EPWP will initially scale up to cover five more catchments in the previous EPWP pilot districts of Chitipa, Karonga, Nkhotakota, Kasungu, Dowa, Lilongwe, Balaka, Blantyre, Chiradzulu and Phalombe and add ten new catchments in each of the four additional districts of Ntchisi, Rumphi, Nkhatabay and Dedza. Later, the CSPWP/EPWP component will be rolled out to the remaining fourteen districts with the support of the additional financing.

The SSRLP and the Additional Financing is expected to cover approximately 147,000 ultra-poor and labour constrained households per year through the Social Cash Transfers (SCTP), which is currently covering about 113,148 households in 11 districts under World Bank financing. Although smaller than the previous MASAF IV PWP, the new Climate Smart/Enhanced Public Works Program (CSWP/EPWP) is expected to reach up to 435, 0000[5] beneficiary households per year, of which focus would be given to ensure participation of women and youths. Poor households in new districts would continue to be targeted through a combination of community-based targeting approaches and a proxy means test.

2.3 Generic Project Cycle and Linkages to Resettlement Issues

The generic project cycle of sub projects to be funded from the SSRLP has eight sub-steps. These steps are outlined in the diagrammatic flow of the project cycle in figure 1. Identification of resettlement issues will be done during project identification and site selection process in stage 1. It is at this stage that the community will have to conduct resettlement screening and work out necessary compensatory measures before the project can be appraised by the District Executive Committee (DEC).

[5] This figure includes 35,000 beneficiaries under the initial SSRLP funding and 400,000 beneficiaries expected from the Additional Financing

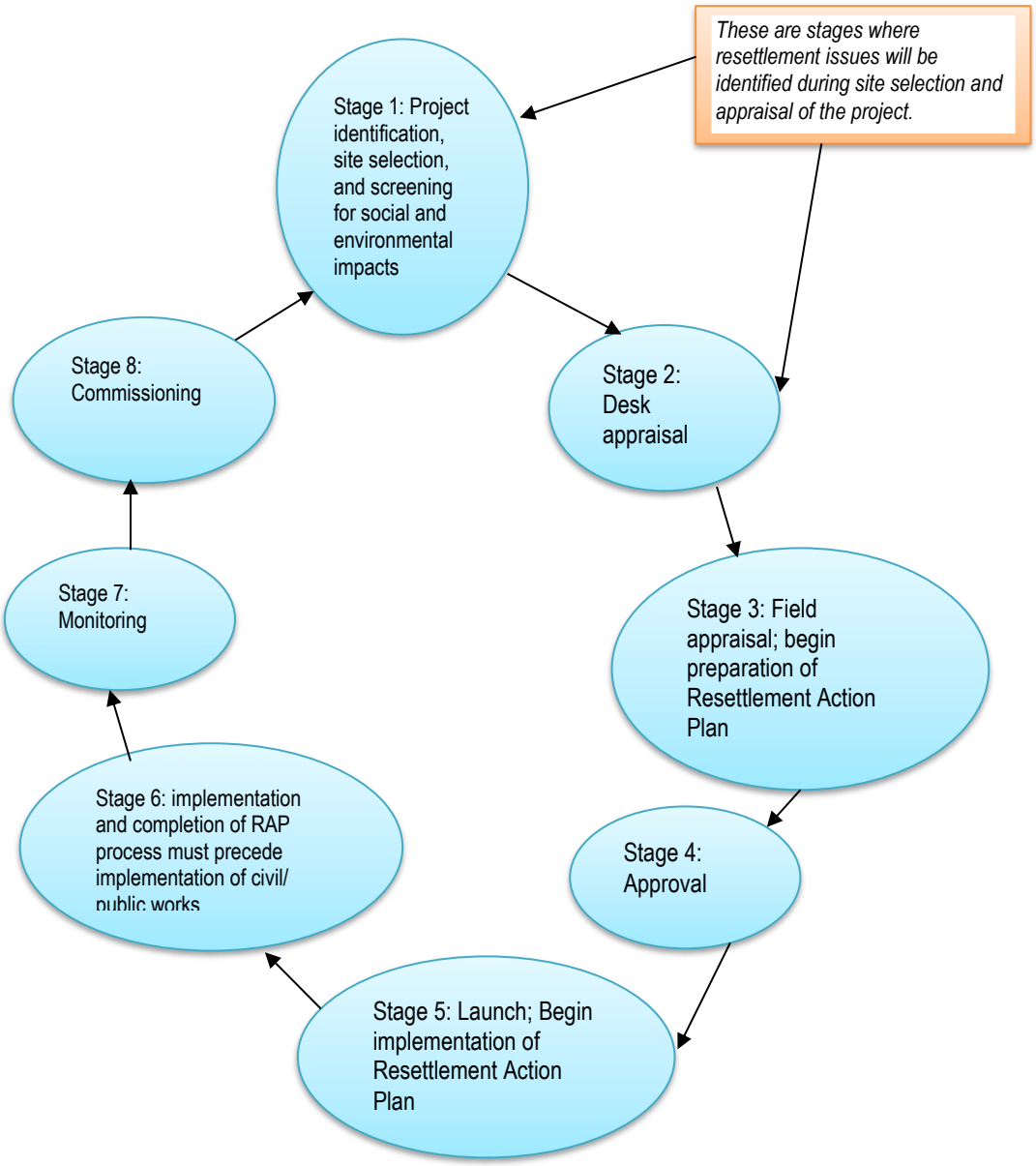


Fig.2: Project Cycle Related to Resettlement

2.4 An Overview of Land Uses in Malawi

Malawi is a relatively small country with one of the highest population density in Southern Africa. The country has an estimated population of 17.5 million people against land size of about 9.5 million hectares. The average population density is 186 persons per square kilometre. About 84% of the population lives in rural areas and depends on smallholder farming while only 16% of the population lives in towns. At least 76% of the urban population lives in poor peri-urban and informal settlements. Agriculture is the mainstay of Malawi's economy, accounting about one third of gross domestic product and over two thirds of export revenue. Smallholder farming occupies about 4.5 million hectares while estates occupy about 1.2 million hectares of rural land. Some studies indicate that as much as 55% of the smallholder farmers have less than half of a hectare of cultivable land. As a result of this constraint, most rural households face difficulties in producing enough output for food and cash throughout the year. Poverty levels are estimated at 60% and 65% of populations in rural and urban areas, respectively.

In context of Malawi situation, community driven interventions pose realistic risks on involuntary resettlements because, by design, the preferred choice of sites by the communities happens to be within the vicinity of the beneficiaries themselves. Resettlement activities within highly populated areas generate long-term setbacks on agro-based livelihood systems.

2.5 Land Tenure Regimes in Malawi

Malawi embraces the capitalistic ideals with regard to land ownership. There are six distinct land tenure classes existing in Malawi. The implementation of the SSRLP would likely involve land access to any one of the classes. Furthermore, cases of construction of new sub-projects within selected sites would trigger land tenure and access changes. The description and extents of the classes of land in Malawi are as follows:

(i) Customary Land

This is land held in trust for all people of Malawi by the State President, who delegates his authority to traditional chiefs. This constitutes about 75% of the total 9.5 million hectares of the land. The land is commonly held and distributed to the people by local chiefs. Although each person has recognised ownership to a piece of land, he or she cannot trade on it as the land can be reassigned to other people in case the chiefs deem it fit. A coherent system in the distribution of land exists in both patrilineal and matrilineal societies. This system has allowed smallholder agriculture to survive without access to bank loans.

(ii) Leasehold Land

This is part of private land that is leased by individuals or other legal residents. The lease period varies according to type of use that someone has applied for. Currently, these fall into three groups of three to 21-year leases for agricultural uses, 33 to 99-year leases for property and infrastructure development; and over 99 year lease for those who would wish to sublease to tenants of 99 years. About 8% of the land in Malawi is in this category.

(iii) Registered Land

This is grouped into two classes called customary registered and adjudicated land. The first exists in Lilongwe District only. This land is registered in the family leader name with all family names in that area registered including the size of their land holdings. Their implicit freehold status as the families can trade in its holding by leasing out or selling bits of it with groups consent. Loans can, therefore, be obtained on strength of their certificates to the land.

The second class is a simplified leasehold system, which allows owners to have certificates for their pieces of land based on survey and registration number. This is common in the urban areas, but has been applied in rural areas for agricultural, commercial and residential uses.

(iv) Freehold Land

This is land which has been granted to persons for perpetuity. The government has no specific control on transactions except on planning permission on uses. This lease is now limited to Malawian citizenship only. It is difficult to enforce conservation measures on this land because of the exclusivity, which the persons enjoy.

(v) Government Land

This is land which is owned and used by government for public utilities, schools, hospitals, government offices and other property, markets, government farms and other public goods throughout the country.

(vi) Public Land

This is land managed by agencies of the government and traditional leaders in trusts for the people of Malawi, openly used or accessible to the public at large. This includes catchment areas, protected forest reserves, national parks, game reserves, *dambos* (flood plains), community forests, river lines, flood plains, wetlands, military sites and others.

2.6 Brief Description of Land Acquisition Approaches for Community Driven Sub-Projects

Specific steps followed in identification, appraisal and assessment of land for a sub-project are outlined in chapter four. Upon identification of the specific land area to be acquired, the village development committee will initiate negotiations with the village heads, and/or occupier(s) or users of customary land, registered proprietor or their representatives. Inter-department cooperation will be utilised wherever necessary to tap on the expertise and experiences of the various stakeholder institutions.

(a) The District Commissioner in consultation with district sector line officials prepare action plans for implementation of land acquisition and resettlement that comply with the provisions of the framework.

(b) Project Affected Persons are then served with a notice with a clear explanation of the purpose of the acquisition, the area of land required and the owner's right to compensation in accordance with the existing laws.

In the case of customary land, District Commissioner/Chief Executive ascertains from the village head, the land register, or whichever is applicable, in order to determine the person or persons who have the right over that land as well as those using the land. And in the case of freehold land the Ministry of Lands (MoL) shall ascertain the registered owner or owners as well as those using the freehold land to be acquired from the land registers.

The District Commissioner/Chief Executive commissions a survey on such land to be acquired. Thereafter, a plan is prepared and certified to be accurate showing:

(i) Land to be acquired;
(ii) Names of the owners and occupiers of that land as far as they can be ascertained; or
(iii) in the case of customary land the name of the land owner who is the holder of the right over the land as ascertained by the local chief and other bonafide local residents; and
(iv) Names of any person using the land but not the owner.

A copy of such plan shall be deposited in the office of the District Commissioner/Chief Executive and another at the premises of the local chiefs. It should be highlighted that in case some project affected persons have objections to the proposed land acquisition and resettlement, their objections have to be done in writing to District Commissioner for or Commissioner for Lands and Valuation within 21 working days after the public notice. Alternatively, formal complaint can be lodged via the traditional authority.

2.7 Description of Potential Socio-Economic Impacts of Resettlements

Resettlement within context of implementation of community driven projects encompasses land acquisition and relocation of existing people from the existing homesteads; impact on assets even if affected person does not need to relocate; restricted access to (natural resources) national parks or legally designated protected areas; and negative impacts on livelihood. Such resettlement exercises undertaken whether within rural communities or urban setting trigger a number of negative externalities on the affected people. In general, some impacts emanate from the consequences following loss of access to their

settlement sites, others from losses of physical assets and loss of access to their traditional productive assets. Furthermore, some impact arises from loss of social cohesion and relations. Examples of potential socio-economic impact from such sources are outlined below:

Table 3: Summary of Main Social and Economic Impacts from Resettlement Activities

Category of losses	Social and economic impacts
Displacement from land	• Landlessness • Loss of productive resource for agriculture and other businesses
Loss of residential property and homestead	• Landlessness, homelessness • Impoverishment of people • Disturbance of house production systems • Loss of sources of income • Loss of or weakening of community system and social networks. • Loss of access to ancestral sites, graveyards • Loss of access to social amenities such as hospitals and schools. • Loss of traditional authority.
Loss of assets or access to assets	• Impoverishment • Loss of sources of income • Loss of employment opportunities (self-employment)
Loss of income sources or means of livelihood	• Impoverishment • Loss of self-employment opportunities • Disruption of attainment of services such as schools, health services resulting in further impoverishment, malnourishment
Loss of identity and cultural survival	• Alienation of persons from their tribal society • Lack of access to community support
Loss of access or proximity to social amenities e.g. water sources, (e.g. boreholes), schools, hospitals and clinics, markets	• Impoverishment. • Loss of sources of income • Increased time to access resources. • Loss or shortage of time for other activities. • Increase in waterborne diseases
Blockage of footpaths/pathways	• Increase in travel distance due to longer route
Loss of grazing land	• Difficulties in rearing livestock
Blockage of access to public water bodies	• Difficulties in collection of water for domestic uses • Difficulties in collection of water for irrigation

CHAPTER THREE

POLICY, LEGAL AND ADMINSTRATIVE FRAMEWORK ON RESETTLEMENT IN MALAWI

3.1 Review of Policies and Laws on Resettlement in Malawi

Policy and legal framework on resettlement in Malawi is drawn from the Constitution of Republic of Malawi, Malawi National Land Policy and various pieces of legislation, which include the newly passed land Acts. Malawi has enacted 10 land related laws including; Land Act, 2016; Customary Land Act, 2016; Land Survey Act, 2016; the Lands Acquisition and Compensation Act, 2016; Physical Planning Act, 2016; Land Survey Act, 2016; the Forestry (Amendment) Act, 2016; Malawi Housing Corporation (Amendment) (No.2) Act, 2016; Registered Land (Amendment) Act, 2016; Public Roads (Amendment) Act, 2016; and Local Government (Amendment) Act, 2016. The Ministry of Lands is currently preparing the regulations for the implementation of these laws, which should adequately protect the PAP's and other stakeholders' interests. The following paragraphs highlight the resettlement related policies and Acts, which should be adhered by the SSRLP implementation.

3.1.1The Constitution of Republic of Malawi

2.1. Constitution of Malawi (1995)

The Constitution of the Republic of Malawi is the supreme law of the land. All other pieces of legislation or acts of government are valid to the extent of their consistency with the Constitution, according to section 5 of the Constitution. Several judgments of the High Court and even the Supreme Court confirm the position. It is, therefore, imperative that the project complies with this and, indeed, any other relevant laws.

Under section 13 of the Constitution, the State has the responsibility to ensure gender equality, responsible environmental management and enhancement of the quality of life in rural communities, among others. The Constitution uniquely provides for the right to development in section 30, which not only confers the right but also places responsibility on the State to take all necessary measures for the realisation of the right to development. To the extent that the SSRLP is no doubt a development, it is aligned to the spirit of the constitution. It is nevertheless imperative to examine key legal rights accorded to potential PAPs under the project.

In terms of equality, generally, section 20 of the Constitution prohibits discrimination of any form and on account of any status.

Women have special protection under section 24 of the Constitution in that *"Women have the right to full and equal protection by the law, and have the right not to be discriminated against on the basis of their gender or marital status which includes (a) to be accorded the same rights as men in civil law, including equal capacity to (i) enter into contracts, (ii) acquire and maintain rights in property, independently or in association with others, regardless of their marital status…and any law that discriminates against women on the basis of gender or marital status is invalid…"* Special recognition of women's rights under the project is, therefore, necessary where applicable. Cultural practices that tend to discriminate against women need to be handled cautiously under the project.

In recognition of intergenerational equity, section 13(d) compels the state to manage the environment responsibly to prevent degradation of the environment, provide a healthy living and working environment for the people of Malawi and accord full recognition to the rights of future generations by means of environmental protection and sustainable development of natural resources.

Regarding protection of property rights, the Constitution has three key sections on the subject (section 28, 24 and 44). Section 24 concerns women's rights as discussed above. On the other hand, section 28 entrenches the right to property. It provides that "every person shall be able to acquire property alone or in association with others, and that no person shall be arbitrarily deprived of property. According to section 44(2) "expropriation of property shall be permissible only when done for public utility and only when there has been adequate notification and appropriate compensation, provided that there shall always be a right to appeal to a court of law". In Malawi, the courts have held that this constitutional protection of property rights avails to customary and registered land alike.

The same Constitution in section 44(1) says that no restriction or limitation may be placed on any constitutional rights unless such restriction is prescribed by law, is reasonable, is recognised by international human rights standards and is necessary in an open and democratic society. It needs to be noted that this criterion is cumulative.

In implementing the project, SSRLP must, therefore, exercise care and caution in all the project stages; given those activities of the project may be the subject of constitutional challenges, even if they passed the statutory steps. However, the project's RPF principles 1 and 2 are aimed at ensuring that cases of relocation of people, resettlement and compensation are avoided as early as possible during project site selection and resettlement screening.

3.1.2The Malawi National Land Policy 2002

The Malawi National Land Policy focuses on land as a basic resource common to all people of Malawi and for enhancement of socio – economic development. Section 4.11 affirms equitable access to land to all citizens of Malawi. The policy recognizes human settlement and agriculture as the major benefactor of land use. As such, the policy advocates for orderly resettlements of villages or households especially in rich agricultural zones. Furthermore, the policy guarantees full legal protection to customary land tenure to the people of Malawi in order to enable the ordinary Malawians adequately participate in subsistence farming and socio-economic development activities. The Malawi National Land Policy 2002 also advocates for fair compensation on open market value to local people on all classes of land (whether held under customary land tenure or leasehold) in case such land is acquired for public interest or for development of public infrastructure. In reference to relocation of displaced people, the policy advocates adequate consultations with the affected people so that their interests are taken care of. Such provisions will have to be made in SSRLP for consideration of acquisition of land for some selected public services such as new schools, earth dams and health centres.

3.1.3. The Land Act 2016

The Land Act 2016 is the principal legislation dealing with land tenure and land use. It repealed the Land Act 1965. Sections 6 and 8 of the Land Act reiterate the Constitutional provisions that all land is vested in perpetuity in the Republic. The Act provides that all land is administered by the Commissioner of Lands on behalf of the Republic and the Minister responsible for land matters may delegate any of the powers and duties conferred on him to the Commissioner. Section 7 of the Act recognises two categories of land, namely, public land and private land.

A. Public Land

The Act defines public land as held in trust for the people of Malawi and managed by Government, a local government authority and a Traditional Authority. Public land includes: Any land held by Government or a local government authority consequent upon a reversion thereof to the Government or local government authority on the termination, surrender or falling in of any freehold or leasehold estate therein pursuant to any covenant or by operation of law; Land acquired and privately owned by Government or a local government authority used for dedicated purposes such as Government buildings, schools, hospitals and public infrastructure; Land gazetted for national parks, recreation

areas, forest reserves, conservation areas, historic and cultural sites; Land vested in Government as a result of uncertain ownership, abandonment or land that cannot be used for any purposes; and Unallocated and communal land within the boundaries of a Traditional Land Management Area.

B. Private Land

Private land is defined as all land which is owned, held or occupied under a freehold title, leasehold title or as a customary estate or which is registered as private land under the Registered Land Act. Customary estate means any customary land which is owned, held or occupied as private land within a traditional land management area, and which is registered as private land under the Registered Land Act. Customary land means all land used for the benefit of the community and includes unallocated customary land within the boundaries of a traditional land management area. Freehold is defined as an estate which is held in perpetuity and a lease includes an agreement for lease.

Relevant Provisions

Section 12 of the Act empowers the Minister responsible for lands to make and execute grants, leases or other dispositions of public land classified as Government land for any such estates, interests or terms and for such purposes and on such terms as and conditions as he may think fit. Section 21 of the Act enables the Minister, upon application by any person in a prescribed manner, to grant or allocate leasehold or customary estate on terms and conditions as he may determine. However, according to section 22 he cannot grant freehold title.

Section 36 places restrictions on a person to sell or otherwise to convey, lease, transfer or assign any private land without prior written consent of the Minister or local government authority to sell, convey, lease, transfer or assign the land. The granting or refusal of consent must be communicated to the person who intends to sell within 30 days of receipt of the written notice. The provisions of this section do not apply to sale, conveyance, lease, transfer or assignment by or direct to the Government; any agreement to lease for a non-renewable term of not more than 3 years; a sale pursuant to an order of court by any officer in the public service acting in his official capacity and pursuant to any written law and any mortgage or other hypothecation for repayment of money lent in good faith.

Section 39 provides that where a holder of private land under freehold title has not developed the land and not shown his intention to develop or dispose of it within two years from the date of registration, the Minister may in writing demand voluntary surrender of that land to the Government. If there is no voluntary surrender, the Minister may acquire the land under the Lands Acquisition Act and its 2016 Amendment or exercise powers under section 64 of the Physical Planning Act 2016.

Part VII deals with trespass or encroachment upon, or unlawful occupation of, land. Section 45 enables a magistrate with relevant jurisdiction, upon complaint by a person claiming to have lawful title to the land, to issue summons against an alleged trespasser, encroacher, or unlawful user or occupier (defendant) requiring him to attend court. If the magistrate is satisfied that the defendant has trespassed, encroached or unlawfully occupied the said land, the magistrate may make an order requiring the defendant to vacate land within 7 days or longer. The number of days to vacate land depends on a number of factors including: how long it would take the defendant to take down or remove structures, buildings, fences or improvements of any kind erected on the land; how long it will take the defendant to harvest, collect, take in or remove crops, plants, trees and shrubs and to how long it will take the defendant to remove any chattels belonging to him. Failure to comply with the court order could lead to forced removal from the land by an authorised officer, police officer or officer of the court. The Land Act emphasises the fact that procedures under Part VII must be in accordance with the Courts Act.

Section 17 enables the Minister to acquire unallocated customary land for public utility purposes. The section provides that where it appears to the Minister that unallocated customary land is needed for

public utility, the Minister shall serve notice upon the Traditional Authority within whose traditional land management area the customary land is situated. Section 18 provides that any person who suffers disturbance of, or loss or damage to any interest which he may have or may have had in such land because of the land being acquired for public utility purposes, under section 17, should be paid such compensation for such disturbance, loss or damage as is reasonable.

3.1.4. The Lands Acquisition and Compensation Act 2016

The Lands Acquisition and Compensation Act No. 9 of 2016 has amended some provisions of the Lands Acquisition Act, the main one being that the Amendment Act now provides for the acquisition and compensation of land in the citation.

Section 3 of the Act read with the Amendment Act empowers the Minister responsible for lands whenever he is of the opinion that it is desirable or expedient in the interests of Malawi, to acquire land for public utility, either compulsorily or by agreement, and pay compensation as may be agreed or determined under the Act.

Sections 5-7 of the Act provide for the issuing of notices upon the persons who are possessed of an interest in the land. According to section 12 of the Amended Act, when a notice to acquire land has been issued and published, the land shall revert to the Government as public land within two months of the publication of the notice.

Section 9 as amended provides for the payment of compensation. It provides that where any land is acquired by the Minister under this Act, the Minister shall pay in respect thereof appropriate compensation agreed or determined in accordance with the provisions of this Act. The Amendment Act further provides that compensation shall be paid in one lump sum; therefore, the assumption is that compensation shall only be monetary.

Amended provisions relating to assessment of appropriate compensation provide that an assessment is to be done by an independent valuer appointed by the Minister, unless the parties agree otherwise. The Amendment to the Act also provides information on the grounds on which compensation can be calculated which include; loss of occupational rights, loss of land, costs of professional advice and disturbances which are a natural and reasonable consequence of the disposition of land. The Amendment has inserted substantive provisions on matters to be taken into consideration in assessing compensation for alienated land under section 10A.

Section 11 of the Act deals with the effect of payment of the compensation and states that a person who has been paid compensation for land cannot make further claims in respect of the land. However, this does not prevent any subsequent proceedings against the person to whom the same was awarded by any person claiming to have a better right to the compensation or the right to a share thereof.

3.1.5. The Registered Land Act 2016

The Act makes provision for the registration of title to land and for dealings in land that has been registered. The Act has been amended several times since 1967 with the most current amendments passed in 2016. The Amendment Act amends some provisions in the Registered Land Act including new definitions of customary estate and land to ensure conformity with the Land Act, 2016.

3.1.6. The Customary Land Act 2016

The Customary Land Act 2016 provides for the management and administration of customary land and for matters connected therewith and incidental thereto. Customary land means all land used for

the benefit of the community as a whole and includes unallocated customary land within the boundaries of a traditional land management area, including:

- land within the boundaries of a Traditional Land Management Area other than Government or reserved land;
- land designated as customary land under the Land Act, 2016;
- land and boundaries demarcated as customary land under any written law or administrative procedure in force at any time before this Act came into operation whether that demarcation has been formally approved or published in the gazette;
- land, the boundaries of which have been agreed upon by a land committee claiming jurisdiction over that land.

The Customary Land Act, 2016 is the main act in customary land administration and management in Malawi. The Act establishes "customary estates", which is customary land owned, held or occupied as private land within a traditional land management area and which is registered as private land under the Registered Land Act 2016. As such, customary land will no longer be treated as valueless commodity, but will be given equal value as any privately-owned land such as leasehold or freehold (Government of Malawi, 2017).

In terms of operation, the Customary Land Act 2016 creates customary land committees (CLCs) at group village headman (GVH) level to manage land within a Traditional Land management Area (TLMA). The CLC will be chaired by a GVH and will have six elected members from the community, three of which will be women. In discharging its duties, the CLC shall, among others, have regard for the principle of sustainable development and the relationship between land use, natural resources and the environment contiguous to the customary land; seek and consider views of other local government authorities having jurisdiction in the TLMA; and not allocate land or grant a customary estate without the prior approval of the relevant Traditional Authority. Local government authorities shall provide advice and guidance based on the same being originating from the Commissioner of Lands. Local government authorities will oversee the operations of the CLCs (Government of Malawi, 2017).

The Customary Land Act 2016 defines the terms for customary land in a Traditional Land Management Area transfer to Government or reserve land for public interest. It also focuses on the Declaration of Hazardous Land, on grant and management of customary estates, on adjudication of interest in customary land and on dispute settlement.

The essence of community ownership and control is that all members of a particular community have access to land and all its products without exception and that the role of chiefs is to ensure not only political protection for the community but, essentially, a more equitable distribution of that land among current members of the community and future generations.

3.1.7 Land Survey Act 2016

The Land Survey Act provides for land surveys, the establishment of the Land Surveyors Registration Board, the licensing and control of land surveys, survey marks and boundaries and the establishment of the Malawi Geographic Information Council.

3.1.8 The Physical Planning Act 2016

The Act repeals the Town and Country Planning Act. It provides for physical planning and the orderly and progressive development of land in both rural and urban areas and for issues relating to the grant of permission to develop land and for other powers of control over the use of land. The Act is administered by the Commissioner for Physical Planning and also provides for the establishment of the Physical Planning Council. The Act provides for development permission including application forms, processing and revocation. Section 54 provides that a person shall not commence the development of any subdivision of any land unless he first obtains a grant of development permission.

In addition, a person applying for the registration of any land under the Registered Land Act must attach a copy of the grant of development permission in order for his documents to be considered.

Part VII of the Act deals with acquisition of land and compensation. The section provides that the Minister may acquire any land, either compulsorily or by agreement if it is considered desirable or expedient in the interests of the implementation of any plan of the proper control and furtherance of development of any land under the Act. Compensation will be paid in accordance with the Lands Acquisition Act as amended. Section 68 of the Act provides for occasions when compensation is payable for planning actions, section 69 deals with how compensation can be assessed and section 70 provides for how a claim for compensation can be made. The Second Schedule of the Act is on the calculation of compensation under section 68.

The Act provides for circumstances when an appeal can be made and the fact that an appeal can be made to the Council. A person aggrieved by a decision of the Council may apply to the High Court for judicial review.

3.1.9. The Local Government (Amendment) Act 2017

The Local Government Amendment Act, 1998 consolidates the law relating to local government. Section 34 of the 1998 Act provides for the acquisition of land by Agreement. It states that for the purpose of (a) any of its functions under this Act or any other written law; or (b) the benefit, improvement or development of its area, the Assembly may acquire whether by way of purchase, lease, exchange or gift, any land, whether situated inside or outside its area. Subsection 2 of section 34 of the 1998 Act has been deleted and substituted with a new subsection 2 that provides that subject to the provisions of the Land Acquisition Act, the Council may acquire land to be used for any of the Council's functions.

The Amendment Act also amends the principal act by providing that the Council may dispose of land held by it in accordance with the Land Act 2016 and the Registered Land Act 2016.

3.1.10. Public Roads (Amendment) Act 2017

The Public Roads Act of 1962 as amended was enacted to consolidate and amend the law relating to Public Roads. In this Act, the highway authority is assigned responsibilities for the construction, care and maintenance of any road or class of road in accordance with the Act.

The Public Roads Act provides for various instances when compensation may or may not be paid. Sections 44-50 of the Act provide for issues relating to compensation including assessment of compensation generally and for surface rights, compensation for land which becomes public land, matters to be taken into consideration in assessing compensation for alienated land and claims for compensation. The part also provides for procedures to be followed before a Land Tribunal and the right to apply to the High Court for judicial review if the claimant of highway authority is unhappy with a decision of the Land Tribunal.

3.1.11. Environment Management Act 1996

The Environment Management Act No.23 of 1996 (EMA) was enacted to make provision for the protection and management of the environment and the conservation and sustainable utilisation of natural resources. The Act provides for Environmental Impact Assessment to be done in certain circumstances. Malawi has developed Guidelines for Environmental Impact Assessment (EIA). The purpose of these Guidelines is to facilitate compliance with Malawi's EIA requirements by Government, project developers, donor partners and the public. The guidelines help to integrate environmental concerns in national development and will be applicable to all types of projects in the public and private sectors for which EIA studies may be or are required.

3.1.12 The Forestry (Amendment) Act 2017

The principal legislation that governs forestry matters in Malawi is the Forestry Act No. 11 of 1997. The Act provides for participatory forestry, forest management, forestry research, forestry education, forest industries, protection and rehabilitation of environmentally fragile areas; and international co-operation in forestry and for matters incidental thereto or connected therewith.

The purposes of the Act include: promoting community involvement in the conservation of trees and forests in forest reserves and protected forest areas and protection of fragile areas such as steep slopes, river banks, water catchment and to conserve and enhance biodiversity.

The Forestry (Amendment) Act amends some provisions in the Forestry Act of 1997 including the inclusion of a new definition of customary land committee which is in accordance with the Customary Land Act, 2016. The Amendment Act also amends section 30 of the Forestry Act so that it provides that 'any customary land committee may, with the advice of the Director of Forestry, demarcate on unallocated customary land a village forest area which shall be forest areas protected and managed in the prescribed manner for the benefit of that village community.

3.2 Key legislation on Resettlement

Table 4 provides details of key legislation on Resettlement.

Table 4: Details of key legislation on Resettlement

LEGISLATION	FUNCTIONAL RELATIONSHIP TO RESETTLEMENT
The Constitution of the Republic of Malawi	Basis for legislation on property, land, expropriation and compensation.
The Malawi National Land Policy, 2002	Provides policy objectives on land administration and resettlement.
The Land Act 2016	Principal legislation dealing with land tenure and land use
The Customary Land Act 2016	Provides for the management and administration of traditional land
Lands Acquisition and Compensation 2017	Provides for the acquisition of land for the public benefit. Empowers Government to acquire land for public utility if it is desirable or expedient in the interests of Malawi and sets out procedures for compensation.
Registered Land (Amendment) Act 2017	Provides for registration of title to land.
The Physical Planning Act 2016	Provides that a person shall not commence the development land unless he first obtains planning and development permission
The Land Survey Act 2016	Provides for land surveys
Public Roads Amendment Act 2017	Provides for construction, care and maintenance of any road or class of road and payment of compensation where this has an impact generally and on surface rights
Local Government (Amendment) Act 2017;	Provides for the acquisition of land by the Council for any of the Council's functions and for the making of By-Laws by the Council
Environment Management Act 1996 and Environmental Impact Assessment Guidelines	Provides for Environmental Impact Assessment and public consultation.

3.2 Overview of the World Bank Environmental and Social Standard on Land Acquisition, Restriction on Land Use and Involuntary Resettlement (ESS 5)

The Environmental and Social Standard 5 recognises that project related land acquisitions on land use can have adverse impacts on communities and persons. The following are its objectives:

a. Avoid or minimise involuntary resettlement by exploring project design alternatives.
b. Avoid forced eviction.
c. Mitigate unavoidable adverse impacts from land acquisition or restrictions on land use through timely compensation for loss of assets at replacement cost and assisting displaced persons in their efforts to improve, or at least restore, livelihoods and living standards in real terms to pre-displacement levels or to levels prevailing prior to the beginning of project implementation, whichever is higher.
d. Improve living conditions of poor or vulnerable persons who are physically displaced, through provision of adequate housing, access to services and facilities, and security tenure.
e. Ensure that resettlement activities are planned and implemented with appropriate disclosure of information, meaningful consultation, and informed participation.

Where resettlement is unavoidable, the standard stipulates criteria for eligibility to compensation, resettlement assistance and rehabilitation assistance measures to project affected persons on the following conditions:

a. Those who have legal rights to land or assets, including customary and traditional rights recognised under the legal laws or traditional practices of Malawi. This class of people includes those holding leasehold land, freehold land and land held within the family or passed through generations.
b. Those who have no legal rights to land or assets at the time of the census but have a claim to such land or assets provided that such claims are recognised under the legal or traditional laws of Malawi.
c. Those who have no legal right or claim to the land or assets they are occupying or using prior to an established cut-off date (date of original census). This class of people includes squatters and those that settle at a place on semi-permanent basis.

3.3 Comparison and Gaps between standards of World Bank and Malawi on Resettlement

Standards Policies of the World Bank on resettlement and policies of Government of Republic of Malawi have a number of common aspects in management of resettlement. For example, both policies emphasise on minimisation of the extent of resettlement. Secondly, the policies recommend considerations of fair and adequate compensations to project affected persons. However, there are some gaps which exist between the standards of the World Bank and policies of Government of Republic of Malawi. A detailed comparative analysis is provided in Table 3.3.1. Some selected examples are as follows:

- On aspect of compensations on assets to project affected people, the standards of the World Bank on resettlement include illegally built structures of squatters as eligible for compensations on their assets. In case of Malawi, such claimants are not entitled to compensations.

- On aspects on compensations on land, the policies of Government of Malawi consider the different intrinsic values associated with various classes of land (customary land, leasehold land, freehold land, public land). In such cases, rates for compensation on land vary from one site to another and from one class of land tenure to the other. The World Bank standard does not distinguish such differential aspects of land classes and corresponding different market rates.

- In cases of compensation of loss of land by project affected people, the World Bank standard prefers land for land compensation. In Malawi, the most preferred option for compensation is land for money in both urban areas and rural areas.

- World Bank standards clearly stipulate resettlement as an upfront project – in that all issues of land acquisition and relocation of project affected people has to be done prior to commencement of the project on the acquired site. Malawi Government legislation does not clearly spell out this approach and, in practice, resettlement is treated as a separate exercise outside project planning and implementation process.

- World Bank Standards clearly recommends for adequate resettlement assistance and rehabilitation assistance to relocated people as a way of restoring and enhancing socio-economic living standards. This is supposed to be undertaken within the first years of relocation on the new sites. Malawi legislation does not clearly define the extent of resettlement assistance to relocated people. Much of available support is normally left in hands of District Commissioner and local chiefs within the district and area of relocation of the project affected people.

3.4 Appropriate Measures for Addressing Identified Gaps between the Policies in Implementation

Discrepancies between standards of the Bank and the Government will be dealt by focusing on policy aspects which positively favour the project affected persons and leave out those which negatively impact on the project affected persons. This recommendation is on the observation that the common position between World Bank Standard on Resettlement and the Constitution of Republic of Malawi on resettlement is the guarantee of fair and adequate compensation and adequate resettlement assistance for the project affected person. In this regard, suitable options to be adopted are as follows:

- Compensations should be paid to all categories of project affected people so long they are covered within the cut-off date. Some special project affected persons to be included are the squatters, vendors' stalls/hawkers.

- No civil works should start prior to the compensation of the last PAP. This simply means that PAP should be considered first prior to the Bank allowing projects to jumpstart its implementation works.

Table 5: An analysis of gaps between local land related policies and laws and World bank guidelines and how the gaps can be addressed

	Provisions from relevant laws of Government of Malawi		**World Bank Provisions on the aspects**	
Project affected person	Name of Legislation	Provision within piece of legislation in Malawi	World Bank Provisions on the aspects	***Appropriate measures for addressing the gaps***
Land Owner/Occupier	Public Roads (Amendment Act) 2017	The Act and its amendment stipulate payment of compensation based on loss or damage suffered by the claimant arising from the damage to or destruction of his interest in the surface rights on such land. This damage or loss includes: the damage sustained because of the severance of such land from his other land or other injurious matter affecting his other movable of immovable property and if the claimant is compelled to change his residence or place of business, the reasonable expenses incidental to such change	ESS5 stipulates that land owners are entitled to compensation of land, compensation of building on replacement costs, expenses on labour The policy stipulates that land owners are entitled to compensation for crops	*Compensation of land for land to project affected persons.* *Compensations on crops and trees on real replacement values.*
Land Owner/Occupier	Public Roads (Amendment Act) 2017	The Act and its Amendment stipulate that for customary estate, land owners are entitled to reasonable compensation in respect of disturbance This compensation shall be assessed using open market value based on the loss suffered by the claimant arising from damage to or destruction of his interest in the land, and the surface rights on such land may include compensation for other disturbance-	ESS5 stipulates that the recommended option is compensation of land for land. Other losses to be compensated at replacement costs. The policy stipulates that temporary structures or buildings are entitled for compensation for loss of assets other than land or cash compensation at full replacement costs including labour and relocation expenses prior to displacement	*Compensation of land for land to project affected persons will be the priority.* *Compensation of money for land to project affected persons in cases of lack of alternative suitable land.*

		-where he should move his residence or place of business -where alternative land cannot be made available to him and the land remaining to him for any purpose is not an economic unit -where alternative land is made available to him, and where in making the alternative land equally as fit for use as the land which he has been deprived of, is likely to involve a loss in terms of money, materials or work.		*Compensation of all structures at full replacement costs and labour costs prior to displacement* *Compensations on crops and trees on market values.* *Resettlement assistance to project affected persons.*
Land Owner/Occupier	Lands Acquisition and Compensation Act 2017	The Act and its amendment stipulate that compensation will be based on an assessment done by an independent valuer appointed by the Minister. The Act and its amendment stipulate that compensation is given when land is acquired.	ESS5 stipulates that owners of buildings built illegally are entitled to compensation for loss of assets other than land at full replacement costs including labour costs prior to displacement.	*Compensation of all structures at full replacement costs prior to displacement*
Land Owner/Occupier	Lands Acquisition and Compensation Act 2017	The law stipulates that reasonable compensation should be given for loss of land by affected persons The Act and its amendment stipulate that in assessing compensation the following matters should be taken into consideration; -the market value of the land, or interest therein of the claimant at the valuation date -	ESS5 stipulates that owners of buildings built illegally are entitled to compensation for loss of assets other than land at full replacement costs including labour costs prior to displacement.	*Compensation of structures at full replacement costs and labour costs prior to displacement*
Land Owner/ Owner	Land Act 2017	The Act states that any person who suffers disturbance of, or loss or damage	ESS5 stipulates that land owners are entitled to compensation of land,	*Compensation of land for land to*

		to any interest which he may have or may have had in unallocated customary land because of the land being acquired for public utility purposes should be paid reasonable compensation for such disturbance, loss or damage	compensation of building on replacement costs, expenses on labour The policy stipulates that land owners are entitled to compensation for crops	*project affected persons.* *Compensations on crops and trees on real replacement values.*
Encroachers	Land Act 2017	The Act states that a court order can be issued against alleged trespassers, encroachers, or unlawful users or occupiers to vacate land within 7 days or longer. The number of days to vacate land depends on a on several factors including; how long it would take the defendant to take down or remove structures, buildings, fences or improvements of any kind erected on the land; how long it will take the defendant to harvest, collect, take in or remove crops, plants, trees and shrubs and to how long it will take the defendant to remove any chattels belonging to him. Failure to comply with the Court order could lead to forced removal from the land by an authorised officer, police officer or officer of the court. The Act states that any person who uses or occupies any public land without title commits an offence The Act is silent on compensation for alleged trespassers, encroachers, or unlawful users or occupiers	ESS5 stipulates that persons are entitled to compensation regardless of the legal status of their structures or occupation of the land The Standard stipulates that owners of buildings built illegally are entitled to compensation for loss of assets other than land at full replacement costs including labour costs prior to displacement The Standard stipulates that owners of buildings built illegally are entitled to compensation for loss of assets other than land at full replacement costs including labour costs prior to displacement.	*Compensation of all structures at full replacement costs prior to displacement* *Compensations on crops and trees on real replacement values.* *Compensation on labour costs based on real replacement values.*

Land Owner/Owner	Customary Land Act 2016	The Act states that customary land shall be transferred subject to payment of appropriate compensation assessed by a registered valuer and agreed upon by the land committee and the Commissioner or between a person or representative of group of persons under a customary estate or those with a derivative right to use the land and the Commissioner The Act favours land for land compensation. It provides that if Government or reserved land is to be exchanged with the customary land which is the subject of the transfer, Government will identify an alternative piece of land to be transferred to the Traditional Land Management Area or the affected persons.	ESS5 favours land for land compensation in cases of loss of land by project affected persons. The Standard stipulates that owners of buildings built illegally are entitled to compensation for loss of assets other than land at full replacement costs including labour costs prior to displacement.	*Compensation of land for land to project affected persons.* *Compensation of structures at full replacement costs prior to displacement*
PAPs	Environment Management Act of 1996 and the Environmental Impact Assessment Guidelines	The Act and the Guidelines require a socio-economic and environmental assessment to be conducted on the impacts of the proposed project. This can include determination of eligibility for compensation. The EIA Guidelines also provide for meaningful consultations to be conducted.	ESS5 advocates identification of persons who will be affected by the project to determine who will be eligible for assistance and to discourage inflow of people who will be ineligible The Standard also requires meaningful consultations with affected persons and communities, local authorities, and, as appropriate, nongovernmental organisations (NGOs)	*Identification of person who will be affected by the project* *Consultations to be conducted with affected persons and communities*
Timing of compensation payment			ESS5 stipulates that displaced persons are provided with prompt and effective compensation at full replacement cost for losses of assets	

			directly attributable to the project. Taking of land and related assets may take place only after compensation has been paid and, where applicable, resettlement sites and moving allowances have been provided to the displaced person (s).	
Livelihood restoration and assistance			Livelihood and living standards are to be restored in real terms to pre-displacement levels or better.	
Consultation and disclosure			Consult project-affected persons, host communities and local NGOs, as appropriate. Provide them opportunities to participate in the planning, implementation, and monitoring of the resettlement programme, especially in the process of developing and implementing the procedures for determining eligibility for compensation benefits and development assistance (as documented in a resettlement plan), and establishing appropriate and accessible grievance mechanisms.	
Grievance mechanism and dispute resolution			**Establish appropriate and accessible grievance mechanisms**	***The GRM in the Stakeholder*** *Engagement Plan should also adequately cover land related grievances*

CHAPTER 4

SOCIAL ASSESSMENT AND SOCIO-ECONOMIC STATUS OF THE PEOPLE IN MALAWI

A study of the existing socio-economic environment for the communities was carried out in some of the sampled districts where the project will be implemented in Malawi. The study has provided the areas where the RAP/ARAP for the different project components will have to provide a measure of the existing state of the socio-economic environment against which future changes imposed by the project activities will be measured and monitored.

4.1 Literacy levels

According to 2018 Population and Housing Census, the average literacy rate for Malawi is 68.6%. Northern Region has the highest literacy rate of 79.3% while Central and Southern Regions have literacy rates of 67.0% each. Further to this, during the 2018 Population and Housing Census, at national level men had higher literacy rate (71.6%) than women (65.9%).

4.2 People and Population dynamics in Malawi

The 2018 Population and Housing Census estimated population of Malawi (2018) was 17.5 million, and the annual growth rate is 2.9%. Children under the age of 18 years constitute about 50% of the population size which indicates high dependency ratio. Females are about 53% of population while males are about 47% of the population. About 85% of the population live in rural areas and depend on smallholder farming while only 15% of the population live in towns where as much as 75% of the urban population live in poor peri-urban and informal settlements

According to 2018 Malawi Population and Housing Census, National Population density was 186 people per square kilometre. Across the regions, there were more persons per square kilometre in the Southern Region (244) followed by Central region (211) and Northern region (84). Among the districts, Likoma had the highest population density of 726 persons per square kilometre, Chiradzulu and Thyolo had 469 and 433 persons per square kilometre, respectively. Rumphi district had the lowest population density of 50 persons per square kilometre followed by Chitipa with 54 persons per square kilometre.

The rates of population growth, density and distribution in a country have direct effects on environment. Intensive and large-scale human settlements enhance land degradation, natural resource utilisation and depletion in incidences on excessive extraction. Infrastructural developments (water pipes, sewerage pipes, roads) have potential to negatively affect the environment. In this regard, understanding human settlement and socio-economic development is essential in environmental management.

Population and Housing Census (2018) results on Malawi's housing indicates that housing structure in Malawi consists of 35.9% as traditional housing, 23% semi-permanent housing and 41.1% as permanent housing. Main building materials for permanent houses are burnt bricks, iron sheets, tiles, concrete or asbestos for roofs. The semi-permanent houses are built of sun-dried bricks and are grass-thatched while traditional houses are built of mud walls and grass-thatched roofs.

Major environmental problem in urban areas in human settlement is the existing of high density slums/squatter settlements. It is estimated that about 70% of urban population live in unplanned settlements where housing conditions are quite poor characterised by poor sanitation, lack of potable water, poor roads among others. Other major environmental problems in urban areas include indiscriminate disposal of solid wastes and liquid wastes.

According to the 2018 Population and Housing Census (PHC) conducted by National Statistical Office of Malawi, the country had approximately 3,984,929 households, representing 39 percent increase from 2008 Population and Housing Census. The approximate average number of persons per household in the country is 4.4, representing a marginal drop from 4.6 in the 2008 PHC, with the Northern Region having the highest number of persons per household (4.8 persons) than in Central and Southern Regions at 4.4 and 4.3 persons, respectively.

4.3 Governance and development Planning.

There are a number of decentralised development structures that the project affected persons will report to during the implementation of the project. These social structures and their functions are as follows:

4.3.1 The District Council

District Councils have two structures thus political and secretariat. Political structures are responsible for policy direction. They comprise Constituencies and Wards represented by elected Members of Parliament (MPs) and Councillors, respectively. Councils conduct their business through a number of standing committees.

4.3.2 The District Executive Committee

The District Executive Committee (DEC) is the technical advisory body to the District Councils. It appraises and consolidates development projects that originate from the Village Development Committees (VDCs) through the Area Development Committee (ADCs) prior to approval and funding by the District Council. The DEC comprises all the heads of Government Departments, Parastatals, Non-Governmental organisations and the private sector. The District Commissioner (DC) heads the DEC and the Director of Planning and Development (DPD) is the secretary.

4.3.3 The Area Development Committee

The National Decentralisation Policy provides for the establishment of Area Development Committees (ADCs) which are responsible for development projects in the areas of jurisdictions under traditional and sub-traditional authorities. Assisted by Field Technical staff, ADCs review and consolidate project proposals from the village development committee (VDCs) before submission through DEC for approval and funding by District Councils.

4.3.4 Village Development Committees

Village Development Committees (VDCs) plan and manage development projects. The VDCs are assisted by field staff to prepare project proposals that are forwarded to ADCs for scrutiny prior to onward submission to District Council through the DEC. Upon approval and funding by the Council, the VDCs implement the projects. The VDC cover a group of villages.

4.3.5 Traditional Authorities

Traditional Authorities provide administrative and development linkages between communities and government through VDCs, ADCs and District Councils. Traditional Authorities are custodians of customary laws, traditional customs, beliefs and culture. Each Traditional Authority is responsible for a number of Group Village Heads that in turn are responsible for a number of Village Heads.

4.4 Malawi's Economy

Malawi is one of the least developed countries in the world. Agriculture remains the country's main foreign exchange earner with tobacco, sugar, tea and coffee as major export products followed by

manufacturing and tourism sectors. Being agro-based, Malawi's economy is vulnerable to weather related shocks and declining natural resources. Efforts to diversify to other sectors such as industry, mining and tourism have not been effective because of poor infrastructure. Consequently the contribution of the other sectors to GDP has increased only marginally over the years and the contribution of agriculture to the GDP remains high at 28% in 2017 though lower than 38% in 1994.

The economy has been growing at a positive rate over the past decade. The GDP growth rate is around 6% per year over the last 10 years largely due to good performance of the MGDS I. This positive growth did not benefit the majority of Malawians as evidenced by worsening poverty levels that exacerbated the already high dependence ratio. Between 2012 and 2017, the inflation rate was stable, but relatively high at around 20% as compared to the single digit levels in the first half of the decade. The bank lending rate remains high at 22% making borrowing costly for small scale business.

Malawi's economy for some time greatly benefited from substantial inflows of economic assistance from International Monetary Fund, the World Bank, and individual donor nations. This support contributed to about 40% of the national budget. However, following the Cashgate scandal of 2013, several development partners pulled out their support from the national budget due to misuse of public financial resources. While development partners have continued programmes outside the national budget, the loss of 40% contribution that development partners were making towards the budget has greatly impaired government's development activities. The government faces strong challenges: to spur exports, to improve educational and health facilities, to face up to environmental problems of deforestation and erosion, and to deal with the rapidly growing problem of HIV/AIDS in Africa.

4.5 Transport Infrastructure.

The transport sector in Malawi is comprised of four sub-sectors, namely roads, rail, water and air. Road transport is the dominant mode of transport due to the flexibility allowed to users in reaching remote areas. Road transport handles more than 70 percent of the internal freight and 99 percent of passenger traffic. Accessibility in rural areas has remained a challenge in Malawi due to the condition of the rural roads, which are mainly comprised of secondary, tertiary, district and community roads. The total road network covers 15,451 km, of which 28 percent is paved, while the rest constitutes of either earth or gravel roads.

The Roads Authority has the mandate of overseeing the maintenance, rehabilitation and upgrading of main, secondary and tertiary roads in Malawi. District and community roads are administered by district councils but the Roads Authority still assists the districts in providing rehabilitation and maintenance services due to the councils' lack of capacity. The Government of Malawi is currently implementing several programmes, including the Agriculture Sector Wide Approach Support Project to address challenges related to the transport sector. The main interventions in the project's roads component is to provide access to areas that have agricultural potential.

Existing transport sector challenges have been aggravated by sporadic floods, which wash away bridges, drainage infrastructure and road sections, thereby isolating people from their socio-economic amenities, including schools, hospitals and others. The majority of the unpaved network lies in rural areas where the flood disasters have had the strongest effect. The Lower Shire in the southern region, has been the most affected.

Government is currently undertaking country wide road upgrading and rehabilitation of several main roads and secondary roads. Some road upgrading works are supported by European Development Fund, African Development Fund and World Bank funded project.

4.6 Health Situation and HIV & AIDS Prevalence

Available government statistics highlight poor health indicators on infant and maternal mortality rates in the country. Malawi infant mortality rate in estimated at 92 per 1000 live birth, child mortality rate is 133 per 1000 live births and maternal mortality rate is 684 per 100,000 live births. Leading causes of death include HIV/AIDS related ailments, malaria, pneumonia, anaemia, diarrhoea and malnutrition. Malaria accounts for about 50% of monthly outpatient visits in Malawi.

Health services in Malawi, generally, are provided by government through Ministry of Health (about 65%) coverage) and Christian Health Association (CHAM) which covers about 30% of the country. Government has district hospitals in all districts (except Phalombe) and health centres. However, in some rural parts of districts, reliable health facilities are those under Christian Health Association. Currently, main challenges facing health facilities are shortage of drugs and health workers. One of main causes is inadequate funds to purchase drugs and low salaries which fail to motivate health workers.

The National HIV and AIDS Policy (2012) highlights that HIV/ AIDS impacts on the country is quite significant and affects a range of socio-economic activities be it in agriculture, fisheries, public sector, private sector, tourism, urban areas, rural areas among others. HIV and AIDS prevalence in the country varies from one region to the other and from rural to urban areas. Current rates (2014) indicate that highest rate is in the Southern Region at 15.18%, Central Region at 9.42% and lowest in Northern Region at 6.58%. Prevalence rate is 13.1% in urban areas and 10.61% in rural areas. National HIV/ AIDS Policy identifies migrant workers (mobile population) and women are among highly vulnerable people to transmission of HIV and AIDS and other sexually transmitted infections. Proposed developments under SSRLP will have minimal small-scale infrastructure developments which will mostly utilise locally available skilled and unskilled labour.

4.7 Social and economic status of the people of Malawi

According to the third Integrated Household Survey conducted by the National Statistical Office (NSO), about 85 percent of households in Malawi are engaged in agricultural activities. Of these households, about 84 percent of households are engaged in crop production whilst 44 percent do rear livestock. Further, 43 percent of households engaged in agricultural activities are engaged in both livestock and crop production.

One of the key factors for high levels of poverty in Malawi is high dependence on subsistence farming. Malawi's Gross National Income (GNI) per capita was estimated at US$476.8 in 2015. The Human Development Index was estimated at 0.445 in 2014, positioning the country at 173 of 188 countries.

In 2015 the country recorded GDP growth rate of only 2.8 per cent mainly due to floods that took place in some districts in the country especially southern region districts. This was followed by drought which negatively affected agricultural production. Depreciation of Malawi Kwacha due to decrease of agricultural exports and the strengthening US dollar, among other reasons, led to an increase of average annual inflation which stood at 22.6 percent by June 2016. The country has experienced double digit inflation for four straight years from 2013.

4.8 Social Characterization of potential affected persons

The SSRLP Additional Financing will be implemented in eleven districts in the country and specific sites for the implementation of the interventions under the project are not yet known at the time of development of this Resettlement Policy Framework. With these facts, it is difficult to determine the social characterisation of the potential affected persons. However, the project will affect some

of the 84% of households in Malawi that is engaged in crop production most of whom live below the poverty line of less than 1 United States Dollar per day.

The project is likely going to affect people of different social characterisation because of varying differences in culture, ethnicity and religion. In most cases, people of the same ethnicity have the same culture. The major ethnic groups in Malawi include Chewa, Nyanja, Yao, Tumbuka, Lomwe, Sena, Tonga, Ngoni, Ngonde and Asian. The Chewa people form the largest part of the population group and are largely in the central parts of Malawi. The Yao people are predominately found around the southern area of Lake Malawi, the Lhomwe's around the southern west of the region while the Tumbuka are found mainly in the north of the country. The majority of Malawi's population, despite their ethnicity, live in rural areas. Malawians live with their extended families in huts that are grouped together in villages. Most Malawians have the culture of sharing resources with members of extended families and also neighbours.

The project specific RAP or ARAP will determine the social characteristics of the potential affected persons.

4.10.2 Land Acquisition Procedures

Upon identification of the specific land area to be acquired, the village development committee will initiate negotiations with the occupier(s) of customary land, registered proprietor or their representatives. Inter-department cooperation will be utilised wherever necessary to tap on the expertise and experiences of the various stakeholder institutions:

a) The District Commissioner in consultation with district sector line officials prepare action plans for implementation of land acquisition and resettlements that comply with the provisions of the framework; and
b) Affected persons are then served with notice with a clear explanation of the purpose of the acquisition, the area of land required and the owners' right to compensation in accordance with the existing law.

In the case of customary land, District Commissioner ascertains from the village head, the land register, or whichever is applicable in order to determine the person or persons who have the right over that land. In the case of freehold land, the Ministry of Lands and Housing shall ascertain the registered owner or owners of the freehold land to be acquired from the land registers.

The District Commissioner commissions a survey on such land to be acquired. Thereafter, a plan is prepared and certified to be accurate showing:

a) Land to be acquired;
b) Names of the owners and occupiers of that land as far as they can be ascertained; or
c) In the case of customary land, the name of the land owner who is the holder of the right over the land as ascertained by the local chief and other bonafide local residents.

A copy of such plan shall be deposited in the office of the District Commissioner and another at the premises of the local chiefs. It should be highlighted that in case some project affected persons have objections to the proposed land acquisition and resettlement, their objections have to be done in writing to District Commissioner for or Commissioner for Lands and Valuation within 30 working days after the public notice. Alternatively, formal complaint can be lodged via traditional authority.

4.11 Land situation

Both customary and public land tenure systems exist in Malawi as well as in all the districts where the different project components will be implemented. Land matters in the most districts where

smallholder farming communities operate are governed by the principles of customary law and, therefore, the land is under the custodian of the affected village headperson. Land conflicts on boundaries of land and inheritance do occur and when they occur they are handled by the village headpersons who sort out the issues and if they fail the matter goes to the Traditional Authority.

4.12 Access to land

Access to land in most of the traditional farming communities is managed by customary law. For customary land, a farmer accesses the land through inheritance from ancestors (the most common), and/or buying/renting from a farmer who inherited it. The traditional authorities have no power to take the land from the household that owns it to allocate it to a landless person.

4.13 Land ownership, disputes and conflicts

Land conflicts and disputes between villagers are common in some of the Village Development Committees (VDC) in the different districts. The disputes concern mainly the boundaries and yearly land rent arrangements. Normally boundaries are straight and trees are planted along the boundaries as landmarks. Land disputes are resolved using the customary law which empowers the Village Headpersons to resolve the disputes by bringing together the disputing parties. If they fail, the matter goes to the Group Village Headpersons (GVH) and on rare occasions, when this fails, the matter goes to the TA as the last resort.

4.14 Land compensation

Discussions with the traditional leaders and the project affected persons showed that people in most farming communities are willing to voluntarily donate their land for the sake of implementation of the sub-project.

4.15 Estimated population, displacement and categories of affected people

At this stage in the project, it may not be possible to estimate the population of people to be negatively impacted by the project as exact locations have not yet been determined. Therefore, this section of the RPF will mainly focus on the approach that will be used in determining the PAPs and their categories; creation of baseline socio-economic database of the PAPs and public consultations.

4.16 Approach for identifying Project Affected Persons

The Land legislation considered all titled landowners, customary landowners, encroachers, persons affected by loss of access to sources of income and persons affected by loss of access to natural resources, as PAPs. As such, it is clear that all affected persons irrespective of their status or whether they have formal titles, legal rights or not, are eligible for some kind of assistance if they occupied the land and are likely going to be affected by the project before the entitlement cut-off date. The entitlement cut-off date refers to the time when the census of persons and their property in the area is carried out, i.e. the time when the project area has been identified and when the socio-economic study is taking place. Thereafter, no new cases of affected people will be considered. Persons who encroach the area after the socio-economic study (census and valuation) are not eligible for compensation or any form of resettlement assistance.

4.17 Determining categories of PAPs

PAPs refer to people directly affected, socially and economically by a project as a result of: **(i)** The appropriation of land and other assets causing relocation or loss of shelter; loss of assets or access to assets; loss of income sources or means of livelihood, whether or not of the affected person; and persons must move to another location; and **(ii)** The restriction or denial of access to legally designated areas that result in adverse impacts on the livelihood of the economically or physically displaced persons.

Until the exact project location sites are determined, it will not be possible to estimate the number of people who may be affected, since the technical details of the specific sub-projects are not yet known. However, the likely displaced persons can be categorised into three groups as individuals; households; and vulnerable groups or people.

a) Individual PAPs

These are individuals who suffer loss of assets or investments, land, property, or access to natural and/or economical resources as a result of the activities and to whom compensation is due.

b) Households

A household is affected if one or more of its members is affected by the programme activities, either by loss of property, land or access, or is otherwise affected in any way by programme activities. This includes:

i) Any members in the households (men, women, children, dependent relatives and friends);
ii) Vulnerable individuals who may be too old or ill to farm along with the others;
iii) Members of households who cannot reside together because of cultural rules, but who depend on one another for their daily existence;
iv) Members of households who may not eat together, but provide housekeeping or reproductive services critical to family maintenance; and
v) Other vulnerable people who cannot participate for physical or cultural reasons in production, consumption, or co-residence.

c) Vulnerable groups

In Malawi, vulnerable households may have different land needs from other households or needs unrelated to the amount of land available to them. They may already be undergoing some form of rehabilitation including training to acquire vocational skills in purpose-built centres and/or other forms of special care. Vulnerable people include:

i) **Unmarried women:** These women may be dependent on sons, brothers, or others for support. Since an affected individual is able to name the person with whom he or she is linked to in dependency as part of the household, resettlement will not sever this link.

ii) **Elderly:** Elderly people farm or work as long as they are able to. Their economic viability may depend on how much land they farm or how much they produce, because by producing even small amounts of food to "exchange" with others, they can subsist on cooked food and generous return gifts of cereal from relatives, friends, and neighbours. Losing land will affect their economic viability.

iii) **People living with HIV/AIDS:** Relatively high percentages of the poor and total population are living with HIV or are terminally ill with AIDS. Many are beneficiaries of numerous health programmes from government, international organisations, and NGOs.

iv) **Orphans:** Due to the impacts of the HIV/AIDS crisis that plagues Malawi, there are a considerable number of orphaned children whose parents have died from AIDS. These children today fall into three categories of care: (i) those being looked after by an uncle, aunt, grandparents, or other close relative; (ii) those being looked after by the government, local authorities, or NGOs; and (iii) those living alone and providing for themselves and other siblings. These children are more vulnerable since they are often "voiceless"; they have no parents to defend or stand up for them and they are considered too young to be heard. Orphaned children engage in any form of economic activity to provide for themselves and

their siblings, including selling paraffin or water, artisanal mining, and exploitative employment, among others.

v) **Exploited children:** Despite Malawi law and the International Labour Organisation (ILO) prohibiting the exploitation of children, it is a reality that street children are either in paid employment or are on the streets in some areas in Malawi. They tend to live in close proximity to large towns and cities.

vi) **Street children:** Should they become impacted by the sub-project in a way that means they have to be physically relocated; their compensation shall not be in cash. They would have to be put in a United Nations Children's Fund (UNICEF) programme or registered with one of the many children's charities operating in Malawi. Their compensation would take the form of paying for their rehabilitation, vocational training and new skills sets.

vii) **Female-headed households:** These households may depend on husbands, sons, brothers, or others for support. However, there are also cases where women are the main breadwinners in their household even when the men have remained with the family. Women, therefore, need relatively easy access to health service facilities. This includes situations where the land being appropriated is used by a woman with no formal rights to it or where a woman who is dependent on a man other than her husband for her primary income. These women should not be resettled in a way that separates them from these sources of support because the very survival of their households may depend on them. Their compensation must take into account all these factors.

viii) **Small-scale women farmers:** These women farmers are vulnerable because they may not have men available within the household to carry out male-specific land preparation tasks such as ringing trees or clearing or plugging land. Either male relative in other households help them voluntarily, or they hire men and pay by cash, beer (locally brewed), or food. Land compensation specifically includes the labour costs for preparing new land, so this expense is covered for women farmers.

ix) **Non-farming women:** These women earn income from other sources and/or depend on relatives for exchanges of staple foods. Because they do not farm they will not be affected by a sub-project's need for agricultural land. However, if a building owned by a woman lies on land needed by a sub-project, they will receive replacement cost compensation. If someone on whom they depend is displaced/resettled, they are protected because the displaced/resettled person can name them as part of the household.

x) **Women and Youth Concerns**
Vulnerable groups, especially women-headed households and the youths will obtain benefits equal to men in the project. Further, in some mitigation measures, they will be better placed with a view to enhance their economic and social wellbeing. A number of meetings will be held with the women groups and the youth during the RAP preparation to define the roles of women and the youth and how the project will benefit the two groups. The meetings will also look at the project benefits to women and the youth; raising awareness levels among women and the youth; and opportunities for women and the youth during the RAP implementation.

These groups are identified as particularly vulnerable to ensure that they are included in the socio-economic and baseline study so that: (i) they are individually consulted and given the opportunity to participate in the project activities; (ii) their resettlement/compensation are designed to improve their pre-project livelihood; (iii) they receive special attention to ensure that their pre-project livelihood is indeed improved upon; (iv) they are given technical and financial assistance if they

wish to make use of the grievance redress mechanisms of the project; and (v) decisions concerning them are made in the shortest possible time.

4.18 Creation of Baseline Information on Project Affected Persons

An important aspect of preparing a RAP is to establish appropriate and accurate baseline socio-economic data of the PAPs and carry out census of the PAPs to identify the persons who will be affected by the project. This will assist in determining who is eligible for compensation and assistance, and to discourage inflow of people who are ineligible. Census is important when developing a RAP because it:

a) Consolidates information that provides initial information on the scale of impacts;
b) Gives an indication of further socio-economic research needed to quantify losses to be compensated and, if required, to design appropriate development interventions; and
c) Establishes indicators that can/be measured at a later date during monitoring and evaluation.

CHAPTER FIVE

PRINCIPLES, PROCEDURES, AND PROCESSES GOVERNING RESETTLEMENT ACTIVITIES WITHIN SSRLP ADDITIONAL FINANCING

5.1 Guiding Principles on Resettlement

The overall policy guidance on execution of community driven projects supported by SSRLP Additional Financing is to determine acceptable alternative options, when possible, to avoid resettlement related cases at the earliest opportunity. This is because by and large resettlement disrupts the existing social and economic fabric of poor communities. In this regard, appropriate principles (described below) will guide acceptable mechanisms for minimising or avoiding incidences of resettlements during implementation of sub-projects funded by SSRLP Additional Financing. The principles revolve around the basic tenets of the World Bank Environmental and Social Standards on Land Acquisition, Restrictions on Land Use and Involuntary Resettlement as well as the existing policies and laws of the Government of Republic of Malawi. The principles are as follows:

- Principle 1: Sub projects eligible for funding from SSRLP Project shall be those proposed in suitable sites. Suitable sites for funding of a sub-project are those sites where the implementation of a project would not bring about involuntary resettlement, involuntary physical dislocation, eviction of squatters, loss of land (whether ownership is recognised by customary land tenure or land titles, impact on cultivations and property, loss of access to property, loss of access to natural resources and other economic resources. During appraisal, availability of a written proof of properly acquired land will be one of the pre-requisite conditions for approval of a proposed subproject. Thus responsibility for identification and provision of a suitable site for a proposed subproject will be with the community through local chiefs, area and village development committees.

- Principle 2: In cases where compensation for improvements is still found to be inevitable for subproject implementation Government through NLGFC, Ministry of Lands, Ministry of Finance, Economic Planning and Development Ministry of Local Government and Rural Development in consultation with local leaders will make sure that appropriate compensation and resettlement assistance to the project affected person either in Cash or kind is done. This will be part of community contribution towards the project and it will be done in accordance with the process outlined by this Resettlement Policy Framework.

However, the project design proposes that cases of compensation and involuntary resettlement will be avoided during project screening and appraisal of the sub-projects by communities through effective stakeholder engagement, sensitisation, voluntary land donation and relocation of sub-projects to alternative suitable sites.

5.1.1: Genuine consultation and participation must take place

In case the community wishes to site a sub-project on particular site in the interest of a public service, the community will adequately consider the views, rights and interests of the project affected people.

5.1.2: An adequate community and local leaders' engagement in identification and selection of project site.

Identification of resettlement issues will be done during project identification and site selection process. It is at this stage that the community will have to conduct thorough and

proper resettlement screening and work out necessary compensatory measures before the project can be appraised by the District Executive Committee (DEC).

5.1.3: An adequate and thorough resettlement screening

Identification of resettlement issues will be done during project identification and site selection process. It is at this stage that the community will have to conduct thorough and proper resettlement screening and work out necessary compensatory measures before the project can be appraised by the District Executive Committee (DEC).

5.1.4: Setting up of accessible grievance redress mechanisms

The project will put in place user friendly and cost effective mechanisms for addressing complaints from project affected persons in communities accessing funding from SSRLP Additional Financing. The mechanisms will include use of local grievance redress mechanisms administered by local village heads, traditional authorities, local government, Ministry of Lands as well use of courts. The use of local traditional courts administered by village headmen, group village headmen and traditional authorities will allow project affected people to access such services without going long distance.

5.1.5: Compliance to relevant policies and laws

Land acquisition and resettlement activities by the communities will be implemented in compliance with relevant government policies and laws, as well as World Bank policies.

5.2 The Resettlement Screening for Sub Projects under SSRLP Additional Financing

Resettlement screening process will consist of a series of appraisal activities prior to approval of the sub-project. The exercise will be principally community based exercise and will be done through participatory approach by Village Development Committees/Area Development Committee (VDC/ADC) as well as the District Executive Committee (DEC) of a local Authority. The purpose would be to identify potential resettlement impacts of their proposed project. The objectives for this screening process are:

- To guide communities in identification of appropriate sites for implementation of various sub-projects to be funded from – SSRLP Additional Financing within their villages.
- To guide communities in identification of measures for addressing resettlement issues (if they arise) prior to submission of the proposal.
- To monitor measures for addressing the social impacts from resettlement.
- to work out necessary compensation measures before project implementation

5.2.1 The Screening Process

Figure 5.1 outlines a diagrammatic flow of the proposed resettlement screening of the community driven projects to be funded from SSRLP Additional Financing.

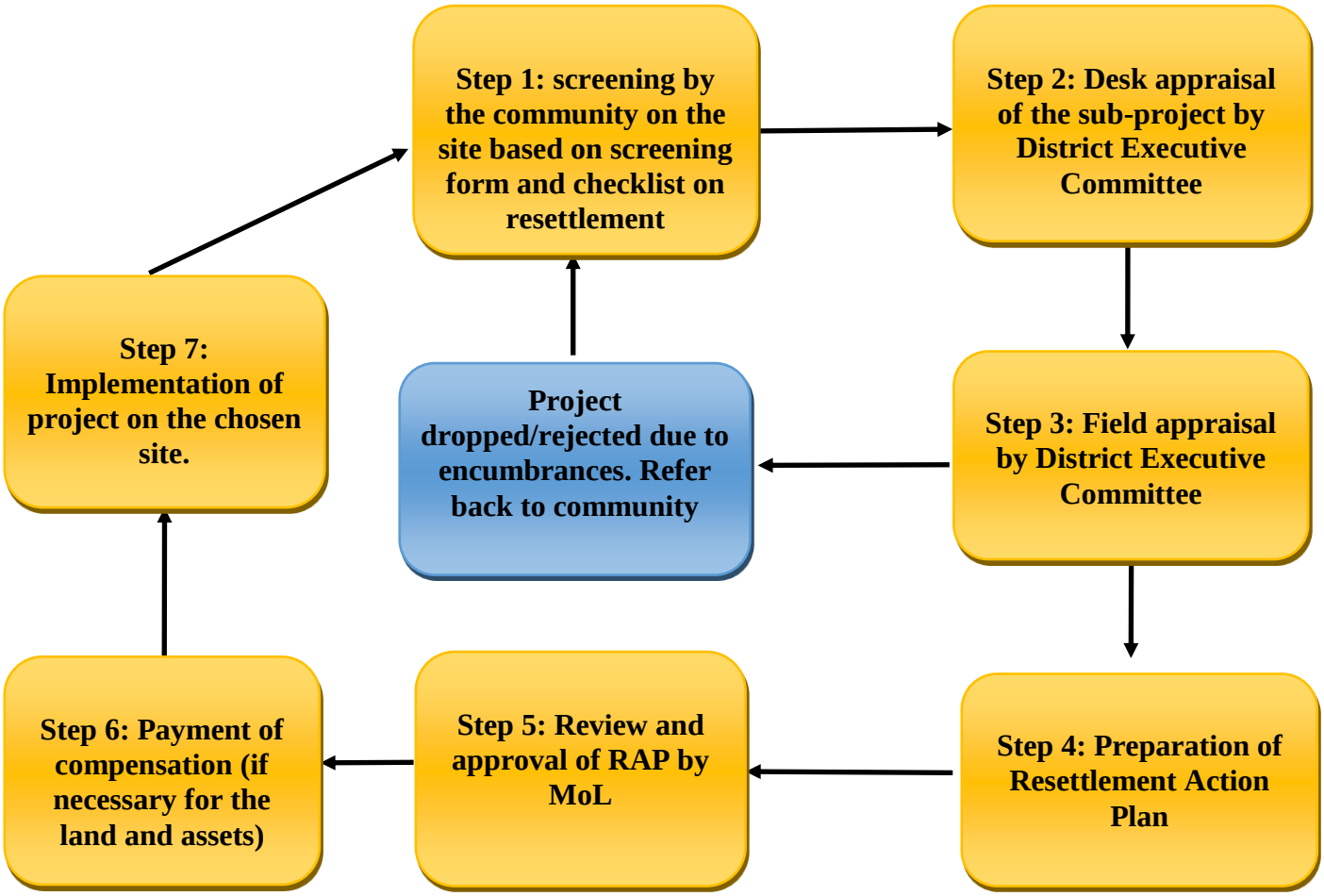


Figure 3: Diagrammatic Flow of the Screening Process

5.2.1.1 Screening of the Sites by Village Development Committee

This step will be the first step in the resettlement screening process, and it will be done by the Village Development Committee or Area Development Committees on the proposed site of the project. The committee would be assisted by extension workers from the relevant sector for the intervention being requested. The committee will carry out the exercise based on checklist and screening form (sample in Annex 1).The committee will be trained on use of the screening forms and prepared checklists on social impacts.

The aim of this exercise will be to assess the suitability of the proposed site or identify any form of hindrances. In case the land on the chosen site is owned by someone or has assets for somebody, village development committee will have to identify necessary compensatory measures for affected persons or ways of avoiding any compensation issues including voluntary land donation.

5.2.1.1.1 Voluntary Land Donation Forms

Implementation of the SSRLP Additional Financing will be based on experience gained from MASAFIV whereby Traditional Authorities were responsible to secure land for the subprojects through consultation with land holders. Land for the sub-project was acquired through amicable agreement. SSRLP Additional Financing will emulate similar procedures which should however be evidenced by filling in a written agreement form duly signed by both parties to the agreement. This procedure will be documented and reported through Quarterly Reports and end of Subproject Implementation Report. However, this process of voluntary land donation should be able to meet the basic principles of **informed consent** to donate land and **the choice to agree or disagree** and show that the act of donation is undertaken without coercion, manipulation, or any form of pressure

on the part of public or traditional authorities. Further, due diligence will be carried out to establish the status of ownership of the donated land and completion of transfer where applicable. The Land Donation Agreement Form is attached as Annex 6.

5.2.1.2 Desk Appraisal of the Proposed Site and Project

Desk appraisal of sub projects from the community will be carried out by District Executive Committee led by District Lands Officer in districts of site location. This would help to appreciate the scale and size of the proposed plans. The project appraisal form has to indicate that the proposed site is either free from hindrances or that all resettlement related issues have been sorted out by the community well in advance.

5.2.1.3 Field Appraisal of the Proposed Site and the Project

The purpose of the site visit would be for the District Executive Committee to verify the indications by the community that the proposed site is free from encumbrances or that any resettlement related issues have been sorted out. In this connection, while in the field, District Executive Committee members will undertake rapid verification screening of the site and proposed activities. This will be undertaken by use of the *Resettlement Screening Form Annex1).*

5.3 Preparation of Resettlement Action Plan for Selected Sub Projects

In implementation of sub projects, most cases related to resettlements would be ably sorted out by community prior to request for project funding from SSRLP Additional Financing. In such cases there would be no need of resettlement action plans. However, there is likelihood of cases in which the community may (for good reasons) wish to acquire land by public interest and implement a sub project in an area where there would be impacts on people and properties. Such instances would require that the community has to address resettlement systematically. This would mean preparation of Resettlement Action Plan (RAP) for the sub-project. It will be the responsibility of District Lands Officer to assist the community in mobilisation of appropriate team of experts to prepare a resettlement action plan within a reasonable time. A diagrammatic flow chart regarding the preparation and implementation of resettlement action plan is provided in annex 3. An outline of the contents of a resettlement action plan is provided in annex 2. In general, a resettlement action plan for a community based sub-project must consist at least the following aspects:

- Description of the location of the proposed sub-project.
- The size of land which the sub-project will take up and its existing uses.
- Detailed inventory of all assets to be lost or impacted by all households and individuals affected by having to move their place of residence or business to allow for the construction of the facility. This must be made from baseline survey (census of the area) against which the future well-being of the household can be measured. A plan of action for the resettlement of the homestead must be drawn.
- Inventory of the people who will lose land over which they have established ownership or rights of usufruct (either permanently or temporary fashion) to allow for construction of the facility. This must be made from baseline survey (census of the area) against which the future well-being of the households can be measured. A plan of action for the resettlement or replacement of homestead and/or impacted assets must be drawn. This should also detail how compensation for crops will be paid, where replacement of land will be found (if necessary), and which steps will be followed to ensure that the households productive base is re-established.
- A plan of action for ensuring that the communally held resource base is replaced/re-established to ensure that no one is worse off after project implementation than before is established.

The preparation of a resettlement action plan would be done as collaborative efforts between the community and District Executive Committee. Key officials to be involved would be the District Lands Officer, District Forestry Officer, District Water Officer, Environmental District Officer, Community Development Officer and extension workers. The local Authorities will demand support from the Department of Landsat Ministry of Lands where there are inadequate technical skills (such as valuation experts) at district level. As required by the Government regulations, Resettlement Action Plans prepared by the team of experts will be reviewed and approved by the Ministry of Lands and Urban development. Nonetheless, since World Bank policies supersede the national legislation on involuntary resettlement, therefore, as an agreed project processing, SSRLP Additional Financing will be following World Bank operational safeguards policies which basically require that *All Resettlement Action Plans undergo World Bank review and clearance.*

5.3.1 Estimation of displaced persons and Cutoff Date

Cutoff date is the date when the team that is facilitating resettlement/relocation of PAPs completes conducting census and compiling an inventory of the PAPs and their property in a particular project area. Information regarding the cutoff date will be documented and disseminated throughout the project area and in relevant local languages. This will include posted warnings that persons settling in the project area after the cutoff date may be subject to removal.

Census of the PAPs and their property is conducted in order to get pre-resettlement data and information regarding those PAPs that will be re-located in order to plan for their compensation and resettlement. The exercise involves head count of the people and their property in the project area. All heads of households who were not residents in the area prior to the cutoff date are not eligible for resettlement assistance and compensations. The steps which are undertaken to conduct census of the PAPs and their property include the following:

5.3.1.1 Site visit to the project areas

This will help to appraise the pattern of the structures, scope of activities and density of residential properties on the site.

5.3.1.2 Identifying boundaries of the proposed project areas

The purpose would be to prepare boundaries of the site within which to work on.

5.3.1.3 Determining the size of land to be lost

The exercise will involve estimating the size of land the PAPs will lose to the project.

5.3.1.4 Conducting physical check and count of the houses within project area

The activity will be conducted to find out the number of houses and heads of households who will lose their property to the project.

5.3.1.5 Establishing number of persons per household

The activity will establish the number of persons living in one house in the project area especially those people who will lose their houses to the project.

5.3.1.6 Socio-economic Survey

There is need to conduct a census to identify the persons who will be affected by the project to determine who is eligible for assistance and benefits, determine levels of asset loss (i.e. land, structures or crops/trees) and assign economic values to them. To effectively do this, a socio-economic survey will be undertaken, which will coincide with an inventory of all assets for PAPs. The socio-economic survey process will involve a review of tenure documents owned by occupants, and interviews with individuals, households and groups in the affected area(s). Resettlement plans

would be based on recent information about the scale and impact of resettlement on the displaced population. In addition, to documenting standard household characteristics, the socio-economic survey will describe:

- The magnitude of displacement;
- Information on the full resource base of the affected community;
- Extent to which the groups will experience total or partial loss of assets;
- Public infrastructure and social services that will be affected;
- Formal and informal institutions (such as community organisations, ritual groups, etc.)
- that could assist with designing and implementing the resettlement programme; and
- Patterns of group and individual livelihood strategies and how these would be affected by resettlement.

5.4 Asset Valuation Methodology

This section describes the approach and methodology used in the valuation of project affected assets. It also describes how the asset inventory was conducted in the sub-project areas.

5.4.1 Basis of Valuation Methods

The valuation of assets in this Project is based on national laws and World Bank Environmental and Social Standard on Land Acquisition, Restriction on Land use and Involuntary Resettlement (ESS5).

5.4.1.1Malawi National and Legal Provisions

There are a number of legal provisions in Malawi that govern compensation in the event that an affected person's assets are affected. Section 28 of the *Constitution of Malawi* provides that every person shall be able to acquire property and that having acquired that property; no person shall be arbitrarily deprived of the property. Section 44 (4) further states that expropriation of property shall be permissible only when done for public utility and only when there has been adequate notification and appropriate compensation, provided that there shall always be a right to appeal to a court of law. The principal Act on Land Matters- *The Land Act 2016* - provides that any person who suffers any disturbance of, or loss or damage to any interest which he had shall be paid compensation for such disturbance, loss or damage as is reasonable. Additionally, the *Land Acquisition and Compensation Act 2016* provides the procedure for the assessment of appropriate compensation. It considers three steps as being necessary to arrive at an appropriate compensation, namely:

1) The consideration which the person entitled to the land paid in acquiring it;
2) The value of the unexhausted improvements to the land made at the expense of the person entitled thereto since the date of his acquisition thereof; and
3) Any other appreciation in the value of the land since the date of such acquisition.

The approved 2002 Malawi National Land Policy (4:12, 16) carries the spirit with which valuations have to be conducted especially on customary lands. In part it says that land values shall be determined by open market procedures for customary lands acquired through compulsory acquisition by the government. It further notes that, "the inadequacy of compensation is always the direct result of excluding certain items or qualities from the factors considered when determining value and delays in payment of compensation".

5.4.1.2 World Bank Environmental and Social Standard on Land Acquisition, Restrictions on Land use and Involuntary Resettlement (ESS5)

The World Bank requires best international practice in resettlement matters and expects the host government entity to apply **Environmental and Social Standard 5 (ESS5)** on involuntary

resettlement to all activities under the project. The World Bank defines involuntary resettlement as physical displacement (relocation, loss residential land or shelter), economic displacement (loss of land, assets or access to assets, leading to loss of income sources or other means of livelihood), or both. Nonetheless, it is appreciated that the **ESS5** take precedence in the case where national practices are below those of the World Bank. The **ESS5** states that Replacement Cost as a rate of compensation for lost assets must be calculated at market value plus and other assistance as may be necessary to help them improve or at least restore their standard of living or livelihoods. It further expects the Project to compensate affected people for loss of physical assets, revenue and income resulting from economic displacement or physical relocation regardless of whether these losses are temporary or permanent.

With regard to land and structures (buildings), the replacement cost is defined as follows:

a. *Agricultural land*: The market value (MV) of land of equal productive potential located in the vicinity of the affected land.

b. *Land in urban areas:* The market value of the land of equal size and use, with similar or improved public facilities and services located in the vicinity of the affected land.

c. *Household and public structures:* the cost of purchasing or building a new structure within the area, with land size and quality similar or better than those of the affected structure or of repairing a partially affected structure

5.4.2 Valuation Practice in Malawi

Valuation in Malawi is undertaken by Real Estate professionals registered under the *Land Economy Surveyors, Valuers, Estate Agents and Auctioneers' Act of 1989 (CAP:53.08)* of the laws of Malawi. They are themselves Members of the Surveyors Institute of Malawi (SIM). SIM subscribes to the International Valuation Standards of the International Valuation Standards Council. As such, valuation of assets is done in accordance with Practice Statements and Guidance Notes published by the *International Valuation Standards Council (IVSC)*. The IVSC (2009) defines Market Value as *'…the estimated amount for which a property should exchange on the date of valuation between a willing buyer and a willing seller in an arm's- length transaction after proper marketing wherein the parties had each acted knowledgeably, prudently and without compulsion'*.

5.4.3 Valuation Methods Applied

The Method used in valuing the assets affected is dependent on the use, type and market conditions of the asset. Based on the knowledge of the asset impacted by the project, the appropriate methods used in the valuation of the affected asset are Cost approach, Investment approach and Comparison approach. The following categories of assets will be affected:

- Loss of land
- Loss of structures/ buildings
- Loss of crops
- Loss of trees (fruits, exotic and natural)
- Loss of access /damage on cultural heritage sites/burial grounds/shrines
- Loss of livelihoods (businesses, farming, fishing, waged labour, access to resources).

5.4.3.1Valuation for Loss of Land, Structures, Crops and Trees

i. Valuation for Loss of Structures

Considering that the area of impact of the Project will be generally rural in nature where no structure is sold or bought, the Cost Approach/Replacement Cost method of valuation will be used for this RPF. The first step in this approach will be to carry market research within the sub project areas by collecting costs of materials having identified the types of structures impacted. It also will also involve meeting contractors in areas of potential impact where possible and applicable. The cost of the structures will be divided into three categories in order to simplify calculations. These categories

were the main structure, the roof structure and the floor construction materials. These categories were mainly based on the material used, which determines the type of labour used and workmanship. This division will help to simplify the valuation of assets with different combinations of materials.

ii. **Valuation for Loss of Land**

Land values are derived by using two main methods of valuation: Sales Comparison and Income/Investment Method. These are market based valuation methods. The use of each one of these methods results in derivation of land market values. However, in cases of scarcity of market evidence on sales of land within the project area, the preferred method of valuation for such land has been investment method. The valuation of commercial, retail and industrial property is always based on the primary method of valuation being an income based valuation method, rather than by the use of the direct comparison method (API, 1997). Despite the importance of agriculture to the Malawian economy, there has not been the same importance placed on the valuation of rural property based on the income potential and profit generation of this asset class compared to other income producing property sectors.

Profit based property sectors, such as the tourism and leisure sectors, as well as all businesses are valued by adopting an income method, which reflects the potential of the property, as well as the management ability of the current property owner / operator (Whipple, 1995; Fischer, 2002, API, 1997). It would be only on very rare instances that a valuer would value a hotel, resort or business -based property solely on the direct comparison method, as this method would not provide a value based on the actual income generated by the property. With such property sectors, value is not directly based on the size of the land and buildings or the construction and quality, but the income stream and the risk of maintaining that income stream.

A rural property is a property that has its value based on the level of productivity associated with the property in regards to location, soil type, climate and topography. The better these physical attributes combine with the management of these assets to produce income, the higher the value of the land (Eves, 1996, 2000, 2001). Although the location of the rural property will determine the general characteristics of a rural property and therefore the potential productivity, individual farmers within specific rural property markets can actually have considerable variations in both the commodity yields achieved from year to year and commodity prices received. These production variations also result in considerable differences in farm net profits across all farms in any one location. As over 80% of Malawian land is under agriculture, it offers good reason to value rural registered freehold estate (in this project area) but agricultural land using the income approach. This gives an objective approach in deriving land value. This approach considers the gross revenue less production costs, the result of which is capitalised at a market cap rate for a period of time. In deriving the values in our current situation, the crops grown in the district of impact were identified through the District profile documents and other research articles including the data from the Ministry of Agriculture's Agri-economic Survey section, which provided the current prices of the crops on market. This helped to calculate the gross revenue and also the net revenue.

iii. Loss of crops

The approach described in the section is provided for the damaged crops during the rehabilitation of roads, forestry, irrigation schemes and other infrastructures i.e. bakeries. In the event that annual crops have been damaged, the calculation of amount payable would be based on the average market unit price of the crop over a period of the past three years multiplied by the highest annual yield in kg and that multiplied by the land size on which it is grown. The market prices and yield per crop would be obtained from the Ministry of Agriculture, Irrigation and Water Development. At the time of asset inventory crops will be avoided to in line with principle 1 of this RPF.

iv. Tree Assessment

Unlike the assessment of land, the tree assessment will be based on Malawi Government Gazette of 2010 form Department of Forestry. This provides different approaches for assessment of trees for both commercial and domestic purposes. In view of this report which is the subject, assessment for commercial purposes has been considered to be more reasonable. An upward adjustment would be made to rate provided by the Forestry Department to cater for the prevailing market trends.

v. Fruit Tree Assessment

In terms of the assessment of fruit trees a consideration was made to use the average yield/tree/year, average current market price and expected productive life span. Fruit Compensation schedule attached and number of each claimant's fruit trees, the assessors obtained the compensation payable to each fruit tree owner basing on the current market. Considering the productive life only, the establishment cost was calculated by averaging the cost of a tree with the duration and longest duration to production. In calculating the yield per fruit tree and average prices, the assessor disregarded the size of the trees as is the case with forest tree above. Prices adopted are the highest that could be obtained in the market at the time of the research.

vi. Valuation and Compensation for Loss of Profit

Loss of profit refers to damages payable to the owner of the business whose business is to be shut down to give way for implementation of a certain project. Value for each type of loss of profit will be paid to the affected person. The appraisal will cover the type and number of such losses that individual will suffer, in addition to total compensation payable in loss of Land and improvement thereon.

vii. Disturbance Allowances

Disturbance allowances shall be paid in addition to the compensation of value of land and exhausted improvements. A disturbance allowance is paid to a PAP as per Lands Acquisition and Compensation Act 2016 but based on prevailing Central Bank Lending Rate.

5.5 Eligibility Criteria for Compensations for Project Affected People

In cases of the need for resettlement in relation to implementation of sub projects in their chosen sites, it is necessary to ensure that necessary compensations are taken care of and sorted out prior to submission of project for funding from SSRLP Additional Financing. The procedures for determining eligibility for compensation, resettlement assistance and the actual displaced persons shall consider the following:

a. Those who have formal legal rights to land, including customary and traditional rights recognized under the laws of Malawi. This class of people includes those holding leasehold land, freehold land and land held within the family or passed through generations.
b. Those who have no formal legal rights to land at the time the census begins but have a claim to such land or assets provided that such claims are recognised under the laws of Malawi. This class of people includes those that come from outside the community and given land by the local chief to settle.
c. Those who have no legal right and/or claim to the land they are occupying. This class of people includes those that settle at a place on semi-permanent basis, or those settling at a place without any formal grant or authority. These include squatters on titled private land or on public land as well as squatters on community land held in trust by the traditional authorities but who have no recognisable claim to such land, as well as any squatters without recognisable membership to the ranches. All PAPs who are eligible for compensation under any of the three eligibility criteria, including unregistered community lands and squatters, will be compensated for all their eligibility entitlements, especially land, prior to start of

works in accordance with the provisions of this RPF and the RAPs that will be prepared for the subprojects on the basis of this RPF.

Impacted persons classified under paragraph (a) and (b) shall be provided compensation from the community for the land, building or fixed assets on the land and buildings taken by the project in accordance with the provisions of this framework if they occupy the project area prior to the cut-off date (date of commencement of the census). Impacted persons classified under paragraph 4(c) shall be eligible for assistance from the community for the assets but not land. Persons who encroach on the project area after the cut-off date shall not be entitled to compensation, or any resettlement assistance or any other form of rehabilitation assistance.

5.6Entitlements for Compensations

Entitlements for compensation by project affected persons from the local community shall be based on the criteria outlined in 5.5 and the various categories of losses identified in the desk studies and field consultations. The matrix in table 5 will be used in the settlement of claims for compensation for lost assets of project affected persons based on the aforementioned principles in 5.5 above and legal framework where land is involuntarily taken. Unless otherwise indicated, payment of compensation and other entitlements and the extension of assistance will be given by the local community to head of households and not individuals. Table 5 provides details of entitlements to compensations to various potential categories of project affected persons.

5.7 Approach and Procedures for Delivery of Compensations

Once valuation of land and assets has been finalized, there is need to disclose the compensation schedules and values to the PAPs. This helps to get views from the PAPs in terms of rejecting and or accepting the values as this eventually reduces levels of queries in the schedules. The PAPs shall accept the compensation payment values by signing on forms that will be designed. After disclosure the District Land Officer will circulate the compensation schedule to District Executive Committee for their information and knowledge while the same is submitted to the Chief Valuation Officer for approval. The process of compensation payments which is done by the office of the respective District Commissioner has to be fast tracked to reduce risks of inflation and devaluation of the sums of the money. Normally the compensations have to be delivered to project affected persons before resettlement of the affected persons. The recommended procedure for the community to deliver compensation to project affected people is as follows:

(a) Delivery of compensation based on official valuations

This delivery mechanism is based on what the project offers (including community contribution) such sums deemed adequate as compensation to displaced person; and that person may accept that amount as compensation payable to him. Normally, the sums are disbursed to the District Commissioners or Chief Executive Officer (CEO) for the district in question for payment to the displaced persons. Local village headmen, traditional authority and council shall maintain records of impacted persons, their claims and entitlements. After payment of such sums, council documents the name(s) of the impacted persons, the amount of compensation and the records of how the compensation was arrived at. A copy of such records shall be made available to the government, local authorities and the general public.

(b) Delivery of Compensation based Values Arbitrated by Formal court.

Normally this approach is based on the recommended figures for compensations from courts. Such incidents occur when some people appeal to courts for review of the compensation packages. What is decided by the courts can be used for compensation to project affected people.

It should be highlighted that in case some project affected persons have objections to land acquisition and resettlement, their objections have to be done in writing to District Commissioner or Commissioner for Lands within 21 working days after the public notice; or formal complaint lodged via local village headmen and traditional authority. It should also be pointed out that normally claims are not entertained after five years from the date of the proclamation; and or 6months after the execution of the purpose out of which the claim has arisen in respect of any damage done to the land acquired.

Table 5: Entitlements for Project Affected Persons

CATEGORY OF PROJECT-AFFECTED PERSONS	TYPE OF LOSS	ENTITLEMENTS FOR PROJECT-AFFECTED PERSONS		
		Compensation for loss of structure	Compensation for loss of land and other assets	Compensation for loss of home and livelihoods
Property owners including those on customary land regulated by traditional authorities	Loss of land	Cost at full replacement value based on current market value/rates	Land replacement at new site plus land clearing by the project.	Cash compensation for crops and trees at replacement values in scarce season based on current market value/rates Allow sufficient time to harvest annual crops
	Loss of structures – residential premises or business	Cost at full replacement value based on current market value/rates	Fence, brick work, wire and wood Wells Stores Wastes water facilities Connection to utilities Access roads	Full compensation for the loss of home (structure) based on current market value/rates paid to the owner + Lump sum payment for loss of income from rented property based on number of months per tenant,
	Socio-economic livelihood/identity	None	None	Disturbance allowance, transportation cost for relocation Rehabilitation assistance, skill training , cash transfer public works programme Link the project affected communities to sub – finance loans and assistance.
Residential tenant Business tenant	Loss of rental accommodation	Replacement of number of houses lost on the site based on current market value/rates	Replacement costs for non-movables	Disturbance assistance Transportation assistance if relocating Provision of rental fees for few months (at least 3 months) + assistance to find a new rental place;
Business tenant	Loss of premises	None	Replacement costs for non-movables if installation was agreed with owners	None
	Loss of business	None	None	Payment of lost income at an agreed rate (payment of six months of rent per year average turnover)
Vendors	Loss of hawkers	Compensation at full replacement value for structure	None	Payment of lost income at an agreed rate (payment of six months of pas year average turnover)
Encroachers using land (pirates)	Loss of land	See below	None	Cash compensation for crops/trees at full replacement cost during scarce seasons based on current market value/rates

				Permission of sufficient time for harvesting annual crops, fruits and timber trees
	Loss of structures/shelter	Compensation at full replacement value for structure Payment of site rent	None	
Squatters – living on the site	Loss of shelter/structures	Compensation at full replacement value for structure based on current market value/rates Payment of site rent	None	Payment in lieu of wages while rebuilding Provision of disturbance assistance Provision of transport assistance in relocation to a site where they can legally reside Right to salvage assets/materials
Community	Public facilities	Compensation at full replacement value for structure based on current market value/rates Payment of site rent	Replacement of land at new site plus clearing of the site. Waste facilities, connection to utilities and provision of access roads.	Payment of lost income for business. Establishment of temporary facilities during construction.
Crop owner PAP, Affected village (in case of natural trees)	Fruit trees and perennial crop	None	Compensation based on the highest market price/kg and estimated loss of revenue from tree planting to fruit bearing	a) Valuation of perennial crops to be based on the product of their average yield for the period between planting and bearing of fruits and market price b) Input costs (kg/crop/year) c) Valuation of fruit trees to consider the time between planting and bearing of fruits **d)** Village Development Committee to receive compensation for loss of community assets.
Tree owners, affected village (in case of natural trees)	Other trees	None	Compensation will be based on the provisions of the Forestry Gazette, Government of Malawi (2010).	• Size of trees being lost will be considered in the valuation. Larger trees will attract higher rates Rates will be based on discussions with the Department of Forestry

Crop owner/PAP	Annual crops	None	a) Full compensation, based on the average market unit price of the crop over the past three years, multiplied by the yield /kg and by the land size. **OR** Notice to harvest standing crops shall be given.	The yield shall be the highest yield of that particular crop, as determined by Ministry of Agriculture, Irrigation and Water Development.

CHAPTER SIX

STAKEHOLDER CONSULTATION, COMMUNICATION AND PROCEDURES FOR GRIEVANCE REDRESS

6.1 Stakeholder Consultations

The Social Support for Resilient Livelihoods Project has developed a Stakeholder Engagement Plan which describes the nature of the stakeholders anticipated in this project, their interests and expectations, information needs, and timing and methods of their engagement throughout the lifecycle of the project. The Stakeholder Engagement plan also lays down the grievance redress mechanism structure through which persons, communities and institution affected by the activities of the project may forward their concerns or feedback about the project and obtain redress. The stakeholder consultations, communication and grievance redress procedures explained in this section form part of and are in tandem with the overall stakeholder engagement plan of the Social Support for Resilient Livelihoods Project.

The preparation of this RPF has followed an extensive consultation process with various stakeholders at community, local authority and National levels including consultations with vulnerable groups. The districts where district and community level stakeholders were consulted during the SSRLP Additional Financing project preparation stage include Chitipa, Karonga, Dowa, Nkhotakota, Balaka, Chiradzulu and Phalombe. Target stakeholders included members of the DESC and District Social Support Committees (DSSC) at district level and selected members of community development committees and their relevant subcommittees, MASAF IV core program beneficiaries and representatives of community based organisations and vulnerable groups of people available at community level. Experiences and expectations with regard to resettlement issues were further shared. Field visits were made to communities to obtain feedback regarding their experience implementing the previous similar project and other related Bank Funded operations.

Further consultations with various concerned stakeholders will be undertaken during the preparation and implementation of resettlement action plans where the need for RAPs arises. The process of stakeholder engagement for RAPs will be based on the principles of providing information to all stakeholders over different communication platforms, promoting dialogue between all stakeholders including civil society players if needed, and promoting access to information by availing it to all stakeholders at all levels. Open and transparent engagement between project stakeholders will ensure effectiveness of land acquisition processes and enhance the sustainability of subprojects. During preparation and implementation of RAPs, stakeholders (individuals or groups) will be consulted so as to foster constructive and responsive platforms important for mitigating land related conflicts. Participation and consultations will take place throughout all the planning and implementation phases of the RAP process including the data collection, implementation and monitoring and evaluation phases.

a) Data Collection Phase

Information on land ownership and land acquisition for sub-project implementation will be collected from communities to ensure mitigation of the occurrence of land disputes and to minimise grievances.

b) Implementation Phase

It is expected that during implementation of the Programme, PAPs will be informed about their rights and options. The grievance mechanism will continue to operate, and all grievances will be recorded. The participation of local leaders and PAPs in disseminating information and resolving

disputes will be important once RAP implementation starts. A dynamic participatory approach involves PAPs in decision making about the public works and livelihood support programmes.

c) Monitoring and Evaluation Phase

Stakeholder consultations shall be an integral part of the monitoring and evaluation of the RAP planning and implementation process.

6.2 Disclosure of the Resettlement Policy Framework and RAPs

The RPF and RAPs that may be prepared will be made available to the public in an appropriate form, manner and language. The Government of Malawi will make available the electronic versions of the RPF to the general public on the official website of the National Local Government Finance Committee (www.nlgfc.gov.mw) prior to project appraisal. The RPF summary will be translated into Chichewa and other major ethnic languages and made available at District level. The RPF will also be made available at community level through billboards, posters, short videos, jingles, radio and TV, simple brochures, leaflets, and booklets to be developed, published, and distributed. A summary of the voluntary land donation agreement with detailed information of the sub-project will be disclosed to the public in local language through leaflets and other platforms that will be made available to community committees at every sub-project site.

In addition, the Bank will make available electronic versions of the RPF to the public on the World Bank external website in accordance with the Bank Policy on Disclosure of Information prior to project appraisal.

6.3 Grievance Redress Mechanisms on Resettlement Activities

Resettlement of people generates a number of challenges especially to those moved from one place to another. Examples of complaints include: objections to use of someone's land, encroachment on private land, theft of properties within the land, harassment of women, and marginalisation in distribution of material assistance. And examples of grievances: include dissatisfaction with amount of compensation and, dissatisfaction with size and nature of land replacement.

Much as the SSRLP Additional Financing will seek to avoid involuntary resettlement and land use restrictions, land related grievances may still crop up in one way or another in implementation of sub-projects to be funded from SSRLP Additional Financing. It should be pointed out that since the implementation of sub projects will be community based, negotiation and agreement by the affected party will provide the first avenue to iron out and resolve any grievances expressed by the individuals, the land owners or households whose land and properties might be affected. The communities will ensure that resettlement related grievances should be addressed during the identification and appraisal of sites. In this context, proper channels of grievance redress mechanisms will be put in place and the project affected people sensitised to make use of them. Normally, the channels have to be in line with norms of the communities as well as laws of the country.

The RPF will utilise the Grievance Redress Mechanism which has been developed for the SSRL Project as part of the stakeholder engagement plan. The GRM for the SSRLP Additional Financing provides for negotiation and agreement by consensus between the community and affected persons as the first avenue to resolve grievances expressed by the individuals about the project including resettlement issues. This is because the implementation of sub projects will be community driven. Thus, the process of grievance redress mechanisms will initially be handled by grievance redress committees which operate within the community settings themselves.

However, in events where some aggrieved parties are not satisfied by decisions made at village grievance redress and management committee (VGRMC) levels, the cases will be referred for

review and re - consideration to higher level grievance redress committees at Area (Traditional Authority) (AGRMC), District (DGRMC) Levels. In cases where the grievances are not resolved at the district level, the case will be referred to national level grievance redress and management committee (NGRMC) to which the Ministry of Lands is also a member. In extreme cases, when the issues remain unresolved at the national level, case is referred to the court.

Local councils will facilitate capacitation of the grievance redress structures to be able to avoid or resolve all resettlement related grievances during the identification and appraisal of sub-project sites where ever possible. In this context, proper channels of reporting grievances will be put in place and the project target communities will be accordingly sensitised to make use of them. These channels shall include but not limited to:

- Face to face with sub project committee members, extension workers, district staff, and national staff during visits to their project site
- Grievance boxes and desks to be set up at pay points during pay-parades
- Written letters
- E-mail or SMS

The GRM for the SSRLP is complimentary to other existing grievance redress mechanisms within the communities such as traditional chiefs, courts, police, anticorruption bureau, human rights bodies and civil society organisations. As such communities shall be informed about the other existing mechanisms and be allowed to make use of them when and where ever they find it necessary. This would also assist in creating alternative space for PAPs who would otherwise not be able to voice out their concerns through the main GRM structure for fear of reprisals despite repeated assurances the project may provide. The project will therefore also identify and engage institutions that provide alternative grievance redress mechanism services in project target areas in order to create linkages that would provide necessary feedback to the Project GRM. Figure 5 is schematic diagram of the GRM set up for the Social Support for Resilient Livelihoods Project.

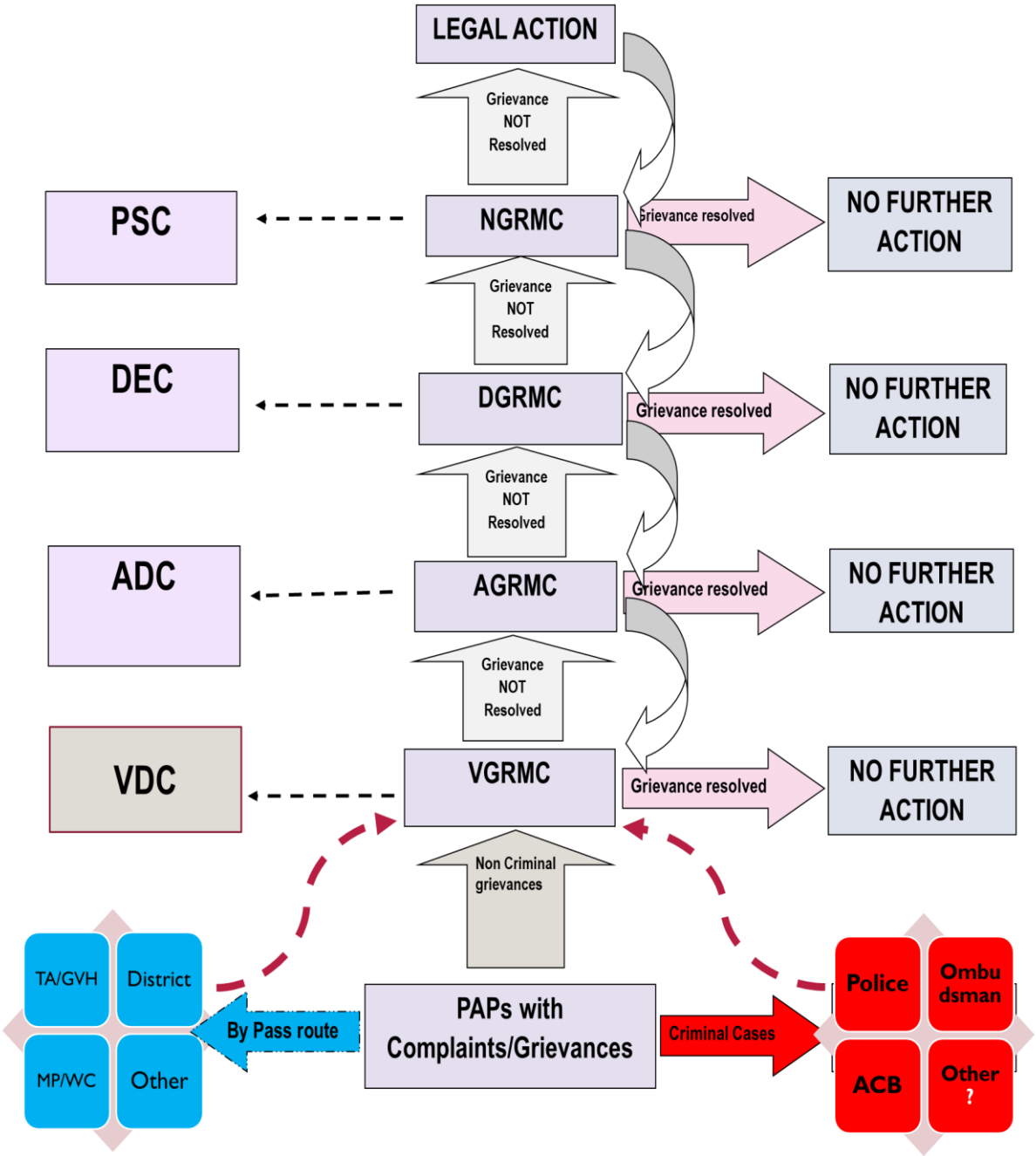


Figure 5: Institutional arrangement for the SSRLP Grievance Redress Mechanism

6.3.1 Gender Based Violence and Sexual Exploitation and Abuse (GBV and SEA)

Implementation of the Programme will generally have positive impacts on communities. However, where cash benefits are introduced within communities and households, relations can shift and raise the potential for Gender Based Violence (GBV) and Sexual Exploitation and Abuse (SEA). Such incidences may arise especially in situations whereby household representatives that receive Programme benefits are forced to surrender the cash to spouses, where payments may be used to lure adolescents into unsafe sexual practices, or cases of forced sexual relationships in return for favours.

The Programme will use community sessions to create awareness and to mitigate the possible effects of GBV and SEA. In all cases, the incidents will be reported and dealt with through the GRM procedure. However, since GBV cases are substantively different from other complaints that

are typically handled through the grievance redress mechanisms such cases will need a specific channel within the GRM for their management whereby all information must be treated as confidential and the GRM operator should be trained on how to approach survivors that must be referred to a safe and ethical GBV service provider.

CHAPTER SEVEN

ORGANISATIONAL ARRANGEMENTS, BUDGET ESTIMATES, IMPLEMENTATION SCHEDULE AND CAPACITY BUILDING

7.1 Institutional Arrangements

Resettlement exercises have been a traditional responsibility of the Ministry of Lands (particularly the Department of Lands), the District Commissioner, Traditional Authorities and village heads within the chosen area. However, today because of the multi-dimension of resettlement activities, successful implementation of resettlements depends on collaboration of different stakeholders, at local level (village/area), district and national levels. This is necessary because the implementation of the activities would require inputs, expertise and resources which would be adequately taken care of if the concerned parties liaise from time to time. Figure 6 below outlines a diagrammatic arrangement of key institutions to be involved in resettlement.

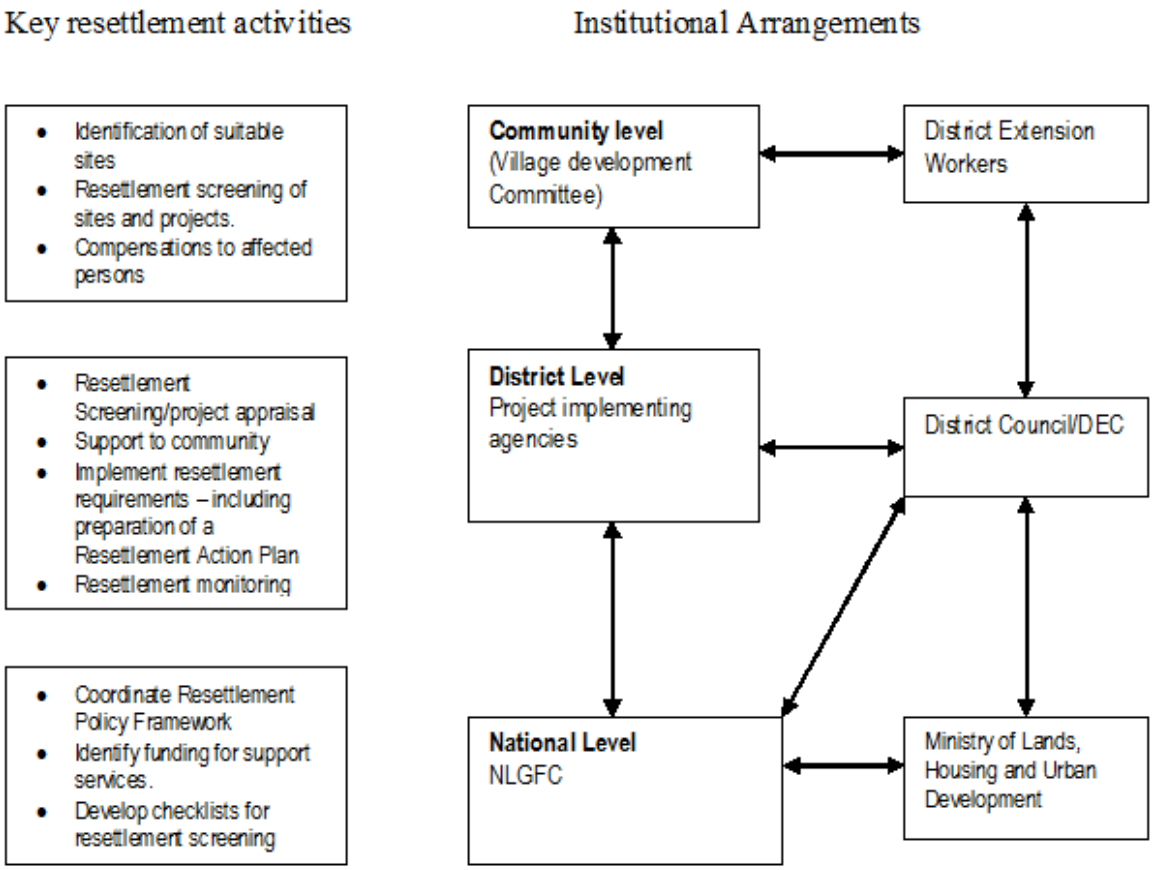


Figure 6: Diagrammatic Arrangements of Key Institutions in Resettlement Activities

7.2 Definition of Responsibilities of Stakeholders

The following sections outline key responsibilities of the institutions involved in resettlement planning and implementation within the context of implementation of sub projects to be funded from SSRLP.

(a) Responsibilities of the Community.

In context of community development initiatives, permanent community level structures include village development committees, area development committees and area executive committees. Main responsibilities in resettlement activities will be as follows:

The Village Development Committee (VDC) / Area Executive Committees (AEC), which include extension workers, will be responsible for resettlement screening based on checklists and screening form (annex 1). This would help to identify and mitigate the potential social impacts within selected sites. The exercise will help the communities to select potential sites without cases of resettlement. The committees will be responsible for consultations with wider communities on resettlement related matters.

The Village Development Committees (VDC) and Area Development Committee (ADC) will be responsible for identification of project affected people, assets to be compensated and identification of resources for compensations to those to be displaced where required. The Village Development Committee/Area Development Committee will be responsible for initial attention to grievances which may arise from resettlement related matters. It should be pointed out that since sub projects are community based, negotiation and agreement by consensus will provide the best avenue to iron out and resolve any grievances expressed by the individuals, the land owners or households whose land and properties might be affected. The communities will ensure that resettlement related grievances should be addressed during the identification and appraisal of land for the sub projects.

The main institutional weaknesses of these local structures include the following: inadequate knowledge on use of screening forms on resettlement, in adequate skills in scoping social impacts from resettlement related exercises. One way of addressing these gaps would be for the DESC, whose membership includes District Lands Officer, Environmental District Officer and Land Resources conservation officer, to provide technical backstop to extension workers and village development committees with support from valuation officers from the Department of Lands.

(b) Responsibilities of the Local Authority

The District Environmental Subcommittee is the key implementation arm of the Local Authority and responsibilities in relation to resettlement activities will be as follows:

Local authorities will be the main implementing government institutions on resettlement activities within the implementation schedule of the SSRLP Additional Financing. Main tasks will include project screening for resettlement; preparation of Resettlement Action Plans; and implementation of compensatory measures; supervision and monitoring of community level resettlement activities in line with Resettlement Policy Framework. Necessary annual budgets provisions for resettlement related activities will be made for each district assembly.

At desk appraisal, District Environmental Subcommittee will screen the proposal for information on land acquisition, resettlement and project impacts. Application without such information will be referred to the communities. At field appraisal level, the District Environmental Subcommittee will verify that the land on the site is free from encumbrances. The local communities will have to confirm the information that the communities have appropriately acquired land and that all resettlement related matters have been cleared off. Implementation of resettlement activities by the communities will be undertaken based on Resettlement Action Plan which would be prepared based on steps outlined in section 5.2.0 in Chapter Five.

The DESC will also be responsible for making recommendations on rejections for funding sub projects which would bring about unwarranted involuntary resettlement of households or communities when implemented. In case there is need to prepare resettlement action plans for special sub project to be

funded from SSRLP Additional Financing, the DESC and the Department of Lands will arrange and provide technical support to the communities in the exercise. The District Environmental Subcommittee will be responsible for monitoring the community level activities on resettlement to ensure that compensatory measures are taken care of and adequately before commencement of a sub project.

Some institutional weaknesses at Local Authority include inadequate technical skills for valuation of properties, inadequate knowledge on use of screening forms on resettlement and inadequate skills in scoping social impacts from resettlement. Since 2005, Malawi Government (Ministry of Lands) had deployed District lands clerks in local authorities in order to assist District Commissioners in overall land administration and property management matters. Furthermore, the Ministry of Local Government and Rural Development deployed District Lands Officers who are graduate professionals to beef up provision of technical leadership in land administration and property management. The main job descriptions for District Lands Officers include overall land management within the district, monitoring land uses, conflict resolution on referred cases of land disputes, processing land leases and resettlement activities.

(c) Responsibilities at National Level

Resettlement activities require multisectoral services and as such several line ministries would be involved in one way or the other. However, in case of resettlement issues related to sub projects to be funded from SSRLP Additional Financing, the following ministries and institutions have to be involved adequately: National Local Government Financial Committee (NLGFC), Ministry of Lands, Ministry of Economic Planning and Development, Ministry of Agriculture, Irrigation and Water Development, Department of Forestry and Department of Environmental Affairs. Some of the main activities to be done at national level are as follows:

- Mainstreaming resettlement planning within project management systems of SSRLP Additional Financing by synchronising resettlement screening with sub project appraisal systems.
- Preparation of comprehensive and user friendly checklists on social impacts from land acquisition and resettlements to enhance orderly resettlement activities by the communities.
- Provision of necessary resources to district level staff for conducting resettlement awareness meetings within communities.
- Provision of necessary resources to district level staff for monitoring resettlement activities carried out at community level by the communities themselves.
- Coordination at national level monitoring on resettlement activities within the period of implementation of sub projects.
- Sensitisation of stakeholders on resettlement planning in implementation of sub projects funded from SSRLP Additional Financing.

7.3 Capacity Building for Management of Resettlement Activities

The proposed SSRLP Additional Financing will fund multisectoral community based sub projects in all the 28 districts across the country. The risks of generating resettlement issues emanates from observations that most of new sub projects would require land uptake within local villages. At the moment the specific locations are not known. In order to effectively screen resettlement issues, it is likely that the exercise would require dynamic and multi-disciplinary professionals. It is, therefore, necessary for the project to put in place appropriate tools for enhancing the knowledge and skills among the staff to be involved in resettlement screening and identification of compensatory measures. Some of the key capacity building activities which have to be carried out are as follows:

- Adaptation of checklists for social and economic impacts from resettlement activities to be used at local level. Such tools would guide the communities in avoiding involuntary resettlement in site identification processes. The target group for this exercise would be staff

of SSRLP Additional Financing, District Environmental Subcommittee, area executive committee, village development committees and area development committees.

- Training and awareness in use of resettlement screening forms in appraisal of sub-projects. The target group for this exercise would be staff of SSRLP Additional Financing, DESC, AEC and VDCs.
- Establishment of appropriate computer based information management systems for resettlement activities at local authority level. This is necessary so as to capture systematically data related to resettlement at local level.

7.4 Budget Estimates

Management of resettlement issues in relation to sub-project to be funded from SSRLP Additional Financing will be carried out at community, district and national levels. Appropriate budget support to activities expected at each of these three levels is outlined in Table 7.4.1 below. It should be pointed out that the budget estimates are indicative, and may be revised by stakeholders as the cases of resettlement become clearer and more specific. The tables also highlight sources of funding for the exercises. Furthermore it should be highlighted that the figures are provided with the assumption that the rates of land acquisition and compensation would be current local market values in context of traditional norms and customs.

Table 7.4.1: Indicative Budget for Resettlement Activities at Community, Local Authority and National levels

Serial Number	Losses or Impacts Budgeted for Expected on Proposed Site	Unit of Budget	Budget Estimates (MK)	*Budget (US$)	Source of Funding
1	National stakeholder awareness workshops on resettlement issues	Lump sum	14,400,000.00	18,666.67	Malawi Government
2	Preparation of checklists for social and economic impacts of resettlement	Lump sum	3,300,000.00	4,000.00	Malawi Government
3	Sensitisation of the communities on resettlement issues	Lump sum	5,170,000.00	6,266.67	Malawi Government
4	Training communities in resettlement screening process	Lump sum	17,600,000.00	21,333.33	Malawi Government
5	Training of Front-Line Staff in Resettlement Activities	Lump sum	33,000,000.00	40,000.00	Malawi Government
6	Resettlement screening exercises	Lump sum	4,400,000.00	5,333.33	Malawi Government
7	Preparation of Resettlement Action Plans	Lump sum	16,170,000.00	19,600.00	Malawi Government
8	Resettlement compensations	Lump sum	33,000,000.00	40,000.00	Malawi Government
9	Administrative and Monitoring activities	Lump sum	14,400,000.00	18,666.67	Malawi Government
Total			141,440,000.00	173,866.67	

* Based on 10 March, 2022 exchange rate of 1 USD = *MK 825*

7.5 Capacity Building Plan for Frontline Staff in Resettlement Activities

The implementation of this Resettlement Policy Framework has an inherent Capacity Building arrangement for frontline staff that are responsible for facilitating training and screening for resettlement. Four key categories of extension staff members will be targeted at area level and these include the Agricultural Extension Development Officer (AEDO), Lands clerks, Community Development Assistant (CDA) and the Forestry Assistant (FA).

The training will be done annually, and will be facilitated by a team of expert members of the DESC from the Local Authorities including the Environmental District Officer, District Lands Officer, the District Community Development Officer, the District Forestry Officer and the District Extension Methodology Officer. The indicative Budget for the training of the front line staff is as outlined in Table 7.4.1

7.6 Compensation and Project Schedule

Before any sub-project activity is implemented, people who are affected and have been determined to be entitled to compensation will need to be compensated in accordance to this Resettlement Policy

Framework. In particular, the use of acquired land and related assets may take place only after compensation has been paid and, where applicable, resettlement sites and disturbance allowances will be provided to displaced persons by the community. The measures to ensure compliance with this RPF will be included in the RAPs that will be prepared for each sub-project involving resettlement or compensation. A schedule of chronological steps covering all resettlement and compensation activities and agencies responsible for each activity will be prepared for the RAPs. The schedule should indicate how there settlement activities are linked to the implementation of the overall project. The schedule should also include target dates for the achievement of expected benefits to PAPs and hosts and terminating the various forms of assistance.

Table 8: An example of a RAP implementation schedule

NO.	ACTIVITY DESCRIPTION	TIMELINE (MONTHS)											
		JAN	FEB	MAR	APR	MAY	JUN	JUL	AUG	SEP	OCT	NOV	DEC
1	Prepare an inception report including overall work plan and schedule setting out the various activities in RAP												
2	Mobilise, and resource, the team as per the agreed schedule to carry out the various resettlement activities												
3	Prepare a consultation plan for the project identifying what project information will be communicated, how it will be communicated and to whom and when it will be communicated throughout the assessment and preparation of the RAP;												
4	Conduct trainings, stakeholder and community consultations and project information education and communication with affected people, District and relevant government agencies and civil society organisations at all levels;												

5	Conduct a survey in order to prepare an inventory of lost/affected assets (land and other improvements), affected people and database for the same and identify the appropriate entitlements for all classes of PAPs including livelihoods restoration and rehabilitation and additional assistance for vulnerable PAPs.												
6	Identify the needs for livelihood restoration activities and income generation transition support by type of PAP.												
7	Carry out valuation assessment of affected land and improvements and other losses/impacts and prepare compensation assessment schedules.												
8	RAP approval and public disclosure based on established processes and schedules for land and assets acquisition and secure the agreement between the project proponent and APs;												
9	Operationalisation of Grievance Redress Mechanisms												
10	Identify the need for relocation sites in consultation with Traditional leaders, District Commissioner's office, the PAPs and the entire community												
11	Finalize compensation and entitlements (payment of compensation)												

12	Preparation of the technical plan and schedules for land and asset acquisition, livelihood restoration activities, and development of relocation site(s), if ascertained to be needed;												
13	Dismantling of structures and relocation of PAPs to new location and handover of site for construction												
14	Internal monitoring by the SSRLP Technical Team												
15	Workshop for review of the RAP implementation and evaluation												
16	Preparation of a Consolidated Implementation Completion Report												

Where applicable, the timing mechanism of these measures will ensure that no individual or affected household will be displaced due to civil works or any works activity before compensation is paid and resettlement sites with adequate facilities are prepared and provided for the individual or household affected.

CHAPTER EIGHT

MONITORING AND EVALUATION OF RESETTLEMENT ACTIVITIES

Monitoring mechanisms for resettlement activities within the programme will be linked to existing government monitoring systems at community, district and national levels. Monitoring at community level will be undertaken by Area Executive Committee and District Environmental Subcommittee Committee (DESC) with technical support of the extension workers. Monitoring resettlement activities at community level has to be done by District Environmental Subcommittee (DESC) as opposed to the community structures so that the District Executive Committee provides independent oversight functionality, governance and leadership.

The District Monitoring and Evaluation Officer will provide technical support in tracking key monitoring indicators on the exercises. This would help to effectively provide oversight on compliance to compensatory measures by the community in all cases of sub-projects which acquired land and displaced people. Monitoring at national level will assess the effectiveness of the stakeholders in mainstreaming of resettlement principles in administration and implementation of the sub-projects funded from SSRLP Additional Financing.

The key stakeholders in monitoring at national level will be the National Local Government Finance Committee, Ministry of Finance and Economic Affairs, Ministry of Lands and Ministry of Local Government. Information from local authorities will be collected by District Monitoring and Evaluation Officer (M&EO) and will be transmitted to the National Local Government Finance Committee. The National Local Government Finance Committee will produce consolidated annual monitoring reports.

Key issues to be monitored at community level will include the type of resettlement losses, and / or impacts, evidence of voluntary land donations, delivery of compensations to affected people and provision of resettlement assistance to project affected people where applicable. Table 9 below outlines a suggested monitoring plan at community level. The plan outlines typical resettlement losses, entitlements, monitoring indicators, authorities responsible for monitoring and means of verifications.

Table 9: Proposed Monitoring Plan of Resettlement Activities at Community Level

Type of resettlement losses	Compensation entitlement	Monitoring indicators	Monitoring authorities	Means of verifications	Frequency of monitoring
Loss of or impact on land	Land replacement Cash compensation in lieu of land	Hectares of land replacement. Cash paid in Malawi Kwacha Number of people compensated.	District Environmental Subcommittee Traditional Authority (T/A)	Records with local village heads and Village Development Committee	Annually
Loss of or impact on residential structures	Cash compensation	Cash compensation. Number structures compensated. Number of people compensated.	District Environmental Subcommittee Traditional Authority (T/A)	Records with local village heads and Village Development Committee	Annually
Loss of or impact on commercial/business structure	Cash compensation	Cash paid in Malawi Kwacha. Number of structures compensated. Number of people compensated.	District Environmental Subcommittee Traditional Authority (T/A)	Records with local village headmen and Village Development Committee	Annually
Loss of or impact on rental accommodation	Cash compensation	Cash compensation in Malawi Kwacha Number of accommodation units compensated.	District Environmental Subcommittee Traditional Authority (T/A)	Records with local village heads and Village Development Committee	Annually
Loss of or impact on businesses	Cash compensation	Cash paid in Malawi Kwacha Number of businesses compensated.	District Environmental Subcommittee Traditional Authority (T/A)	Records with local village heads and Village Development Committee	Annually
Loss of or impact on forest trees	Cash compensation	Number of trees compensated. Cash paid in Malawi Kwacha Number of people compensated	District Environmental Subcommittee Traditional Authority (T/A)	Records with local village heads and Village Development Committee	Annually
Loss of or impact on fruit trees	Cash compensation	Cash paid in Malawi Kwacha Number of fruit trees compensated. Number of people compensated	District Environmental Subcommittee	Records with local village heads and Village Development Committee	Annually

Type of resettlement losses	Compensation entitlement	Monitoring indicators	Monitoring authorities	Means of verifications	Frequency of monitoring
			Traditional Authority (T/A)		
Loss of or impact on crops	Cash compensation	Kilogrammes of crops compensated. Cash paid in Malawi Kwacha Number of people compensated	District Environmental Subcommittee Traditional Authority (T/A)	Records with local village heads and Village Development Committee	Annually
Loss of or impact on vegetables	Cash compensation	Cash paid in Malawi Kwacha. Kilogrammes of vegetables compensated. Number of people compensated	District Environmental Subcommittee Traditional Authority (T/A)	Records with local village heads and Village Development Committee	Annually
Loss of or impact on grazing land	Grazing land replacement	Availability of alternative grazing land	District Environmental Subcommittee Traditional Authority (T/A)	Records with local village heads and Village Development Committee	Annually
Blockages to access to natural resources	Alternative access routes	Functional alternative routes to natural resources.	District Environmental Subcommittee Traditional Authority (T/A)	Records with local village heads and Village Development Committee	Annually
Blockage of pathways/footpaths	Provision of alternative pathways/footpaths	Functional alternative footpaths/pathways	District Environmental Subcommittee Traditional Authority (T/A)	Records with local village heads and Village Development Committee	Annually
Blockage to access to irrigation land	Provision of alternative irrigation land	Availability of alternative irrigation land.	District Environmental Subcommittee Traditional Authority (T/A)	Records with local village heads and Village Development Committee	Annually
Loss of or impact on public facilities	Cash compensation	Number of structures/sites. Cash compensation in Malawi Kwacha	District Environmental Subcommittee	Records with local village heads and Village Development Committee	Annually

Type of resettlement losses	Compensation entitlement	Monitoring indicators	Monitoring authorities	Means of verifications	Frequency of monitoring
			Traditional Authority (T/A)		

CHAPTER NINE

CONCLUSION AND RECOMMENDATIONS

The Malawi Social Support for Resilient Livelihood Project will generate significant socio-economic benefits to the country as a whole and in the different project impact areas in particular. However the RPF study also established that the project has the potential to generate some negative social impacts especially during implementation of enhanced public works and livelihood support activities under the Improved Social and Economic Inclusion Component. Some of the potential negative impacts may include loss of property on people's land, loss of access to cultivable land and grazing land and temporary disruption of access paths.

To manage these potential negative impacts, it will be necessary for the project to ensure that the principles and guidelines advocated by this RPF are adhered to during project screening, appraisal and implementation.

REFERENCES

Government of Malawi (2016), **The Constitution of the Republic of Malawi**, Office of President and Cabinet;

Government of Malawi (2002), **Malawi National Land Policy**, Ministry of Lands;

Government of Malawi (1998) **National Decentralization Policy**, Ministry of Local Government and Rural Development;

Government of Malawi (2004), **National Environment Policy**, Ministry of Natural Resources, Energy and Mining;

Government of Malawi (2016), **Land Act**, Ministry of Lands;

Government of Malawi (2016), **Customary Lands Act**, Ministry of Lands;

Government of Malawi (2016), **Lands Acquisition and Compensation Act**, Ministry of Lands;

Government of Malawi (2016), **Physical Planning Act**, Ministry of Lands;

Government of Malawi (2017), **Public Roads (Amendment) Act**, Ministry of Lands;

Government of Malawi (2016), **Land Survey Act**, Ministry of Lands;

Government of Malawi (2016), **Registered Land (Amendment) Act**, Ministry of Lands;

Government of Malawi (2017), **Forestry (Amendment) Act**, Ministry of Natural Resources, Energy and Mining;

Government of Malawi (2017), **Local Government (Amendment) Act**, Ministry of Local Government, Lilongwe;

Government of Malawi (1948), **Public Health Act**, Ministry of Health;

Government of Malawi (1997), **Occupational Safety, Health and Welfare Act**, Ministry of Labour, Youth, Sports and Manpower Development;

Government of Malawi (2012), **Gender Equality Act**, Ministry of Gender, Children, Disability and Social Welfare;

World Bank (2016). **Environmental and Social Framework**, World Bank, Washington DC.

Government of Malawi. (2016) **The Public Works Guidelines**. National Local Government Finance Committee. Lilongwe.

Government of Malawi (2018). **Enhanced Public Works Pilot Programme –Draft Project Implementation Manual**, National Local Government Finance Committee. Lilongwe

ANNEXES

Annex 1: Resettlement Screening Form for Proposed Sites and Sub-Projects

Government of Republic of Malawi

…… District / Town / City Council

SOCIAL SUPPORT FOR RESILIENT LIVELIHOODS PROJECT

RESETTLEMENT SCREENING FORM

GUIDELINES FOR THE EVALUATION:

The evaluator to undertake the assignment during field visit of the site
The evaluator to undertake the assignment after prior briefing of the exercise
The form to be completed by consensus of at least three people

Project Name:	Estimated Cost:
Project Location: Village: Traditional Authority: District:	Project Objectives
Land tenure status	Proposed Main Project Activities:
Name / Signature and Position of Evaluator	Date of appraisal

	SCOPE AND FOCUS OF SCREENING	METHODOLOGY OF SCREENING			
		Appraisal of Impacts		Evaluation of Impacts	
		No	*Yes*	*Low*	*High*
1.0	SCREENING CRITERIA FOR PROPOSED SITE FOR THE PROJECT				
	Will implementation of the sub project within proposed site generate the following socio-economic impacts?				
1.1	Loss of or impacts on private land/gardens				
1.2	Loss of or impacts on private residential premises				
1.3	Loss of or impacts on private commercial premises				
1.4	Loss of or impacts on crops for a person/persons				

1.5	Loss of or impacts on forest trees for a person/persons				
1.5	Loss of or impacts on fruit trees for a person/persons				
1.6	Eviction of squatters				
1.7	Eviction of vendors				
1.8	Loss of or impacts on rental accommodation				
1.9	Closure/blockage of public footpath/road				
1.10	Blockage of pathways for livestock				
1.11	Loss of or impacts on grazing land				
1.12	Loss of or impacts on cultural sites – graveyards, ritual sites				
1.13	Loss of or impacts on public facilities – church, borehole, water kiosks,				
1.14	Loss of or impacts on access to public water resources/facilities				
1.15	Loss of or impacts on access to natural resources				
1.16	Spread of HIV and STIs				

OVERALL EVALUATION OF THE RESETTLEMENT SCREENING PROCESS

The results of the screening process would be either - that the proposed sub project is rejected for funding from SSRLP Additional Financing or - that the proposed sub project on the proposed site be funded from SSRLP Additional Financing. The basis of these options is listed in the table below:

REJECTION OF FUNDING FOR THE SUB-PROJECT ON THE PROPOSED SITE	APPROVAL FOR FUNDING FOR A SUB-PROJECT ON THE PROPOSED SITE
1. An entry/entries of "YES" against each social impact in column 4, high impact, in table above by Village Development Committee.	1. Entries of "NO" against each of the social impact in column 4 in table above by Village Development Committee.
2. An entry/entries of "YES" against each social impact in column 4, high impact, in table above by District Environmental Subcommittee.	2. Entries of "NO" against each social impact in column 4 in table above by District Environmental Subcommittee.
Completion by District Lands Officer/Director of Planning and Development	
Date Received from	
Dated Reviewed:	
Date of Submission of inspection of the site	
Date of recommendation	
Date of clearance.	
Name & Signature of Officer:	

NOTES:
Once the Resettlement Screening Form is completed and analyzed District Environmental Subcommittee will consider and endorse the overall position on the site. In case the proposed site and project is cleared of resettlement, The District Lands Officer will in turn forward the project for further consideration by other stakeholders and the process of preparing a RAP, where necessary, will begin. In case the project is rejected, The District Lands Officer will inform the village development committee accordingly.

Annex 2: Examples of Enhanced Public Works and Livelihood Support Subprojects that will require Land

The activities which are likely to trigger the need for acquisition of land are mostly anticipated to come from implementation of the sub-projects under the CSPWP/EPWP and Livelihood Support components of the SSRLP Additional Financing. The identification and sitting of potential sub-projects under the CSPW/EPWP will be guided by the Public Works Guidelines[6] and the Project Implementation Manual[7] for the climate smart/enhanced public works which prescribe the type of eligible projects under the catchment management approach. These include sub-projects such as:

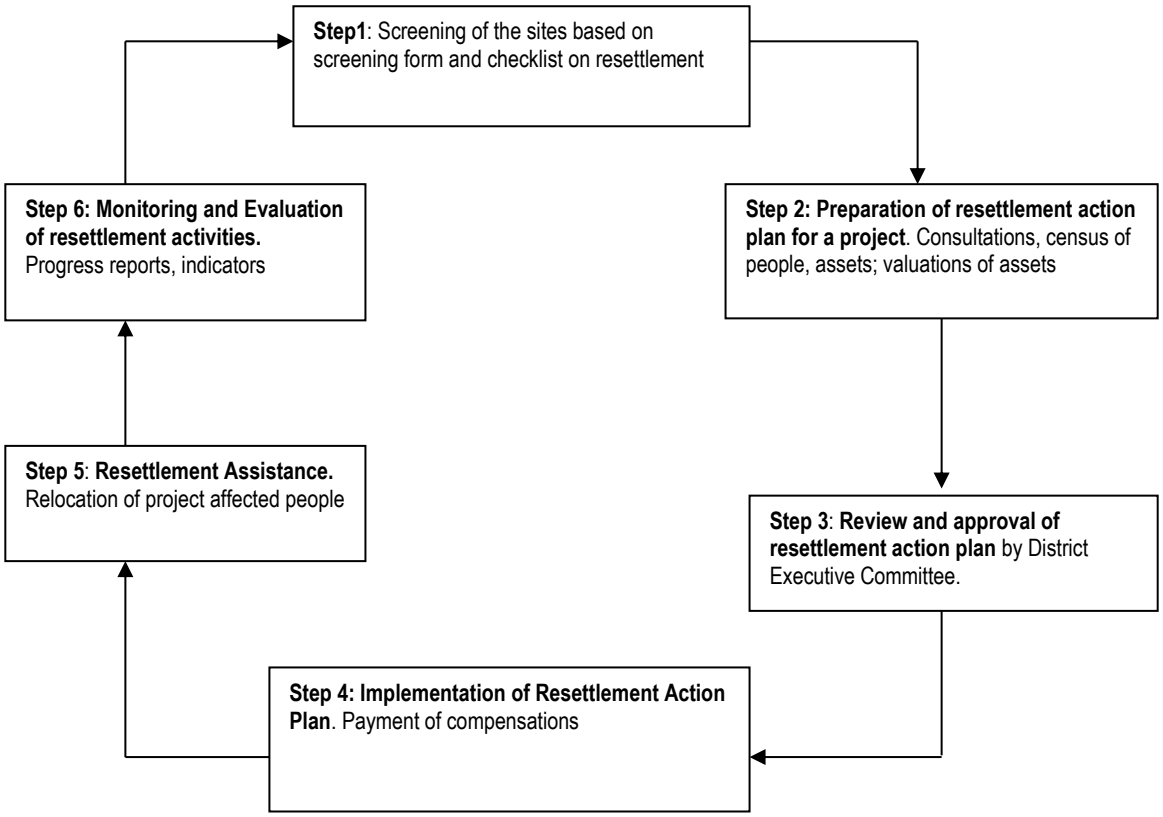
1. Afforestation - both tree planting and natural regeneration; nursery establishments
2. Land, Soil and Water Resources conservation activities such as river bank protection, gully reclamation; manure making, vetiver planting, construction of marker ridges, swales, contour bunds, soak pits etc.
3. Selected access roads - with associated drainage improvements such as culverts, drifts, check dams and mitre drains (mostly done using hand tools and not heavy machinery;
4. Sanitation and Environmental conservation projects;

[6] National Local Government Finance Committee, (2016). *The Public Works Guidelines*. NLGFC. Lilongwe.
[7] National Local Government Finance Committee, (2022). *Climate Smart/Enhanced Public Works Programme –Draft Revised Project Implementation Manual*. NLGFC. Lilongwe.

Annex 3: An Outline of the Contents of Resettlement Action Plan

1. Description of the sub-project
2. Objectives of the sub-project.
3. Socio-economic characteristic of the people on the selected site
4. Inventory of the project affected people and assets to be lost
5. Eligibility criteria and cut-off date
6 Payment of compensation and records
7 Housing infrastructure and social services
8 Community participation
9 Integration with host population
10 Work plan for implementation of the resettlement
11 Institutional Arrangement
12 Grievance Redress Mechanism
13 Cost and budget
14 Monitoring and evaluation plan

Annex 4: Diagrammatic Flow of Resettlement Action Plan and Implementation



Annex 5: Voluntary land donation form

TO : WHOM IT MAY CONCERN

FROM: THE VILLAGE HEADMAN/ OR OWNER OF THE LAND

CC : The VDC CHAIRPERSON/ OR THE VILLAGE HEADMAN

DATE: ……..…….

VOLUNTARY LAND ACQUISITION AGREEMENT

I Village headman or/ owner of land……..... of.....……village, of …….....Village Development Committee(VDC), T/A…….....in …… district do hereby offer user rights and non-exclusive ownership of……..sq metres/hectares of land available at…….voluntarily(to be ticked by land owner) to ....., (name of community project) for purposes of implementation of subprojects under SSRLP Additional Financing having fulfilled all processes and consultations of land acquisition.

In this agreement, the offer shall not be transferred or assigned in whole or part to any third party without consent of the holder. In the event of the either party committing the breach of the terms of this agreement the aggrieved party will seek further formal arbitration.

Duplicate originals of this agreement have been signed on behalf of .....……Village headman or/owner and on behalf of.....…… project management Committee on the dates specified below.

This agreement is entered into effect immediately when signed by all parties.

Name .....……Signature.....……Date……...

Name .....……..Signature.....……Date……..

Name .....……..Signature.....…….Date……..

Name .....…Signature.....……Date……..

Official stamp (if available)

NB: By signing or providing thumb-print on this form, the land user or owner agrees to contribute assets to the project. The contribution is voluntary. If the land user or owner does not want to contribute his/ her assets to the project, he or she should refuse to sign or provide thumb print.

Annex 6: A summary of the issues raised during stakeholder consultation meetings

A number of issues were raised during the stakeholders' consultation meetings at district and community levels. Overall, the stakeholders felt that the SSRL project, if well implemented, will offer several benefits. The following are issues raised during stakeholder consultation meetings:

- *Increase in employment opportunities*

  The project will create job opportunities for the beneficiaries to be targeted with project interventions such as enhanced public works.

- *Increased Business Opportunities*

  The cash transfers shall increase business opportunities for the local traders and other external suppliers. The money accessed from social cash transfers will enable the poor and vulnerable people to establish businesses.

- *Increased Income among households*

  There will be increased income from the transfers, wages and livelihoods activities (COMSIP activities).

- *Disaster impact mitigation*

  The project will provide assistance to poor and vulnerable households during disasters in the form of cash and this will enable to cope easily with effects of disasters.

- *Improved nutrition at household level*

  The cash transfers, income, knowledge, and skills that the beneficiaries will earn from the project interventions and created linkages will help improve the nutrition and health of beneficiaries.

- *Reduce charcoal burning*

  In some targeted areas, the project interventions under livelihood support will provide alternative livelihoods opportunities which will lessen the drive to engage in charcoal selling business as survival strategy. The project will also promote the use of energy saving technologies that will reduce pressure on forests in the projects area to sustain existing village forests created under MASAF 4.

- *Reduced rate of crime*

  The project beneficiaries especially the youth will be engaged in skills and business development under the project thereby reducing their likelihood of engaging in criminal activities.

- *Reduced human trafficking*

  By providing opportunities for economic empowerment, the project will minimise human trafficking in some target communities where there is a tendency of trafficking vulnerable people to work in farms in neighbouring countries.

- *Skills transfer to the project beneficiaries and local artisans*

The project will train beneficiaries in running various businesses and skills in energy saving stoves, loans and saving and local artisan that will enhance their skills.

- *Improved water availability and soil productivity*

  Implementation of soil and water conservation activities under the catchment management approach in the enhanced public works will contribute to improved vegetative cover, reduced soil erosion/siltation and improved water availability.

However, the stakeholders also raised a number of concerns that need to be considered when planning for implementation of the project. The concerns were similar in most meetings. The following were the concerns which were raised and also proposals that were discussed on how they will be addressed by the project before and during implementation:

- *Leakage of private beneficiary information*

  Since project delivery processes will include collection of information about household demographic and socio-economic status, some of which may be confidential, there is risk of harm to the subjects if such information is leaked.
  - The project will put in place data protection and security protocols such as user rights for accessing the databases.
- *Exclusion errors*

  Due to failure or delays in updating beneficiary information regularly.
  - The project will ensure periodic updating of beneficiary data bases and carry out regular case management.
- *Potential for loss of land , assets and restriction on land use*

  Siting of subprojects may lead to loss of land, assets and restriction on land use to initial users of the land.
  - Implementation of RPF which the project has developed
  - Community engagement through consultation and their involvement in the project.
- *Potential conflict among members of the target communities*

  Due to high levels of vulnerability in some targeted communities, there may be conflicts and discrimination between beneficiaries and non-beneficiary members of the community when fewer numbers of beneficiaries have been targeted by the project and the targeting criteria is not well understood.
  - Communications and outreach combined with community-based dialogue will ensure the objectives and approach of the project is well known.
- *Loss of Vegetation*

- Land at some sub-projects sites may need to be cleared of all vegetation to allow for the construction of structures such as fishponds, irrigation canals and access road thereby by resulting into loss of some vegetation.

  - However works will be sited away from important vegetation or biodiversity rich habitats.
- *Increased generation of waste*

  Gatherings of large groups of project beneficiaries may generate reasonable amounts of solid and liquid waste which may include waste water, food remains, plastic bags, and human waste.
  - Where gatherings are anticipated planning will include provision for the minimizing of wastes and its proper collection and disposal.
- *Increased Risk or Spread of HIV & AIDS and other STIs*

  The increased levels of disposable income may result into beneficiaries indulging in risky behaviors such as multiple sexual partners.

- Sensitization of target communities on the preventive measures of HIV and AIDS and STIs will help to minimize the risks.

- *Disruption of access roads*

  Rehabilitation of access roads under public works could cause temporary disruption of access to the areas being serviced by the road.

  - Implementation of the Resettlement Policy Framework for the project will help address the concerns.

- *Occupational Health and Safety Risks*

  Mz sub-projects are generally very small and dispersed, and for the most part do not involve civil works, however few subprojects with higher risks of hazards may require civil works. There could also be site specific emergencies to be taken into consideration in relation to labour guidelines for workplace conditions.

  - Sub-project ESMPs will identify site specific risks to those involved and propose mitigation measures. Where contractors are involved C-ESMPs will identify and address OHS issues.

- *Public Safety Risks*

  Excavations, pits and heaps of unconsolidated material may be left overnight at the end of a working day at the at the sub project site. These would make the construction site dangerous to surrounding communities especially children and stray animals that walk across the site at night.

  - The construction sites will be properly barricaded to prevent potential accidents and injuries

- *Water and soil pollution*

  There may be use of small quantities of chemicals and pesticides under livelihood support activities which may lead to pollution of the water and soil if not properly used and managed.

  - Where need be, depending on the environmental and social screening, an Integrated Pest Management Plan (IPMP) will be developed and implemented accordingly.

- *Child labour*

  There may be increase in child labour as children may become the alternative labor-force while the parents will be preoccupied with EPWP activities.

  - The target communities will be sensitized to ensure that under aged children are not involved in project work or overburdened with household chores. Labour management procedures will also be implemented.

- *Risk of Gender Based Violence and disruption of marriages*

  As a result of existing cultural and structural drivers of gender inequalities in the target communities, squabbles may arise in marriages as the women get economically empowered by the project.

  - Awareness and sensitization on proper use of cash transfers and also prevention of gender based violence will be mainstreamed in all project activities involving beneficiaries.

Annex7: Resettlement Grievance Redress Form

The following form should be used for Addressing Resettlement Grievances. The forms should be located at VDC level and if the complaint is not resolved at each level, refer to the next level of grievance resolution

Sub Project Name:	Name of complainant:
Case Registration: New/ Referral	Case referred from :
Project Location: Village: Traditional Authority: District:	Village: Traditional Authority: District
Land tenure status:	Date of Grievance :
Type of grievance:	Who was the grievance addressed to:
Was the grievance addressed: Yes/No	
Type of grievance resolution: community consent or agreement/ compensations/ legal redress:	
If yes, how long did it take to address the grievance:	
Any appeals lodged: Yes/No	

Completion by Authority resolving the Grievance	
Date Received from (Complainant)	
Dated grievance reviewed:	
Date of consultation with complainant	
Date of redress recommended	
Date of clearance.	
Name & Signature of Officer (VDC chair/Traditional leader/ AEC member/ DC/ magistrate/Judge- (circle appropriate level where grievance was resolved).	
Name and signature of complainant	
Date	

Annex 8: Summary of Comments and Issues from Field Stakeholder Consultations

Target Group	*Issues Raised*	*How the issues have been addressed*
District Environmental Subcommittee & District Social Support Committees	Adequate consultations to be done with the communities.	This has been done and will continues to be done in all target districts
	The number of beneficiaries in this new project should increase.	It is not possible to increase the number of beneficiaries since the project has a limited budget. However the project will lobby with other projects and organizations working in the same areas to reach out to those that may not be targeted under this project.
	There has been poor asset creation in the previous PWP and one cause of this is involvement of ward councillors. Councillors diverted certain projects so they could push their political agenda forward. In this new project, how are we going to handle councillors?	Councillors and councils will be sensitized on their roles in the project
	Department of Nutrition, HIV and AIDS (DNHA) should be included in the list of implementers	DNHA will be actively involved in planning and delivery of relevant programs at district level
	Decentralize disaster assessment process to district councils minimize time wasting which is experienced when the process is controlled from the central level.	Assessments will done by the Councils in collaboration with DODMA
	In the absence of sensitizations on the new methods i.e electronic payments might bring challenges accessibility of money, need more sensitizations.	To be done extensively
	Worries on workability of electronic payment since most beneficiaries do not have phones and are not literate in the new payment systems like Mpamba.	Sensitizations of beneficiaries will be done. There will be gradual roll out of the system
	SCTP might reduce charcoal burning through the top ups.	Business and financial trainings will be provided
	Fears that the programmes deepens dependency syndrome.	IGA's should be able mitigate dependency syndrome.
	Environmental degradation e.g. roads projects	Sub-projects will be screened and ESMPs will be developed accordingly
	Sabotage of activities because of few beneficiaries involved	Civic education will be done in the communities
	Delay in procuring materials	Procurement of materials on PWP will be done by the communities
	No funds for implementation of ESMP's	The project will provide funds for ESMP implementation
	Too many projects per hotspot and resources for safeguards monitoring were not enough.	The project will provide funds for safeguards monitoring
	Enhancement of child labour at household level emanating from the fact that adults are going to be preoccupied with project activities	Sensitization of household beneficiaries on child labour

	Climate change impacts (unpredictable rains, too much rains etc.	Promotion of climate smart agriculture in relevant project interventions
	Pollution of water courses due to pesticides use or chemical usage	Sensitization on Integrated Pest Management
	Need for coordination between the different sectors at district level.	Strengthen capacity of DESC and DSSC
	Land degradation from charcoal making and other activities that might destroy environment	Alternative business and Investment opportunities will be promoted under livelihood enhancement activities
	Conflicts arising due to land ownership	Land donation forms will be used Alternative sites will identified where there is no voluntary donation
	Late provision of wages on PWP	System will be improved to ensure timely payment. Payments will be made every 2 months E-payment will improve efficiency of payment
	Create employment among the youth (make sure more youths are engaged in the program	Most of the beneficiaries will be the youth
	Crime will be reduced because the youth will be economically empowered.	Most of the beneficiaries will be the youth
	Human trafficking will reduce through skills development and top ups.	Sensitization of communities on Human Trafficking
	Skills transfer (business skills and in other areas). Making the families resilient even in the months when they had no food.	Business and financial trainings will be provided
	Increase in child prostitution because rural areas will be opened up due project activities	communities will be sensitized
	Increase in gender related abuses perpetrated by men as they will have more power over the money being generated by women	communities will be sensitized
	Risk of injury	Protective gear will be provided for those who are working on risky areas
Community		
	UBR system for the new project may omit some old members	UBR system will promote fairness and ensure that only eligible households are enrolled
	PWP timing should not coincide with farming period	Fund transfer accounting and liquidation system will be improved to ensure timely implementation of activities
	People who could not take part in the project felt discriminated (all catchments had fixed number of beneficiaries).	Transparent and reliable targeting criteria will be used following the UBR system which will promote fairness
	Construction of roads during the dry season has been hard for the elderly and the sickly because the work is more energy intensive than is the case during rainy season.	All systems will be improved to ensure implementation of subprojects according to their appropriate times and seasons. The UBR will also ensure that only eligible people (i.e. those with

	labour capacity) are recruited for EPWP
There is need for an alternative receiver of payment in the e-payment	Provisions will be made for alternative receivers
Marriage interference impact due to women participation in the project (women not respecting their husbands)	Sensitization project beneficiaries on gender related issues targeting both men and women
There is need to prevent double dipping as it brings conflicts within the community.	UBR system will assist t to eliminate double dipping
Elderly people not benefiting from these good programs feel discriminated	UBR system will ensure that the elderly are considered under appropriate programs
There is need to understand why other people are not progressing. Hence need to also consider providing support to those individuals who are better off.	Suggestion is noted and will be used in providing customized support to project beneficiaries
Need for first aid kit during PW cycle.	The project will project first aid kits for high risk activities such as construction, farming, sanitation and hygiene activities
Chiefs are not being involved in the program especially SCT.	Chiefs will be sensitized on their roles before commencement of project activities
Variations in the amount of money that is provided	Results of case management verifications will be timely communicated
Beneficiaries should be made aware when the bank/program has reduced the amount or increased the transfer.	Beneficiaries will be well communicated on all payment issues
Lack of coordination during pay parade between the paying team (bank) and the District team.	The Bank and District team will be sensitized to improve their coordination
Targeting criteria brought conflicts in the community	Use of the UBR system and Mthandizi MIS is expected to improve the targeting process and eliminate potential causes of conflicts

ANNEX 9: LIST OF CONSULTED PEOPLE

PHALOMBE COMM

NATIONAL LOCAL GOVERNMENT FINANCE COMMITTEE

DISTRICT AND COMMUNITY STAKEHOLDER CONSULTATIONS FOR PLATFORM FOR NATIONAL SOCIAL SUPPORT PROJE

ATTENDANCE REGISTER

NO.	NAME	INSTITUTION	CONTACT NUMBER	POSTAL ADDRESS	EMAIL ADDRESS
1	Gift Nanguale	EAD	0999320709	P/Bag 394 LL	gnanguale@gmail.com
2	Thokozani Mbosa	GIZ	0999776601	P/Bag 319 LL	thokozani.mbosa@giz.de
3	Smith Majoni	NGLEC	0995382007	P/Bag 32 PE	nasimeta@gmail.com
4	Alex Saad	Water	0995355206	P/Bag 32 PE	
5	Ryson Kadwya	Labour	998116950	//	chikukadwya@yahoo.com
6	ENOCK MAKWETE	POLICE	0996044694	P.O. BOX 48, PE	
7	DANIEL SAKALA	ELDS	0884091731		danielsakala50@gmail.com
8	Edward Malumen	Sports	0884617626	P/Bag 32 PE	edsonmalumeno15@gmail.com
9	Esther Mlima	Disaster	0884770949	P/Bag 32 PE	mlimaesther@gmail.com
10	INNOCENT PHIRI	MGCDSW	0999642621	P/Bag 330 LL	iipphiri@yahoo.co.uk
11	Davie Guta	Forestry	0994343448	Box 83, PE	davieguta@gmail.com
12	JOHN NKHOMA	PE POLICE	0998450888	Box 48 PE	delenkhoma@gmail.com
13	Frank Sulumo	Community development	0886799778	P/Bag 32 PE	
14	Alick Chakwera Banda	Community Development	0888637218	P/B 32 - PE	chakwerabanda@gmail.com
15	CHRISWELL NKOLOMA	HEALTH	0999410446	P.O BOX 79 PE	nkolomachriswell@gmail.com
16	Mervis Chikafa Chilomo	Irrigation	0881135741	P.O. Box 63, PE	chikafamervis@gmail.com
17	Moses Mtambo	Forestry	0882858490	P.O BOX 83, PE.	mmtambo@gmail.com

BALAKA DIS

NATIONAL LOCAL GOVERNMENT FINANCE COMMITTEE

DISTRICT AND COMMUNITY STAKEHOLDER CONSULTATIONS FOR PLATFORM FOR NATIONAL SOCIAL SUPPORT PROJECT

ATTENDANCE REGISTER

NO.	NAME	INSTITUTION	CONTACT NUMBER	POSTAL ADDRESS	EMAIL ADDRESS
1	John Bosco Balinti	BDC	0888512918	P/Bag 1 Blk	jshmbosobalinti@yahoo
2	Geoffrey Kumbuyo	BDC	0993197706	" "	gkumbuyo@gmai
3	Rex Namalima	NASFAM	0999349328	PB 34 BLK	namalima@yahoo.co.uk
4	Austin Malizeni	Fisheries	0881111453	Box 149, BLK	davièmalizeni@gmail
5	SAMUEL MONGORA	NRB	0888513971	P/BAG 1 BALAKA	mongorasam@gmail.co
6	Bridget C. Banda	Water Dev	0881608309	P.O. Box 228 Balaka	chingnobridget@gmail.co
7	EDSON LUCHAPA	LABCOR	0888385005	P.O. BOX 47 BALAKA	luchapaea@gmail.com
8	Stephen Kanjobwe	Agric	0995353215	Po Box 140, BLK	sdkanjobwe@gmai
9	Noel Banda	BDC	0994631510	P/Bag 1 BLK	bandanoelsk@live.co
10	GODFREY MPINGANJIRA	YOUTH DEV	0994823406 0884567714	P.O. Box 260	gmpinganjira@gmail.c
11	Eugene Katenga	Health	0994088391	Box 137	eugkk2006@yahoo.c
12	Christopher Ndaona	S/welfare	0884483661	Box 287, Blk	cndaona@yahoo.c
13	Steven Salilika	S/welfare	0884567114	Box 287, Blk	stevensalilika@gmail.co
14	Innocent Phiri	MoGCDSW	0999642421	P/Bag 330 LL3	iiphiri@yahoo.co.uk
15	Mulder Mkutumula	DODMA	0993878547	P/Bag 386 LL3	muldermkutumula@hotmail.com
16	Davies Luhanga	COMSIP	0998122882	P/Bag 105, LL	davies.sealand@gmail.com
17	Thokozani Mbosa	GIZ	0999776601	P/Bag 319, LL	thokozani.mbosa@giz.de

NATIONAL LOCAL GOVERNMENT FINANCE COMMITTEE

DISTRICT AND COMMUNITY STAKEHOLDER CONSULTATIONS FOR PLATFORM FOR NATIONAL SOCIAL SUPPORT PROJECT

ATTENDANCE REGISTER LWAKWA - CHITIPA

NO.	NAME	INSTITUTION	CONTACT NUMBER	POSTAL ADDRESS	EMAIL ADDRESS
1	Gife Mtambo	Lwakwa Catchment	0994480421	c/o Box 67, Chitipa	
2	Happy Mtambo	Lwakwa Cash	0994196556	c/o Box 67 Chitipa	
3	Happy Kasule Sdwanda	Lwakwa	0883605602	C/o Box 67 Chitipa	
4	Bacimuel Sumba	Lwakwa	0991660743	C/o box 67 Chitipa	
5	Walusungu Kabango	Lwakwa	0997046322	c/o Box 67, Chitipa	
6.	Kondwani Mtawa	Lwakwa	0992513983	c/o Box 67 Chitipa	
7	Beatrida Msukwa	Lwakwa	—	C/o Box 67 CP.	
8	Beauty Mtambo	Lwakwa	0998609893	C/o Box 67 Chitipa	
9	Florence Kuyokwa	Lwakwa	0885672648	C/o Box 67 Chitipa	
10	Sitara Malwafe	Lwakwa	—	C/o Box 67 Chip.	
11	Medayi Mlambia	Lwakwa	—	C/o Box 67 Chitipa	
12	Evalini Mkisi	Lwakwa	—	C/o Box 67 Chitipa	
13	Rose Chisunkha	Lwakwa	—	C/o Box 67 Chitipa	
14.	Dorah Mbale	Lwakwa	099566280	C/o Box 67, Chitipa	
15	Mickness Msukwa	Lwakwa		C/o Box 67 Chitipa	
16	Mickness Kalagwa	Lwakwa		C/o Box 67 Chitipa	
17	Sofia Mulambia	Lwakwa		C/o Box 67 Chitipa	

NATIONAL LOCAL GOVERNMENT FINANCE COMMITTEE

DISTRICT AND COMMUNITY STAKEHOLDER CONSULTATIONS FOR PLATFORM FOR NATIONAL SOCIAL SUPPORT PROJEC

24/4/19 **ATTENDANCE REGISTER** COMMUNITY PEOPLE

Community people MBEZA VG - DOWA DISTRICT

NO.	NAME	INSTITUTION	CONTACT NUMBER	POSTAL ADDRESS	EMAIL ADDRESS
	Mercy Mlumbe	NLGFC	0883 201197		mercymbayegozal.com
1	ELISA MAKOZA	ADC	0885235068	BOX 11 MTENGOWANTHENGA	MBEZA
2	KAMBIRENI KAMWAZA	A.E.C	0883829993	BOX 11 Mtengowanthenga	~~Tonoy~~ MBEZA
3	Rodrick M. Silings	ADC	0884461836	Box 123 Mumbadza	Kwindangweza
4	Simkiliya Amos	CSSC	0880663072	Box 11 Mtengowa...	NYALUBWE
5	Disoni Kadewere	CSSC	0994820419	"	MSENGA
6	KONDWANI MAKALANI	COSIP		BOX 11 MTENGOWANTHENGA	NYALUBWE
7	magesso Kabichi	YOUTH	0882829579	BOX 11 MTENGOWANTHENGA	MBEZA
8	CHARLES CHIMBE	P. W		BOX 11 MTENGOWANTHENGA	GOMA
9	KENEDY NATISON	ELDERY		BOX 11 MTENGOWANTHENGA	MBEZA
10	JEKE MATEU	P. W			MBEZA
11	BINWEL MAZENGELA	CSSC			MBEZA
12	WITNESS MANDALA	MADANDAULO			MBEZA
13	MAHYETA CHIMANGENI	BENFICIARY			MBEZA
14	EMELESIA ADIEL	BENFICIARY		BOX 11 MTENGOWANTHENGA	MBEZA
15	ESINAT Banda	CBO		BOX 57 CHIBWATA SCHOOL	KAZOTA

NATIONAL LOCAL GOVERNMENT FINANCE COMMITTEE

DISTRICT AND COMMUNITY STAKEHOLDER CONSULTATIONS FOR PLATFORM FOR NATIONAL SOCIAL SUPPORT PROJE

25/4/19

ATTENDANCE REGISTER T A MWANSAMBO

NO.	NAME	Village ~~INSTITUTION~~	UDINDO ~~CONTACT NUMBER~~	TELEPHONE NO ~~POSTAL ADDRESS~~	SIGN ~~EMAIL ADDRESS~~
1	Gladson Chirwa	Mwansambo	AEDO	0993500216	gladsonchirwa@gmail.com
2	Flywell Jambo	MKASO	F.O	0999097363	
3	GODFREY SIKAYENERA	MKASO	EA.	0995707324	
4	Stanley Benjamin	Mandowa	PWP Beneficiary	0994283755	
5	Sitifano Tsabvu	Thanthwe	Comsp	0992289592	S. Tsabvu.
6	LILEMU K. MAMKHUKWA	CHAOLA	CHAIR YM/WORK	0999365504	
7	YOHANE JAMOSI	ABC	ABC Treasure	0998656192	
8	ISAAC JUDGE	Chikango	Chair. Comsip	0994875151	I. Judge.
9	Pilirani Simeon	Kataika I	A.D.C chair	0884063177	
10	Dorothy Lyton	Chaola	Elderly	—	—
11	Mercy Nkhoma	Kango	Youth	0994875308	M. Nkhoma.
12	Rachel Nkhadani	Mbawala	Beneficiary	0994429516	R. Nkhadani
13	Tuliyana Yesaya	Watini	Comsip	0992358414	T. Yesaya
14	Overeen Ngamonde	Mwansambo	Gender	0997929475	
15	Rose Zuze	Mwansambo	Beneficiary		R. Zuze.
16	Fatima Chimbalanga	Chaola	VDC	0991633969	F. Chimbalanga
17	Jonathan Banda	Kango	Secritory	0995766867	J. Banda